

THE HOLY SEED: THE FALL OF BABYLON AND THE MAKING OF JEWISH IDENTITY

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2026 (working draft)

ABSTRACT

Ezra 9:2 calls the returned exiles "the holy seed" and says they have mingled it with the peoples of the lands. The phrase occurs nowhere else in the Hebrew Bible in that sense, and within a generation of its first use the community at Jerusalem had put away its foreign wives and their children and had begun to keep its membership by written pedigree. This book asks where the idiom and the programme came from. It tests three answers against the record read at the page: that the *gola*, the returned exiles, radicalised Israel's own holiness law under the pressure of exile; that the Persian crown constituted the returned community as a hereditary temple body and the community's law followed the constitution; and that Zoroastrian purity theology, met at the Persian court, supplied a doctrine of pollution by blood that Israel's law did not have. To test them it reads the Israelite law of the stranger before 586 at the oldest complete Hebrew manuscript and at every version through which it reached later readers; the cuneiform record of the fall of Babylon before the biblical accounts of it; the exiles' own texts; Ezra–Nehemiah word by word; the Persian kings' inscriptions, the Greek observers and the Avesta; the whole shelf of scholarship from 1866 to 1991 that argued for Persian influence on Judaism; and the Jewish and Christian texts of the next six centuries that carried, hardened or softened the rule. It finds that the phrase is a coinage from Israelite parts, that Persia lent the rule its force and supplied none of its content, that the one Zoroastrian doctrine of seed runs the other way, and that

the idea of membership by the mother's birth, by adherence, or by the father's seed has been argued in the same terms from Ezra to the High Court of Israel in 1962. The Conclusion applies the author's Laws of Supremacism and Egalitarianism to what the history has established, and nowhere else.

TABLE OF CONTENTS

PREFACE	5
INTRODUCTION	7
The question.....	7
Three channels	8
The shape of the book.....	10
What the book is not	10
METHOD	12
Text before tradition	12
The record before the report	14
The audit of influence claims.....	15
The Laws last	16
PART 1 — ISRAEL BEFORE THE FALL: COVENANT MEMBERSHIP AND THE STRANGER.....	17
1.1 The Stranger in the Law.....	17
1.2 The Separation Texts Read in Their Own Terms	22
1.3 The Narratives of Inclusion	26
1.4 Women Who Led.....	31
1.5 What "Seed" Meant before 586	34
PART 2 — THE FALL OF BABYLON, 539 BC	36
2.1 The Record: The Nabonidus Chronicle and the Cylinder of Cyrus.....	36
2.2 The Greek Narrative	39
2.3 Daniel 5 against the Record	42
2.4 The Oracles against Babylon and Their Date	46
2.5 The Exiles' Posture.....	50
PART 3 — THE GOLA: IDENTITY IN EXILE AND RETURN.....	52
3.1 Crisis Theology in Ezekiel and Lamentations	52
3.2 Boundary and Loyalty.....	56
3.3 Sabbath, Text and Assembly: What Replaced the Temple.....	58
3.4 Who Came Back, and When.....	60
3.5 The Aramaic Documents and the Edict of Cyrus	64
PART 4 — THE HOLY SEED.....	68
4.1 Ezra 9:1–2 at the Hebrew and at Every Version.....	68
4.2 The Dissolution.....	73

4.3 Nehemiah 13 and Malachi 2	80
4.4 The Genealogies as Instrument.....	84
4.5 The Samaritans and the Jews Who Stayed	88
4.6 The Women's-Status Inflection.....	93
PART 5 — PERSIA AND THE QUESTION OF INFLUENCE	97
5.1 Cyrus's Religion in His Own Words, and Darius's	97
5.2 What Zoroastrianism Was in 539	101
5.3 The Purity Law and Its Date	105
5.4 What the Influence Literature Actually Claims	110
5.5 The Authorization Thesis.....	118
5.6 Verdict: Attested, Inferred, Not Measured	128
PART 6 — SYSTEMATIZATION, 458 BC TO 200 CE	131
6.1 Ben Sira.....	131
6.2 Jubilees and Qumran.....	134
6.3 Josephus	137
6.4 The Mishnah's Ten Lineages	139
6.5 The Court of Women	142
PART 7 — THE LONG SHADOW.....	144
7.1 The Samaritan Woman and the Witnesses.....	144
7.2 Galatians 3:28 against Ezra 9:2.....	146
7.3 The Contemporary Application	148
CONCLUSION.....	155
BIBLIOGRAPHY	159
Manuscripts and printed Bibles	159
Statutes and judgments of the State of Israel.....	160
Works.....	161

PREFACE

This book began with a single verse and the suspicion that it had been read backwards. Ezra 9:2, in the King James Version, has the princes of Judah complain that "the holy seed have mingled themselves with the people of those lands." Read in English, and read after two thousand years of Jewish and Christian argument about who is a Jew, the phrase sounds like a doctrine: a people holy by descent, defiled by marriage outside it. Read in Hebrew, at the oldest complete manuscript of the Bible, it is two common words placed together for the first time, by a narrator who had the whole of Israel's older law in front of him and chose to put them there. The question the book asks is why he did, and where he found them.

The author's approach was set by a habit formed in another field. In the history of law it is not enough to know what a rule was said to be; one must find the text in which it was first stated, read it in the words of its first statement, and then read every later statement to see where the rule was bent. That discipline, applied to Ezra, produced a research programme rather than an argument. Every biblical passage the book relies on had to be read at a Hebrew witness and at the Greek, Latin and English versions that carried it; every claim that a Jewish idea was Persian had to be traced to the Persian or Avestan text that was supposed to attest it, and that text had to be dated; every modern scholar who had made such a claim had to be read at his own page and in his own words, on both sides. The library in which the book was written was built for that purpose. The book calls it the shelf, and its footnotes are an account of what the shelf holds and where on it each reading was made.

Three things followed from the discipline that the author did not expect at the outset. The first was that the Israelite law before the exile turned out to be more hospitable to the stranger than the later tradition remembered, and in more places: not only the familiar verses about loving

the stranger, but a Priestly assembly that tried the son of an Egyptian father for his deed and kept him under the one law, a prophet who expected the stranger to be joined to Jacob when Babylon fell, and the author of Chronicles, who wrote a Canaanite mother and an Ishmaelite father into David's own pedigree without comment. The second was that the scholars who had argued for Persian influence on Judaism, from Kohut in 1866 to Boyce in 1991, had argued it about eschatology, angels and the devil, and had never argued it about marriage; and that the greatest of them dated the Zoroastrian purity code's barrier against unbelievers to an age three centuries after Ezra. The third was that the argument the book traces did not end in antiquity. In 1962 five judges of the Supreme Court of Israel, deciding whether a Carmelite monk born of Jewish parents was a Jew for the purpose of the Law of Return, conducted the same argument in the same terms, and in 1970 the Knesset wrote the result into the statute in a form that holds every definition the history had recovered.

The book is a history and not a brief. Where the evidence decides a question it says so; where it does not, it states both sides in the authors' own words and marks what has not been measured. The author's companion paper on the Laws of Supremacism and Egalitarianism supplied the reason for wanting to know how a people came to define itself by blood, but it was kept out of the reading. It enters once, in the Conclusion, to be applied to what the seven Parts have established, and the reader who wants the history without the application may stop before it.

The author read the Hebrew, Aramaic, Greek and Latin with the help of the versions and the apparatus and does not claim philological authority; every reading at a manuscript or an early print is given with its leaf so that it can be checked, and the author would be grateful to be corrected.

INTRODUCTION

The question

Between the fall of Babylon in 539 BC and the last decade of Nehemiah's governorship, about a hundred years later, the community of returned exiles at Jerusalem changed the way it defined itself. Before the exile Israel had been a people with a land, a king and a sanctuary, and its law had told it how to treat the stranger who lived among it: he might keep the Passover if he was circumcised, he was under the one law with the native, he was to be loved because Israel had been a stranger in Egypt. Its stories had made foreign women the mothers of its heroes, and its prophets had promised that when Babylon fell the stranger would be joined to Jacob. By the middle of the fifth century the community's leaders were complaining that "the holy seed" had mingled itself with the peoples of the lands. The men who had married foreign women were made to put them away with their children. The priests who could not prove their pedigree from the written registers were excluded from the priesthood. A governor drove a grandson of the high priest out of the city for having married the daughter of a Samaritan. Within four centuries the rule had been systematised into a law of lineages, and within six the Court of Women had a gallery so that the women should not be mingled with the men.

This book asks where that change came from. It is a question about a phrase and a programme. The phrase is זרע הקדש, "the holy seed," which Ezra 9:2 uses of the returned community and which no earlier Hebrew text uses in that sense. The programme is the dissolution of mixed marriages under Ezra in 458 BC and the exclusion of foreigners and the guarding of the priesthood under Nehemiah between 445 and 433, recorded in Ezra 9–10 and

Nehemiah 13 and reflected in Malachi 2. The question is not whether the change happened; the texts record it. The question is what caused it, and the answer is disputed because the century in which it happened is the century in which Judah was a province of Persia.

Three channels

Three answers have been given. The book calls them channels: three routes by which the idiom and the programme might have reached the community. Each is stated here with the evidence that would prove it and the Part that tests it.

The first is internal. Israel's own law already contained the materials: a Priestly holiness code that forbade the priest to marry outside a narrow circle and called his seed profaned by the wrong marriage (Leviticus 21); a Deuteronomic law that forbade marriage with the seven nations of Canaan because it would turn the sons to other gods, and excluded the Ammonite and the Moabite from the assembly to the tenth generation (Deuteronomy 7 and 23); a covenant text that made the people holy to the Lord; and a vocabulary of separation that ran through all of it. On this account the *gola*, having lost land, king and sanctuary, kept what it had, its law and its pedigrees, and read the law through the pedigrees. The holy seed is the priest's seed of Leviticus 21 extended to the whole community, and the programme of 458–433 is Deuteronomy 7 enforced on marriages already made. If this is right, the vocabulary of Ezra 9:1–2 and Nehemiah 13 should be Deuteronomic and Priestly and not Persian, and the community's own lists in Ezra 2 and Nehemiah 7 should be doing the work of boundary. Part 4 tests it.

The second is administrative. The Persian empire ruled its provinces through their temples and the hereditary bodies that served them; it authorised cults, paid for sacrifices, and dealt with a people through the priesthood that could be held to account for it. On this account,

first stated fully by Eduard Meyer in 1896, the Persian crown chartered the returned community as a religious body with a temple at its centre, and the community's law followed from the charter. A body the crown defined as the descendants of the Judaeans had to know who those descendants were. A priesthood the crown licensed had to keep its lines clean. The evidence for this channel is the Aramaic documents embedded in Ezra 4–7, whose authenticity has been fought over since Meyer and Torrey, and the parallels from Persian administration elsewhere in the empire. Parts 3 and 5 test it.

The third is theological. Zoroastrianism, whose god the Persian kings named in their inscriptions from Darius onward, held a doctrine of purity and pollution grounded in a cosmic dualism, and its later law made the mixing of the believer's seed with the unbeliever's a pollution of the whole. On this account the *gola's* leaders, who served at the Persian court and returned from it, met that doctrine there and brought it home, and the holy seed is a Zoroastrian category in a Hebrew dress. This is the answer that has been most often given in the popular literature and least often tested, and it is the one that requires the most to be shown: a Zoroastrian purity law that can be dated to or before the fifth century BC; a channel by which Judaeans in Babylonia or in Yehud, the Persian province of Judah, received it; and a word or a concept in Ezra–Nehemiah that Israel's own law does not supply. Part 5 tests it, and the whole of the scholarship on the shelf that has argued for Persian influence on Judaism, from 1866 to 1991, is read there on both sides and in the authors' words.

The book does not choose a channel in advance. It decides among the three on the evidence, or says which combination the record supports and where the record runs out. Its findings about what the change was, in Parts 3, 4 and 6, stand whichever channel carried it. What the fall of Babylon did to Jewish self-definition can be shown without settling why.

The shape of the book

Part 1 reads Israel before the fall: the law of the stranger, the separation texts in their own terms, the narratives of inclusion, the women who led, and what "seed" meant before 586. Part 2 reads the fall of Babylon itself, the cuneiform record first and the Greek and biblical narratives against it, and dates the oracles against Babylon that the exiles carried. Part 3 reads the *gola* in exile and return: its crisis theology, its boundary-keeping, what replaced the Temple, who came back and when, and the Aramaic documents that authorised the return. Part 4 is the centre of the book: Ezra 9:1–2 at the Hebrew and at every version, the dissolution of Ezra 10, Nehemiah 13 and Malachi 2, the genealogies as instrument, the Samaritans and the Jews who stayed, and the inflection in the status of women. Part 5 turns to Persia: the kings' religion in their own words, what Zoroastrianism was in 539, the purity law and its date, what the influence literature actually claims, the authorisation thesis, and a verdict sorted into what is attested, what is inferred and what is not measured. Part 6 follows the rule from Ben Sira to the Mishnah. Part 7 follows its long shadow: the Samaritan woman, Galatians 3:28 against Ezra 9:2, and the Law of Return of the State of Israel with the judgment that first construed it. The Conclusion states what has been established and applies the Laws of Supremacism and Egalitarianism to it.

What the book is not

It is not a commentary on Ezra–Nehemiah, and it does not settle the questions of composition and date that such a commentary must; where those questions bear on the argument the book states the positions and reads the texts both ways. It is not a history of Zoroastrianism; it reads that history as its best modern historian wrote it and takes from it only what bears on the fifth

century BC. It is not a theology of election or a polemic against one. It is a history of an idea about membership, read at the texts in which the idea was stated, and its claim is the reading.

METHOD

The method is stated once, here, in four rules.

Text before tradition

Every biblical passage on which the book relies is read at a Hebrew witness on the shelf and quoted as the witness has it. The witness of first resort is the Leningrad Codex of 1008, the oldest complete manuscript of the Hebrew Bible, read at its page images by column; the Aleppo Codex is read where it is extant, and Kittel's *Biblia Hebraica* is read for its text and its apparatus of variants. Each passage is then read at the Septuagint in Swete's edition of the Vatican manuscript with its apparatus, at the Sixto-Clementine Vulgate of 1592, and at the English chain from Coverdale in 1535 through the Great Bible, the Geneva Bible with its notes, the Bishops' Bible and the Authorised Version of 1611 to Leeser in 1891 and the Jewish Publication Society in 1917. The English quoted in the text is the Jewish Publication Society's version of 1917, chosen because it is a Jewish translation of the Masoretic text, in the public domain, and close enough to the Authorised Version that an English reader hears the tradition through it; where the argument turns on a word, the Hebrew is given and the other versions are set beside it in the footnotes. Where the versions differ at a load-bearing word, the difference is stated in the note. Every reading at a manuscript or an early print was taken at the page image, the photograph of the leaf; where a reading was taken from a text layer, the searchable text beneath a scan, the note says so.

The Hebrew, Aramaic, Greek and Latin readings are the author's and are given with their leaves so that they can be checked.¹

¹ Every reading in this book was taken at a page image of the witness named or, where a note says so, from a text layer of it.

The record before the report

For the fall of Babylon the cuneiform record is read before the biblical and Greek accounts of it: the Nabonidus Chronicle and the Cylinder of Cyrus in Rogers's edition, then Herodotus, then Daniel and the oracles. For the return the Aramaic documents embedded in Ezra are read before the Chronicler's frame around them. For the scholarship, each work is read at its own page and its date and standpoint are stated at first citation, so that the reader knows whether a claim comes from a Free Church tract of 1880, a German historian of Persia in 1896, a Yale Semitist arguing a minority position in 1910, or the *Handbuch der Orientalistik* in 1991. No scholar is cited for a position through another scholar's summary of it when his own text is on the shelf, and where a modern work is in copyright it is cited at its print pagination and no page is reproduced.¹

¹ Rogers, *Cuneiform Parallels to the Old Testament* (New York 1912), pp. 371–384 (the Chronicle and the Cylinder); Herodotus I.188–191 in Rawlinson's translation; Stuart, *The Fall of Babylon* (1880); Meyer, *Die Entstehung des Judenthums* (Halle 1896); Torrey, *Ezra Studies* (Chicago 1910); Boyce and Grenet, *A History of Zoroastrianism*, vol. III (Leiden 1991). Each is introduced at its first citation in the Part where it is read.

The audit of influence claims

Every claim that a Jewish idea is Persian or Zoroastrian is put to four questions at the place where the claim is made, and the answers are written into the text: which Avestan or Persian text attests the idea; what that text's date and redaction history are; what channel carried it to Yehud, whether the court, the satrapal administration, the Magian priesthood or the Babylonian diaspora; and what Hebrew text shows the idea and whether the idea is attested in Hebrew before 539. A claim that passes all four is stated as attested. A claim that passes some is stated as inferred, with the missing answer named. A claim that passes none is stated as not measured and is not counted. The same audit is applied to the popular statements of the thesis that the book met while it was being written, and its results are kept in a separate document so that the book's text is not burdened with them; the book's Part 5 carries the scholarly claims and the audit's tally. Both sides of every disputed question are given in the disputants' own words. The book does not mark a position as refuted while its strongest modern statement remains unread.¹

¹ The scholarly claims and their audit are at Parts 5.4 and 5.6; the popular statements are audited in Part 5.4.

The Laws last

The author's companion paper, The Fundamental Laws of Supremacism and Egalitarianism, states two laws about how groups claim standing over one another and how such claims erode. The paper is not used to select or weigh evidence anywhere in the seven Parts of this book, and it is not cited in them. It is applied once, in the Conclusion, to what the history has established. A reader who rejects the Laws may reject the Conclusion and keep the history; a reader who accepts them will find the history was not written to fit them.

PART 1 — ISRAEL BEFORE THE FALL: COVENANT MEMBERSHIP AND THE STRANGER

1.1 The Stranger in the Law

Israel's law has three words for the outsider, and the argument of this book depends on keeping them apart. The גֵר is the stranger who has come to stay: he dwells in the land, or in a tribe, or in a household not his own, and the word can be used of an Israelite among Israelites, for the Levite of Judges 17 is a גֵר in the hill country of Ephraim. The גֵר־נֶכֶד, or נֶכֶד־גֵר, is the foreigner from outside, who "cometh out of a far country," whether to trade, to fight, or to pray. The תושב and the שָׂכִיר are the lodger and the hired man, attached to a house without belonging to it. Bertholet, whose study of 1896 remains the fullest treatment of the subject on the shelf, put the distinction in a sentence: the גֵר "is the stranger who stays and dwells in the land and people," and "he need not yet be a non-Israelite."¹

The law draws a boundary around one rite and states, in doing so, what the boundary is made of.

EXODUS 12:43–49 (JPS 1917)

⁴³ And the LORD said unto Moses and Aaron: 'This is the ordinance of the passover: there shall no alien eat thereof; **44** but every man's servant that is bought for money, when thou hast circumcised him, then shall he eat thereof. **45** A sojourner and a hired servant shall not eat thereof ... **48** And when a stranger shall sojourn with thee, and will keep the passover to the LORD, let all his males be circumcised, and then let him come near and keep it; and he shall be as one that is born in the land; but no uncircumcised person shall eat thereof. **49** One law shall be to him that is homeborn, and unto the stranger that sojourneth among you.'

¹ Bertholet, *Die Stellung der Israeliten und der Juden zu den Fremden* (Freiburg and Leipzig 1896), p. 2, read at the image; the translations from Bertholet in this Part are the book's. The Hebrew of every text in Part 1.1 was read at the Leningrad Codex.

Three classes are named. The alien, the *בְּיָנִי*, is excluded. The bought slave eats when he has been circumcised. The stranger who wishes to keep the feast circumcises his males, comes near, and "shall be as one that is born in the land," *כְּאֶזְרָה הָאֶרֶץ*. The line is drawn at circumcision, which is a thing done, and not at birth, which is a thing suffered. Bertholet read the verse the same way: the stranger "can keep the Passover, but he need not; the one condition under which his participation is permitted is the acceptance of circumcision."²

The Holiness Code says how the stranger is to be treated and gives the reason.

LEVITICUS 19:33–34 (JPS 1917)

³³ And if a stranger sojourn with thee in your land, ye shall not do him wrong. ³⁴ The stranger that sojourneth with you shall be unto you as the home-born among you, and thou shalt love him as thyself; for ye were strangers in the land of Egypt: I am the LORD your God.

The command is *וְאָהַבְתָּ לּוֹ כְּמוֹךָ*, and it is the command of verse 18, "thou shalt love thy neighbour as thyself," with the stranger put in the neighbour's place. The reason is Israel's own memory of being strangers. At the foot of the same column of the manuscript the law of Molech binds "the children of Israel, or the strangers that sojourn in Israel" alike, so that the stranger who is loved as a neighbour is also judged as one.³

Once, the Torah turns the principle into a case. The case is a mixed marriage, and it is read whole.

² Exod. 12:43–49 at the Leningrad Codex p. 81, middle column; Bertholet p. 172. The versions: Swete's *προσέλυτος* and *ἀλλογενής*; the Clementine's *colonus qui peregrinatur*; Geneva 1560 note u; the 1611.

³ Lev. 19:33–34 and 20:2 at Leningrad p. 140, left column; Lev. 19:18 in the same chapter. Exod. 22:20 (Heb.) and 23:9 at Leningrad pp. 93 (middle column) and 94 (right column), read at the image: *וגר לא תונה ולא תלחצנו*: ואתם ידעתם את נפש הגר ...

LEVITICUS 24:10–11, 15–16, 22 (JPS 1917)

¹⁰ And the son of an Israelitish woman, whose father was an Egyptian, went out among the children of Israel; and the son of the Israelitish woman and a man of Israel strove together in the camp. **11** And the son of the Israelitish woman blasphemed the Name, and cursed; and they brought him unto Moses. And his mother's name was Shelomith, the daughter of Dibri, of the tribe of Dan ... **15** And thou shalt speak unto the children of Israel, saying: Whosoever curseth his God shall bear his sin. **16** And he that blasphemeth the name of the LORD, he shall surely be put to death; all the congregation shall certainly stone him; as well the stranger, as the home-born, when he blasphemeth the Name, shall be put to death ... **22** Ye shall have one manner of law, as well for the stranger, as for the home-born; for I am the LORD your God.'

The man is the son of an Israelite mother and an Egyptian father. His mother is named and her tribe is given; his father is not named. He is in the camp, "among the children of Israel," and when he sins the question put to God is what his sentence should be, not whether he belongs. The answer is the formula מִשְׁפַּט אֶחָד, one judgment, "as well for the stranger as for the home-born," and the formula is generalised from his case to every case. The child of a foreign father stands under Israel's law and inside Israel's camp. Part 4 will set beside this the assembly of Ezra 10, where the children of foreign mothers are put out with their mothers, and will observe that both texts are priestly.⁴

Numbers repeats the formula for the altar.

NUMBERS 15:14–16 (JPS 1917)

¹⁴ And if a stranger sojourn with you, or whosoever may be among you, throughout your generations, and will offer an offering made by fire, of a sweet savour unto the LORD; as ye do, so he shall do. **15** As for the congregation, there shall be one statute both for you, and for the stranger that sojourneth with you, a statute for ever throughout your generations; as ye are, so shall the stranger be before the LORD. **16** One law and one ordinance shall be both for you, and for the stranger that sojourneth with you.

⁴ Lev. 24:10–23 at Leningrad p. 146, middle and left columns; Ezra 10:3, 44 at Part 4.3; the Clementine adds peccauerit.

The stranger may sacrifice. The statute is חֶקֶת עוֹלָם, for ever. And the measure is stated as an identity: כְּכֶם כִּגְר יִהְיֶה לִפְנֵי יְהוָה, "as ye are, so shall the stranger be before the LORD." Later in the chapter the same equality governs atonement for inadvertent sin.⁵

Deuteronomy supplies the last text, and it is the one that puts the word seed nearest the word stranger.

DEUTERONOMY 10:15–19 (JPS 1917)

¹⁵ Only the LORD had a delight in thy fathers to love them, and He chose their seed after them, even you, above all peoples, as it is this day. **16** Circumcise therefore the foreskin of your heart, and be no more stiffnecked. **17** For the LORD your God, He is God of gods, and Lord of lords, the great God, the mighty, and the awful, who regardeth not persons, nor taketh reward. **18** He doth execute justice for the fatherless and widow, and loveth the stranger, in giving him food and raiment. **19** Love ye therefore the stranger; for ye were strangers in the land of Egypt.

Here is the chosen seed, בְּיָבוֹר בְּזָרָעִים, in Deuteronomy's own words. What follows it, within a verse, is the command to circumcise the heart, and within four, the command to love the stranger, grounded in the same memory of Egypt as Leviticus. The seed is told what it is for. It is not told to keep itself from the stranger; it is told to love him, because God does. When Ezekiel, in exile, makes the uncircumcised heart the disqualification for the sanctuary, he is using the qualification this verse set for the chosen seed itself.⁶

This Part is headed "before the Fall," and the critics do not agree that these texts are that old. Bertholet, following Wellhausen, assigned the equal-law formulas of Exodus 12, Leviticus 24 and Numbers 15 to the Priestly Code and placed that code after the exile; he read it as the code which "seeks as far as possible to equalise the differences between strangers and Israelites still existing in Deuteronomy," and he set Deuteronomy's love of the stranger in the seventh century. On the traditional chronology all of these texts precede Ezra. The book does not decide

⁵ Num. 15:14–16 at Leningrad p. 173, right column; 15:26, 29 at the middle column.

⁶ Deut. 10:15–19 at Leningrad p. 215, middle and left columns; Ezek. 44:9 at Part 3.3 (Codex Alexandrinus reads πλησίον for the second stranger of v. 18).

the question, and does not need to. On either dating the principle of one law for the stranger and the home-born is Israelite and priestly. On the critical dating it is contemporary with Ezra, so that the same priestly age wrote "as ye are, so shall the stranger be before the LORD" and "the holy seed have mingled themselves." What no dating supplies is a Persian author for either sentence.⁷

⁷ Bertholet, pp. 76 and 172, read at the image; the dating of the Priestly Code is Wellhausen's, whose *Prolegomena* Part 5.4 cites. The book states the two chronologies and does not choose.

1.2 The Separation Texts Read in Their Own Terms

Before Ezra there were rules about marrying out. What were they rules about? The only way to answer is to read them in the Hebrew, at the oldest complete manuscript, and then in every version through which they reached later readers. The Leningrad Codex of 1008 supplies the Hebrew; Swete's Cambridge Septuagint, the Sixto-Clementine Vulgate of 1592, the Geneva Bible of 1560, the Authorized Version of 1611, Leeser's translation of 1853 in its 1891 printing, and the Jewish Publication Society version of 1917 supply the chain.¹

The rule is Deuteronomy's.

DEUTERONOMY 7:1–4, 6 (JPS 1917)

¹ When the LORD thy God shall bring thee into the land whither thou goest to possess it, and shall cast out many nations before thee, the Hittite, and the Girgashite, and the Amorite, and the Canaanite, and the Perizzite, and the Hivite, and the Jebusite, seven nations greater and mightier than thou; **2** and when the LORD thy God shall deliver them up before thee, and thou shalt smite them; then thou shalt utterly destroy them; thou shalt make no covenant with them, nor show mercy unto them; **3** neither shalt thou make marriages with them: thy daughter thou shalt not give unto his son, nor his daughter shalt thou take unto thy son. **4** For he will turn away thy son from following Me, that they may serve other gods ... **6** For thou art a holy people unto the LORD thy God: the LORD thy God hath chosen thee to be His own treasure, out of all peoples that are upon the face of the earth.

Three things in this text govern everything that follows. The verb of verse 3 is *תתן*, to make a marriage alliance; the Greek renders it exactly with *γαμβρεύω*, the Latin with *sociare coniugia*, and every English version from Geneva to 1917 with "make marriages." The reason clause of verse 4 is religious: the foreign son-in-law will turn the Israelite son to other gods. And the ground of the whole in verse 6 is that Israel is *עם קדוש*, a holy people, in Greek *λαὸς ἅγιος*, in

¹ Leningrad Codex (Firkovich B 19 A), pp. 142, 185–186, 211, 229; Swete, *The Old Testament in Greek*, vol. I (1901), pp. 233, 357; *Biblia Sacra Vulgatae Editionis* (Rome 1592), fols. 101, 152; *The Bible and Holy Scriptures* (Geneva 1560), fols. 55v, 83v–84r; *The Holy Bible* (London 1611), Lev. 21, Deut. 7; Leeser, *The Twenty-Four Books of the Holy Scriptures* (1891), Lev. 21, Deut. 7; *The Holy Scriptures according to the Masoretic Text* (JPS 1917).

Latin *populus sanctus*. The text knows a holy people. It does not know a holy seed. The seven nations are named, and the seven names will reappear, rearranged, in Ezra's list; but here they are the nations of the land to be dispossessed, and the marriage rule is one clause of a war ordinance, not a rule of descent.²

The versions do not vary the text. Kittel's apparatus records no variant of substance; the Greek and Latin follow the Hebrew clause by clause. What varies is the framing. The Geneva editors headed the chapter "The Israelites may make no couenant with the Gentiles. 5 They must destroy the idoles," and the 1611 translators wrote above it "All communion with the Nations is forbidden, 4 for feare of Idolatrie, 6 for the holinesse of the people." The English readers of 1560 and 1611 were told, in the chapter heading itself, that the rule was about idolatry and holiness. They were not told it was about blood.³

The second separation text draws the line differently, and the difference matters for Ezra's list.

DEUTERONOMY 23:3–8 (JPS 1917)

³ An Ammonite or a Moabite shall not enter into the assembly of the LORD; even to the tenth generation shall none of them enter into the assembly of the LORD for ever; **4** because they met you not with bread and with water in the way, when ye came forth out of Egypt; and because they hired against thee Balaam ... **7** Thou shalt not abhor an Edomite, for he is thy brother; thou shalt not abhor an Egyptian, because thou wast a stranger in his land. **8** The children of the third generation that are born unto them may enter into the assembly of the LORD.

Ammon and Moab are excluded for a deed: they withheld bread and water and hired Balaam. Edom is admitted because he is a brother; Egypt because Israel was a guest there. The children of the third generation enter the assembly. This is a text about the assembly of the LORD, קהל יהוה, and its terms are kinship, hospitality and remembered wrong. Nothing in it is a

² Leningrad p. 211, right and middle columns; Swete I p. 357; Vulgate 1592 fol. 152.

³ Geneva 1560 fol. 84r, chapter argument; 1611, Deut. 7, chapter head. Read at the image.

doctrine of seed, and its treatment of Edom is the reverse of exclusion. It matters here because Kittel's apparatus at Ezra 9:1, read in Part 4.1, proposes that Ezra's "Amorite" was originally "Edomite," as the Greek Ezra known as 1 Esdras has it. If that proposal were right, Ezra's list would exclude the one nation Deuteronomy 23 expressly admits.⁴

The third text is the priest's marriage law, and it is the one that uses the word seed.

LEVITICUS 21:13–15 (JPS 1917)

¹³ And he shall take a wife in her virginity. **14** A widow, or one divorced, or a profaned woman, or a harlot, these shall he not take; but a virgin of his own people shall he take to wife. **15** And he shall not profane his seed among his people; for I am the LORD who sanctify him.

The verb of verse 15 is לָלַךְ, to profane, and the object is זָרַעוֹ, his seed. The high priest who marries a widow, a divorcee, a profaned woman or a harlot profanes his seed; the remedy is a virgin of his own people. At the Leningrad Codex the text reads וְלֹא יִלְלֵל זָרַעוֹ בְּעַמִּי, and the Greek keeps both terms: οὐ βεβηλώσει τὸ σπέρμα αὐτοῦ ἐν τῷ λαῷ αὐτοῦ. The Greek also adds a phrase the Hebrew does not have at verse 13, "a virgin of his own kin," ἐκ τοῦ γένους αὐτοῦ, and one manuscript repeats "kin" at verse 14 and drops "among his people" at verse 15. The Septuagint, in other words, was already tightening the priest's marriage toward kin when it was made.⁵

Jerome did something else. His Latin at verse 15 is *ne commisceat stirpem generis sui vulgo gentis suae*: let him not commingle the stock of his kin with the common people of his nation. The Hebrew says profane. Jerome says mingle. That is the verb he also used at Ezra 9:2, where the Hebrew does say mingle, and the effect of his choice is that in the Latin Bible the priest's marriage law and Ezra's complaint are one law expressed twice. In the Hebrew they are

⁴ Leningrad p. 229, middle and left columns. Kittel, *Biblia Hebraica*, 2nd ed., Pars II (Leipzig 1909), p. 1197, note b at Ezra 9:1: "frt l c 8,66 זָרַעוֹ." The proposal is discussed in Part 4.1.

⁵ Leningrad p. 142, middle column; Swete I p. 233, with apparatus: 14 λαου] γενους F; 15 om εν τω λαου F.

not. The Hebrew of Leviticus profanes; the Hebrew of Ezra mingles; the two texts share the word seed and nothing else. Any argument that Leviticus 21 already forbade the mixing of seed rests on the Vulgate, and the Douay tradition inherited it.⁶

The English translators knew what the priest's law was about. The Geneva note at verse 15 explains "defile his sede" as "By marrying anie vnchaste or defamed woman." The 1611 heading over the chapter reads simply "Of their Mariages." Both render the verb as profane, and neither connects the verse to the nations.⁷

Numbers 25 completes the set. Israel at Shittim "began to commit harlotry with the daughters of Moab," and the sin is named in the next verse: "they called the people unto the sacrifices of their gods; and the people did eat, and bowed down to their gods. And Israel joined himself unto the Baal of Peor." The Midianite woman enters at verse 6, and Phinehas kills her and her Israelite husband. The reward is stated at verses 12 and 13, and it is the one place in the Torah where a seed is promised for an act against a foreign union: "My covenant of peace ... the covenant of an everlasting priesthood," to Phinehas "and to his seed after him." It is a priestly seed, and the offence it answers is sacrifice to a foreign god.⁸

Read in their own terms, then, the separation texts before the exile are four. One forbids marriage alliance with the seven nations because it leads to other gods and because Israel is a holy people. One bars Ammon and Moab from the assembly for a deed and admits Edom and Egypt at the third generation. One forbids the priest to profane his seed by an unfit marriage. One punishes sacrifice to Baal of Peor and rewards the priest who stopped it with a covenant for his seed. Every reason clause is religious or priestly. No text names a foreign people as unclean in

⁶ Vulgate 1592 fol. 101 (Lev. 21:15) and fol. 406 (Ezra 9:2, *commiscuerunt semen sanctum*); the Tournai printing of 1881 reads the same at pp. 80 and 316. Read at the image.

⁷ Geneva 1560 fol. 55v, note l; 1611, Lev. 21, chapter head. Read at the image.

⁸ Leningrad pp. 185–186; Num. 25:1–3, 6–13 (JPS 1917).

itself; no text speaks of a holy seed; and the two texts that speak of seed at all speak of the priest's. That is the inheritance Ezra had, and Part 4 will show what he made of it.

1.3 The Narratives of Inclusion

The law says who may come near. The narratives say who did, and the line of David runs through them.

The first is Tamar. Judah "saw there a daughter of a certain Canaanite whose name was Shua; and he took her," and by her had three sons. For the eldest he "took a wife ... and her name was Tamar"; her people are not given. The story turns on the word seed, זֶרַע, used three times in two verses of the duty owed to a dead brother: Onan is told to "raise up seed to thy brother," knows "that the seed would not be his," and spills it "lest he should give seed to his brother." When Tamar, disguised, obtains from Judah what his sons withheld, and is brought out to be burned, Judah's verdict is צִדְקָה מְאֹדָּה, "She is more righteous than I." The twins are Perez and Zerah, and Perez heads the genealogy of David. The one text in Genesis that dwells on seed as a duty is the story of a Canaanite marriage and a foreign or unplaced daughter-in-law, and it ends in the ancestor of the king. Later readers felt the difficulty: the book of Jubilees, which Part 6 reads, makes Er hate Tamar because his mother was a Canaanite, and makes Tamar an Aramaean. Genesis says neither.¹ Bertholet, in his cultural history of 1919, took Judah's Canaanite marriage as history in miniature: the tribe of Judah was "strongly interspersed with Canaanite elements," intermarriage was the ordinary way in which "the original distinction

¹ Gen. 38 at Leningrad pp. 50 (left column) and 51; Ruth 4:12, 18. Jubilees 41 as reported by Bertholet, p. 309; Charles's edition is read in Part 6. 1 Chr. 2:3–4, 17 at Leningrad p. 660, middle and left columns, read at the image: Judah's sons זְרָח וְאֶת פְּרִץ וְאֶת יִלְדָּה לוֹ אֶת פְּרִץ וְאֶת זְרָח, and Amasa's father הִישְׁמַעֲאֵלִי; the Chronicler keeps the foreign mothers and the Ishmaelite father in David's line.

between the settled and the incoming" was effaced, and the fusion it accomplished explains the swelling numbers of the early monarchy; his sentence on the outcome is that "Israel's political victory over Canaan meant that culturally Israel became subject to Canaan." The story of Tamar stands, on that reading, at the head of a tribe made by intermarriage.²

The second is Rahab. Her speech to the spies is a confession in Deuteronomy's own words: "the LORD your God, He is God in heaven above, and on earth beneath." She asks for חֶסֶד, covenant kindness, and a "true token," and receives an oath. When the city falls, "Rahab the harlot, and her father's household, and all that she had, did Joshua save alive; and she dwelt in the midst of Israel, unto this day." Bertholet counted her clan, living in Benjamin "unto this day," among the remnants of the old population who lived in Israel "deep into the time of the kings." Her admission is by confession and by oath; nothing in the text circumcises her, and nothing marries her.³

The third is Ruth, and she is the book's case in chief, because the text uses Ezra's word. When Naomi sends her daughters-in-law home, she says of Orpah that she "is gone back unto her people, and unto her god," people and god being for the narrator one thing. Ruth's answer reverses both: "thy people shall be my people, and thy God my God." In the field she asks Boaz why he has noticed her, "seeing I am a foreigner," and the word is נִכְרִיָּה, the feminine of the word Ezra and Nehemiah use for the wives who were put away. Boaz's reply is that she has come "unto a people that thou knewest not heretofore," to take refuge under the wings of the God of

² Bertholet, *Kulturgeschichte Israels* (Göttingen 1919), p. 105, read at the image: "gerade dieser Stamm stark mit kanaanitischen Elementen durchsetzt war"; "Je mehr sich ... der ursprüngliche Unterschied von Eingesessenen und Zugekommenen verwischt, um so häufiger werden Zwischenheiraten"; "Israels politischer Sieg über Kanaan bedeutete, daß kulturell Israel Kanaan untertan wurde." His n. 7 refers to his own *Stellung* (1896), pp. 63 ff., and n. 9 to Eduard Meyer, *ZAW* VI (1886), p. 10, for the suggestion that Judah had scarcely any Hebrew elements at all. The translations are the book's.

³ Josh. 2:9–14 at Leningrad p. 248, middle and left columns; 6:22–25 at p. 253, right column; Deut. 4:39; Bertholet p. 5, at the image.

Israel. At the gate he takes "Ruth the Moabite" to wife "to raise up the name of the dead upon his inheritance," and the elders bless the marriage in the two genealogies the book has already met: "The LORD make the woman that is come into thy house like Rachel and like Leah, which two did build the house of Israel ... and let thy house be like the house of Perez, whom Tamar bore unto Judah, of the seed which the LORD shall give thee of this young woman." The seed, מְיֻזָּרָה, is to come "of this young woman," the Moabite; the son is Obed, "the father of Jesse, the father of David"; and the book closes with ten generations from Perez to David, so that the line of the king is drawn, in the text's own genealogy, through Tamar at one end and Ruth at the other. Deuteronomy 23 had barred the Moabite from the assembly to the tenth generation. Ruth is the tenth name but two.⁴

When Ruth was written is disputed, and the dispute does not change what it says. Geiger held, and Bertholet agreed, that the book came from the party opposed to the zealots under Ezra and Nehemiah, "a tract of controversy and of peace," teaching "that among Moabite women too one must distinguish," and that its principle was the proselyte's: "whoever wishes to belong to the people of the Jews must thereby also accept its God." If that is right, the argument of Ezra 10 had an answer in its own generation. If the book is older, as its language and its interest in the levirate, the duty of a brother to marry a dead brother's widow, suggest to others, then the tradition Ezra inherited already carried a Moabite great-grandmother of David whose admission was by cleaving to a people and its God. On either reading, Ruth's standing is made by adherence, and the seed of David is given "of" her.⁵

⁴ Ruth 1:15–17, 2:10–12, 4:10–22 at Leningrad pp. 846–850 (the book stands between Proverbs and the Song of Songs in this manuscript); Ezra 10:2, Neh. 13:26–27 for נְכָרִיּוֹת; Deut. 23:4 (Heb.) at Part 1.2. The Greek ξένη, the Latin peregrina mulier and JPS's foreigner keep נְכָרִיָּה apart from גֵּר; the Geneva and the 1611 level both to stranger.

⁵ Bertholet, pp. 67 and 145, at the image, citing Geiger, *Urschrift*, pp. 48 ff., 52; Driver, *Introduction*, 4th ed. (Edinburgh 1892), pp. 426–427, read at the image: "nor can the present writer, at any rate, satisfy himself that

The fourth is a marriage the text does not remark on at all. Bathsheba is "the daughter of Eliam, the wife of Uriah the Hittite." Her father is an Israelite name; her husband is a foreigner in the king's service, an officer whom the narrative treats exactly as it treats the Israelite captains, and whose wrong is that he is murdered. Bertholet observed that Uriah's position "was not essentially different from that of a born Israelite," and that the marriage of a Hittite soldier to an Israelite woman shows "how much more favourably the strangers were placed among the old Israelites than, for instance, among the ancient Germans, where they might never marry a citizen." The sin of the chapter is David's; the marriage is nobody's. And the son of Bathsheba by David is Solomon, of whom the text says "and the LORD loved him."⁶

The fifth is Solomon's prayer at the dedication of the temple, and it concerns the outsider proper, the נָכְרִי.

1 KINGS 8:41–43 (JPS 1917)

⁴¹ Moreover concerning the stranger that is not of Thy people Israel, when he shall come out of a far country for Thy name's sake, **42** for they shall hear of Thy great name, and of Thy mighty hand, and of Thine outstretched arm; when he shall come and pray toward this house; **43** hear Thou in heaven Thy dwelling-place, and do according to all that the stranger calleth to Thee for; that all the peoples of the earth may know Thy name, to fear Thee, as doth Thy people Israel, and that they may know that Thy name is called upon this house which I have built.

The foreigner "that is not of Thy people Israel" is expected at the house, and God is asked to answer him, "that all the peoples of the earth may know Thy name, to fear Thee, as doth Thy people Israel." Bertholet assigned the prayer to "a much later time" than Solomon's, and most critics place it in the Deuteronomistic edition of Kings, in the exile. The book accepts the dating and notes what it entails: the century before Ezra produced a temple prayer that reserved a place

the Book is as late as the 5th cent. B.C."; the style "stands on a level with the best parts of Samuel"; the genealogy 4:18–22 "forms no integral part of the Book, and may well have been added long after".

⁶ 2 Sam. 11:1–12 at Leningrad pp. 351 (left column) and 352; 12:24 at p. 353, left column, where the Masorah reads "she called" (וַתִּקְרָא) for the text's "he called"; Bertholet pp. 39 and 61, at the image.

for the foreigner at prayer, and Third Isaiah, the critics' name for the prophecies of Isaiah 56–66, gave the foreigner who "joined himself to the LORD" a place in the house itself in the same century. Part 3 reads that text.⁷

Five narratives, then, and a pattern. Rahab is admitted by confession, Ruth by cleaving, Uriah by service, the foreigner at the temple by prayer, and Tamar by a righteousness Judah confesses. None is admitted by birth, and none is refused for it. The seed the narratives care about is the seed raised up for a dead man, and twice it is raised up through a foreign woman and becomes the seed of David. Bertholet found in the levirate the clearest expression of what he called Israel's "striking esteem for male offspring": its first duty is that the brother or nearest kinsman marry the widow "to raise up seed for the dead man," and his two examples are Judah's house and Ruth. The seed that the older law protected was a dead man's name on his inheritance, and the law let a Moabitess supply it.⁸

⁷ 1 Kgs 8:41–43 at Leningrad p. 386, right column; Bertholet p. 76, at the image; Isa. 56:6–7 at Part 3.3 (Vaticanus omits 41b–42a; Alexandrinus has it).

⁸ Bertholet, *Kulturgeschichte Israels*, p. 97, read at the image: "eine auffallende Hochschätzung männlicher Nachkommenschaft ... Sie führt u. a. zur Sitte des sogenannten Levirates, nach welcher es oberste Pflicht des Bruders oder sonstigen Nächstverwandten eines Verstorbenen ist, dessen Witwe zu heiraten, um dem Verstorbenen 'Samen zu wecken'," with n. 2 citing Deut. 25:5 ff., Gen. 38, Ruth 4:5 ff. and Matt. 22:24; whether the custom served an ancestor cult, as in India, he leaves open (n. 3, citing Jolly). The translation is the book's.

1.4 Women Who Led

Part 4.6 finds that in the assemblies of Ezra and Nehemiah the women are present at every gathering and absent from every decision, and asks whether that is a change. It is a change only if the earlier texts show something else. They do. This section reads three of them, so that the comparison has both ends.

JUDGES 4:4–5, 9 (JPS 1917)

⁴ Now Deborah, a prophetess, the wife of Lappidoth, she judged Israel at that time. **5** And she sat under the palm-tree of Deborah between Ramah and Beth-el in the hill-country of Ephraim; and the children of Israel came up to her for judgment ... **9** And she said: 'I will surely go with thee; notwithstanding the journey that thou takest shall not be for thy honour; for the LORD will give Sisera over into the hand of a woman.' And Deborah arose, and went with Barak to Kadesh.

Deborah is אִשָּׁה נְבִיאָה, a woman prophet, and הִיא שִׁפְטָה אֶת־יִשְׂרָאֵל, she judged Israel; the people "came up to her for judgment"; she summons the general, gives him the oracle, and goes with him when he will not go without her. The woman into whose hand Sisera is given is Jael, and Jael is the wife of Heber the Kenite, "of the children of Hobab the father-in-law of Moses," a clan of foreigners encamped in Israel. The song that follows, which Bertholet called "the oldest Hebrew document we know," has Deborah sing of herself: "the rulers ceased in Israel, they ceased, until that thou didst arise, Deborah, that thou didst arise a mother in Israel," and, "Awake, awake, Deborah; awake, awake, utter a song."¹

Micah, in the eighth century, names the leaders of the Exodus as three: "I sent before thee Moses, Aaron, and Miriam." The prophet's memory of the founding has a woman in it. The other Miriam text must be read too. In Numbers 12 Miriam and Aaron speak against Moses "because

¹ Judg. 4:4–9 at Leningrad p. 280, right column; 4:11, 17–22 at the middle and left columns; 5:7, 12 at p. 281, where the Song is written across the page in the Masoretic brick pattern; Bertholet p. 9.

of the Cushite woman whom he had married," and Miriam is struck with leprosy. Bertholet listed it among the old protests against foreign marriage. The one narrative in which a leader objects to a foreign wife is the one in which the objector is a woman, and she is punished for it.²

The third is Huldah.

2 KINGS 22:14–16 (JPS 1917)

¹⁴ So Hilkiah the priest, and Ahikam, and Achbor, and Shaphan, and Asaiah, went unto Huldah the prophetess, the wife of Shallum the son of Tikvah, the son of Harhas, keeper of the wardrobe; now she dwelt in Jerusalem in the second quarter; and they spoke with her. **15** And she said unto them: 'Thus saith the LORD, the God of Israel: Tell ye the man that sent you unto me: **16** Thus saith the LORD: Behold, I will bring evil upon this place, and upon the inhabitants thereof, even all the words of the book which the king of Judah hath read.'

A book has been found in the temple. The high priest and the king's secretary do not certify it; they take it to a woman, and she does. She speaks the formula of the prophets, **פֶּה אָמַר יְהוָה**, delivers the oracle against the city and the promise to the king, and on her word Josiah gathers the people and makes the covenant "to confirm the words of this covenant that were written in this book." The book that most critics identify with the core of Deuteronomy, the law whose marriage rule Part 1.2 read, entered the life of Judah on a woman's authentication.³

Deborah judged and prophesied and sang; Miriam is named beside Moses and Aaron; Huldah certified the law. Two centuries later the women of Yehud weep at Ezra's prayer, stand in the assembly to hear the law read, swear the covenant, and are counted; they are not asked, and they do not speak. The change is in the texts, and it is measured at both ends. Its cause is not.

² Mic. 6:4 at Leningrad p. 634, right column; Exod. 15:20–21 at Leningrad p. 85, full width below the Song's brick layout (ותקח מרים הנביאה אחות אהרן את התוף בידה); Num. 12:1–15 at Leningrad p. 169, right and middle columns (ותדבר מרים ואהרן במשה על אדות האשה הכשית; והנה מרים מצרעת כשלג), all read at the image; Bertholet p. 81.

³ 2 Kgs 22:13–20 and 23:1–3 at Leningrad p. 440, right and middle columns.

Part 5 finds that the one Persian datum available, the doctrine that the seed is the father's alone and the mother a vessel, points away from the change rather than toward it.⁴

⁴ Part 4.6 for the post-exilic assemblies; Part 5.3 for Boyce's datum.

1.5 What "Seed" Meant before 586

Three Hebrew texts use the word seed of a people or a lineage in a way that bears on Ezra's phrase, and each uses it differently. Parts 1.2 and 4.3 read them at the manuscript and at the versions. The result is gathered here because the argument of Part 4 turns on it.

Leviticus 21:15 has זָרַעוּ, his seed, of the high priest, with the verb profane. The seed is a priest's line; the danger is an unfit wife; the sphere is "among his people." Malachi 2:15 has זָרַע אֱלֹהִים, seed of God, in a verse the critics have found difficult at every other word but this one; the seed is the child of a Jewish marriage, and the wrong is the husband who puts away the wife of his youth. Ezra 9:2 has זָרַע הַקֹּדֶשׁ, the seed of holiness, the holy seed, with the verb mingle in the reflexive: the seed has mingled itself with the peoples of the lands.¹

Three constructions, then: *his seed*, *seed of God*, *seed of holiness*. Only the last joins seed to the word holy. Only the last joins seed to the verb mingle. Leviticus joins seed to profane; Malachi joins it to God and to the wife of one's youth. The one other text that puts holy and seed together, Isaiah 6:13, is missing from the oldest Greek manuscripts and stands in the margin of one of them under Theodotion's name; whether it is Isaiah's or a later hand's is a question the book states in Part 4.1 and does not decide.²

This is the book's first positive finding about the phrase. Ezra 9:2 is a coinage. Its parts are Israelite and older: the priest's seed from Leviticus, the holy people from Deuteronomy, the mingling from the vocabulary of Israel's own separation. Its combination is new. No text before

¹ Leningrad p. 142 (Lev. 21:15), p. 655 (Mal. 2:15), p. 909 (Ezra 9:2); readings in Parts 1.2, 4.1 and 4.3.

² Swete, *The Old Testament in Greek*, vol. III (1905), p. 111, apparatus at Isa. 6:13: αὐτῆς 2°] + θ' * σπέρμα ἅγιον το στήλωμα αὐτῆς Q^{mg}; Kittel, *Biblia Hebraica*, Pars II, p. 560, note c–c: "> 𐤅𐤁 𐤇." Read at the image.

it speaks of a holy seed that can be mingled, and no version of any earlier text, Greek, Latin or English, supplies one. Where the versions changed the earlier texts, they changed them toward Ezra, not away from him: the Septuagint tightened the priest's marriage to kin, and Jerome made the priest's profaning into a mingling. The Hebrew did neither. The reader who wants to know what seed meant before 586 must therefore read the Hebrew, and in the Hebrew it meant a priest's line, a child of a marriage, and, once, a people's stock that would survive the axe.

PART 2 — THE FALL OF BABYLON, 539 BC

2.1 The Record: The Nabonidus Chronicle and the Cylinder of Cyrus

The fall of Babylon is one of the few events in the Hebrew Bible for which the other side kept its own account, in its own script, on clay that survives. The book reads that account first, in the two editions on its shelf, and reads Ezra's and Daniel's narratives afterwards. The editions are Rogers's English of 1912, in *Cuneiform Parallels to the Old Testament*, and Weissbach's German of 1911, in *Die Keilinschriften der Achämeniden*; both descend from the copy published in the fifth volume of Rawlinson's *Cuneiform Inscriptions of Western Asia* and from Hagen's edition of 1891, which is also on the shelf.¹

The Chronicle gives the sequence. Nabonidus, "son of Nabu-balatsu-iqbi," was a restorer of temples and a searcher of old foundations who spent the middle years of his reign at Tema in Arabia and, in the words Rogers translates, "did not even enter Babylon to pay reverence at the great shrine of the gods" in 549 and again in 547, so that the New Year festival of Marduk could not be held. The command of the army and the administration had passed to his son Belshazzar. In the king's seventeenth year Cyrus, who had taken Ecbatana in 550 and Sardis in 546, crossed the Tigris; the king's mother died at Dur-Karasu on the day he crossed; Belshazzar was defeated at Opis; Sippar was taken on the fourteenth of Tammuz "without a blow"; and two days later Ugbaru, governor of Gutium, entered Babylon "as the gates swung open without resistance."

¹ Rogers, *Cuneiform Parallels to the Old Testament* (1912), pp. 371–384; Weissbach, *Die Keilinschriften der Achämeniden* (1911), pp. 2–7; Hagen, *Keilschrifturkunden zur Geschichte des Königs Cyrus* (1891). Rogers's note at p. 380 gives the publication history.

Nabonidus was taken prisoner. Cyrus entered later in the year, and for a time Cambyses was called king of Babylon.²

The Cylinder gives the theology, and the theology is Marduk's. The first nineteen lines are an indictment of the "weakling" who "caused the daily offering to cease," against whom stands "the worship of Marduk, king of the gods." Because of him "the lord of the gods became furiously angry and left their land; the gods, who dwelt among them, left their homes, in anger over his bringing into Babylon" the gods of other cities. Marduk "sought a righteous prince, after his own heart," and "Cyrus, king of Anshan, he called by name." "Without battle and conflict he permitted him to enter Babylon ... Nabonidus, the king, who did not fear him, he delivered into his hand." The people "kissed his feet." Weissbach's German renders the same lines the same way: Marduk "suchte einen gerechten Fürsten nach Herzenswunsch"; it was Marduk who delivered "Nabu-na'id, den König, der ihn nicht verehrte," into Cyrus's hands.³

Then Cyrus speaks. "I am Cyrus, king of the world ... son of Cambyses ... grandson of Cyrus ... great-grandson of Teispes ... eternal seed of royalty, whose rule Bel and Nabu love." He gave "daily care" to Marduk's worship; Marduk "graciously blessed me, Cyrus, the king who worships him, and Cambyses, my own son." The kings from the Upper to the Lower Sea "brought me their heavy tribute." And then the clause on which every later claim about the return depends:

From ... to Asshur and Susa, Agade, Eshnunak, Zamban, Meturnu, Deri, with the territory of the land of Gutium, the cities on the other side of the Tigris ... the gods, who dwelt in them, I brought them back to their places, and caused them to dwell in a habitation for all time. All their inhabitants I collected and restored them to their dwelling places. And the gods of Shumer and Akkad, whom

² Rogers pp. 371–378, the Chronicle in his narrative and translation. Read at the image; Rogers prints the Chronicle in narrative only.

³ Rogers pp. 380–381, lines 1–19; Weissbach pp. 2–5. Read at the image.

Nabonidus ... had brought into Babylon, by command of Marduk, the great lord, I caused them peacefully to take up their dwelling.⁴

The clause returns gods to their cities, and the inhabitants with the gods, "by command of Marduk." It names Assyrian and Elamite and trans-Tigris cities. It does not name Judah, Jerusalem or any people west of the Euphrates. It contains no Iranian deity, no word of purity, no reference to any god but Marduk, Bel and Nabu. Cyrus's closing prayer is that all the restored gods "pray daily before Bel and Nabu for long life for me" and say to Marduk, "May Cyrus, the king who worships thee, and Cambyses, his son ..."⁵

A second document of the same reign, the cylinder of Nabonidus from Ur, answers the Cylinder's charge with a confession. Nabonidus calls himself "supporter of E-sagila and E-zida, who fears the great gods," and then prays not to Marduk but to Sin, "the lord of the gods of heaven and earth, the king of the gods, the gods of gods," asking to be saved "from sinning against thy great godhead" and asking Sin to "implant in the heart" of Belshazzar "the fear of thy great divinity." The king's own theology was the moon god's. Marduk's priesthood in Babylon had reason to call him a weakling who neglected the daily offering, and reason to receive a conqueror who would restore it.⁶

So the record, read before the report, establishes four things. Babylon fell without a siege, its gates opened by a governor of Gutium two days after Sippar. The conqueror presented himself as Marduk's chosen, in Marduk's temple, in Marduk's language, and made no claim for any god of his own. The restoration he recorded was of gods and their peoples to Mesopotamian cities east of the Tigris, by Marduk's command. And the king he replaced had turned from

⁴ Rogers pp. 382–383, lines 20–34. Read at the image.

⁵ Rogers p. 383, lines 34–36. Read at the image.

⁶ Rogers pp. 378–379, the Ur cylinder, cols. I–II. Read at the image.

Marduk to Sin. Nothing in the record is Judaeian and nothing in it is Iranian. Parts 2.4 and 2.5 ask what the exiles made of it; Parts 2.3 and 3.5, what the Jewish narrators later made of it. The record should be held in mind while reading them.

2.2 The Greek Narrative

Part 2.1 read the two Babylonian documents. The Greeks are the other witness, and it was through the Greeks that Europe knew the fall of Babylon until the tablets were read in the nineteenth century. Herodotus wrote within a century of the event, from what "the residents at Babylon declare"; Xenophon wrote a century and a half after it, a romance of Cyrus's education in which history is a vehicle. Both have a siege, a river turned from its bed, a night of festival, and an army walking into the city along the drained channel. Neither has a Persian god, a Jewish exile, or a decree of return.¹

Herodotus's account is brief. Cyrus marched against "the son of this princess [Nitocris], who bore the same name as his father Labynetos," lost a summer dividing the Gyndes into three hundred and sixty channels to punish it for drowning a sacred white horse, fought one battle before the walls, and, finding the Babylonians provisioned "for many years," diverted the Euphrates into the marsh Nitocris had dug. His men entered where the river "had now sunk so as to reach about midway up a man's thigh."

Herodotus I.191 (Rawlinson)

Owing to the vast size of the place, the inhabitants of the central parts (as the residents at Babylon declare) long after the outer portions of the town were taken, knew nothing of what had chanced, but as they were engaged in a festival,

¹ Herodotus I.188–191, tr. Rawlinson, *The History of Herodotus*, vol. I (New York 1861), pp. 252–255; Xenophon, *Cyropaedia* VII.5.10–36, tr. Miller, Loeb Classical Library, vol. II (1914), pp. 265–277.

continued dancing and revelling until they learnt the capture but too certainly. Such, then, were the circumstances of the first taking of Babylon.

Xenophon has the same river and the same night. Cyrus opens his trenches, the water runs off, "the bed of the river, where it traversed the city, became passable for men," and Gobryas, a Babylonian deserter who knows the streets, tells him that "in view of the revelry, it would not be at all surprising if the gates leading to the palace were open, for all the city is feasting this night." Gadatas and Gobryas lead the assault to the palace, find the guard "drinking by a blazing fire," break in, and come upon the king "already risen with his dagger in his hand." They kill him. The king has no name.²

The commentators who read these pages with the tablets in hand found them wrong in the manner and right in the fact. How and Wells, in the Oxford commentary of 1912, allow one battle near Opis "as H. says" and then correct him: "Meantime Gobryas, marching down the left bank of the Gyndes with a portion of the army, took Babylon by treachery, while the main defensive force was resisting Cyrus ... Even if these views be correct, the story told to H. was completely misleading; the city was taken by treachery." Henry Rawlinson, annotating his brother's translation in 1861, before the Chronicle was known, already inclined "to regard the whole story as a fable, embodying some popular tradition with regard to the origin of the great hydraulic works on the Diyálah." Yet on one detail the Oxford editors let Herodotus stand: "ὀπτήν. The 'feast' agrees with the well-known story in Dan. v."³

The Babylonian record, as Part 2.1 read it, is shorter and colder. The Chronicle has Cyrus defeat the army of Akkad at Opis; Sippar is taken without a blow; two days later "the van of the

² Xenophon, *Cyropaedia* VII.5.15–16, 24–25, 27–30 (Miller), Loeb II, pp. 267–275; p. 273 read at the image.

³ How and Wells, *A Commentary on Herodotus*, vol. I (Oxford 1912), pp. 146–147, on I.189–191; H. C. Rawlinson's bracketed note in Rawlinson I, p. 254. How and Wells at the text layer; Rawlinson at the image.

army of Cyrus entered Babylon as the gates swung open without resistance to receive it. Cyrus was not in command, but had remained behind, while Ugbaru (Gobryas), governor of Gutium, led the advance. Nabonidus was taken prisoner in the city." Cyrus himself entered seventeen days after his general. Berossus, the Babylonian priest writing in Greek two centuries later and preserved by Josephus, has a battle, a flight to Borsippa, a surrender, and a pension: Cyrus "gave him Carmania, as a place for him to inhabit in ... Accordingly Nabonnedus spent the rest of his time in that country, and there died." No feast, no river, no slaughter in the streets. Montgomery's summary of 1927 stands: "historians now universally reject the tradition of a forcible capture of Babylon in view of the plain record of the Nabonidus-Cyrus Chronicle that Cyrus' troops under Gubaru peacefully occupied the city and captured Nabonidus in it."⁴

What the Greek narrative gives this book is therefore not the event but the memory of it. Within a hundred years of 539 the people of Babylon were telling a Greek traveller that their city had fallen by a trick on a night of festival, and within two hundred a Greek soldier could put a nameless king with a dagger in his hand at the end of the story. That memory, and not the Chronicle, is what the author of Daniel 5 shared.

⁴ The Chronicle as narrated in Rogers, *Cuneiform Parallels to the Old Testament* (1912), p. 376, and as rendered in Montgomery, *A Critical and Exegetical Commentary on the Book of Daniel*, ICC (1927), pp. 68–69; Berossus in Josephus, *Against Apion* I.20, Whiston's translation (New York c1855), p. 794; Montgomery, p. 69. Rogers's narrative gives the month of the entry as Tammuz, Dougherty and Montgomery as Tishri; the book does not fix the month.

2.3 Daniel 5 against the Record

The fifth chapter of Daniel is the one place in the Hebrew Bible that narrates the night Babylon fell, and it narrates it as Herodotus and Xenophon did, with a feast. It is in Aramaic. In the Leningrad Codex the king's name is spelled with a letter the printed Bibles drop, and the verse that ends the chapter in English Bibles opens the next chapter in the manuscript.

DANIEL 5:30–31 (JPS 1917)

³⁰ In that night Belshazzar the Chaldean king was slain. **31** And Darius the Mede received the kingdom, being about threescore and two years old.

Between "was slain" and "And Darius" the Leningrad scribe left a section break, and the Masoretic numbering counts the second sentence as the first verse of chapter 6. The manuscript, that is, attaches Darius the Mede to the story of the lions' den, not to the story of the feast. The English chapter division is Jerome's and the Reformers'; the Hebrew tradition read the fall of Babylon as ending with a dead king and nothing more.¹

Two statements in the chapter have no support in any record, and one has support in the cuneiform record alone. The chapter makes Belshazzar king and calls Nebuchadnezzar his father; and it makes a Median king Darius, aged sixty-two, receive the kingdom. The tablets know Belshazzar. He is Bel-shar-usur, first-born son of Nabonidus, named in his father's prayer at Ur, "the son of the king" who commanded the army in Akkad for years while his father lived at Tema in Arabia. Dougherty, who collected every text in 1929, put it without qualification: "It is an incontrovertible fact that there was a Babylonian prince by the name of Belshazzar; that he acted as co-regent in Babylonia during the absence of his father in Arabia is equally

¹ Daniel 5:30–6:1 (Heb.) at the Leningrad Codex p. 889, middle column, with the section break and the spelling בלשאצר. Dan. 5:1–5 at p. 887, left column, transcribed: the feast for the thousand, the Jerusalem vessels, the consorts and concubines, the gods of six materials; no Persian in the scene.

indisputable." The tablets do not make him king, do not make him Nebuchadnezzar's son, and do not record his death. The Chronicle's broken line about a death and a mourning in Akkad in the months after the capture has been filled with "the son of the king" by most scholars and left empty by Dougherty; Montgomery, admiring the scepticism, added his own: the conqueror's record would not have marked "the death of a prince who was, when free and alive, a hopeless rebel. How and where Belsh. came to his end we do not learn from the Akk. documents."²

Darius the Mede has no such anchor. Bevan wrote in 1892 that the difficulties over Belshazzar "shrink into insignificance in comparison with the statements as to 'Darius the Mede.' It need scarcely be said that of a Median king Darius reigning over Babylon before the accession of Cyrus, there is no trace whatsoever in history. Both Greek and Oriental sources agree in testifying that Cyrus put an end to the Median dynasty and annexed Media to his dominions several years before the taking of Babylon." Boutflower, defending the book in 1923, could offer only that "the only personage either in the Babylonian Chronicle or in Xenophon 'receiving the kingdom' ... from the last of the native rulers, was Gobryas ... In no case, however, is he called Darius." Montgomery reviewed six identifications and refused them all: "the more we know of Gobryas the less can we assign him royal rank ... For explanation of the story we can only make surmises," the likeliest being that "the captures of Babylon by Gobryas and Darius I may have been compounded, and in so far we may have a residuum of tradition."³

The chapter's account of the night itself is the Greeks'. A feast, a thousand lords, the king and his consorts drinking from the temple vessels, a writing on the plaster of the palace wall, and

² Dougherty, *Nabonidus and Belshazzar*, Yale Oriental Series Researches XV (1929), pp. 193, 175, and the eight earlier hypotheses at pp. 13–14; Prince, *Mene Mene Tekel Upharsin* (Baltimore 1893), pp. 27–28, on the Ur inscriptions and the annals; Montgomery, p. 69. The Ur prayer is quoted in Part 2.1 from Rogers.

³ Bevan, *A Short Commentary on the Book of Daniel* (Cambridge 1892), p. 22; Boutflower, *In and Around the Book of Daniel* (1923), p. 2; Montgomery, pp. 63–65.

then, without a word of siege or river or assault, "in that night." Prince, whose Johns Hopkins dissertation of 1893 was the first full study of the chapter after the tablets, held the tone exactly: the author "could not, as they thought, have had this idea in mind in calling him king of Babylon ... There can be little doubt that both of these statements were made by the author of Daniel in perfect good faith." The chapter is taken here as the critics from Prince to Montgomery take it: a memory of 539 set down some three and a half centuries later. It preserved one fact the Greeks had lost, that a prince named Belshazzar wielded royal power in Babylon at the end. It shared with the Greeks the festival that the conqueror's own record does not mention. Rawlinson's harmony of 1861, in which Belshazzar was slain "amid the confusion and the darkness ... by an unknown hand" while his father held Borsippa, was the best that could be done before the Chronicle; it is quoted here as the form the reconciliation took, not as a result.⁴

None of this bears on Persia's religion. The chapter's Persians are "the Medes and Persians" of the writing on the wall, a pair of nations to whom a kingdom is given; its only theology is Daniel's, that "the Most High God" gave Nebuchadnezzar his kingdom and took Belshazzar's away for pride. There is no Ahuramazda, no Magus, no purity, and no Jewish wife.

The date of the chapter does not change this. Whether Daniel was written at the Babylonian court in the sixth century, as the conservative reading holds, or in Judaea under Antiochus IV in the second, as Porphyry first argued and most critics since have held, the feast, the writing and the transfer of the kingdom to "the Medes and Persians" are the same words with

⁴ Prince, p. 28; Rawlinson I, Essay VIII §§ 24–26, pp. 424–425, with n. 8 on the two difficulties; Driver, *The Book of Daniel*, Cambridge Bible (1900), p. xxx, for the received dating of the scene "on the eve of Cyrus' conquest of Babylon (B.C. 538)." Rawlinson's Essay VIII at the image; Prince and Driver at the text layer.

the same silence about Persia's god. The book records the two positions and does not decide between them; nothing in Part 2 depends on the choice.⁵

⁵ The conservative statement is Yamauchi, "Hermeneutical Issues in the Book of Daniel," *JETS* 23 (1980), pp. 13–21 ("no insuperable barriers to accepting a sixth-century date," p. 13; the Akkadian prophecies as antecedents, pp. 15–16; Porphyry through Jerome, p. 17; Casey 1976 for the Maccabean date, p. 17); in copyright, cited at the print pagination. Driver, *The Book of Daniel* (Cambridge 1900), pp. xlvii ff., for the critical case at the shelf's own edition.

2.4 The Oracles against Babylon and Their Date

The prophets foresaw the fall of Babylon, and they foresaw it wrongly. That is this section's finding at its bluntest. It matters because the oracles, not the Cylinder, formed the Jewish memory of 539.

The oracles are four: Isaiah 13:1–14:23, Isaiah 21:1–10, Isaiah 47, and Jeremiah 50–51, with the shorter word of Jeremiah 25:12 that after seventy years "I will punish the king of Babylon, and that nation ... and I will make it perpetual desolations." What they foresee is a sack. "Babylon, the glory of kingdoms, the beauty of the Chaldeans' pride, shall be as when God overthrew Sodom and Gomorrah. It shall never be inhabited." "I will ... cut off from Babylon name and remnant, and offshoot and offspring." "Fallen, fallen is Babylon; and all the graven images of her gods are broken unto the ground." "Babylon is taken, Bel is put to shame, Merodach is dismayed." "The mighty men of Babylon have forborne to fight, they remain in their strongholds ... Her dwelling-places are set on fire; her bars are broken. One post runneth to meet another ... to tell the king of Babylon that his city is taken on every quarter." The virgin daughter of Babylon is to sit in the dust and grind at the millstones, because "thou didst show them no mercy."¹

None of it happened. The city was entered without battle; the gods of Akkad were returned to their cities by the conqueror's order; the conqueror gave "daily care" to Marduk's worship and had Marduk call him by name; Babylon remained a royal capital for two centuries

¹ Isa. 13:19–20, 14:22, 21:9, 47:1–6; Jer. 25:12, 50:2, 51:30–31, quoted in the Jewish Publication Society version of 1917 and checked against the Hebrew at the Leningrad Codex: Isa. 13 at p. 454, 14 at p. 455, 21 at pp. 459–460, 47 at p. 481; Jer. 50 at pp. 551–553, 51 at pp. 553–555. Jer. 25:12 at p. 522, right column, foot (וְהָיָה כְּמִלְאוֹת) (שְׁבַעִים שָׁנָה אֶפְקֹד עַל מֶלֶךְ בָּבֶל), with the cup of wrath and Sheshach drinking last at 25:26–27 in the left column, read at the image.

more. Henry Rawlinson, who believed the Bible and knew the site, wrote in 1861 of the demolition stories that "in every case there is undoubtedly an exaggeration. The conqueror was satisfied with dismantling the city." The oracles' Babylon, stormed and burned and given to the bitter, is the reverse of the Cylinder's. A reader who wants to know what the exiles expected of the fall must read the oracles. A reader who wants to know what happened must read the Cylinder and the Chronicle. The two readers will not meet.²

Two details of the oracles reappear in the narratives of Parts 2.2 and 2.3. The first is the feast. "Prepare the table, set the watch, eat, drink; arise, ye princes, anoint the shield," says the oracle of Isaiah 21, and Jeremiah 51 twice has the LORD make Babylon's princes and wise men drunk at their feasts "that they may sleep a perpetual sleep, and not wake." The second is the river: "a drought is upon her waters, and they shall be dried up"; "I will dry up her sea, and make her fountain dry"; "the fords are seized." The night of festival and the emptied river that Herodotus heard from the residents of Babylon, and that Daniel 5 narrates without siege or river, were expectations written down, on Driver's dating, before the city fell. Daniel's feast therefore has two possible sources, the story the Greeks were told and the oracle the exiles had read, and the book does not choose between them. A third detail runs the other way. The destroyer in all four oracles is Media, with Elam at her side, "Behold, I will stir up the Medes against them," and Persia is not named in any of them. Cyrus and Persia enter the Hebrew Bible in Isaiah 44 and 45, in the other voice of the exile that Part 5.2 reads.³

² Rawlinson I, p. 425 n. 5; the Cylinder at Part 2.1 (Rogers, pp. 380–383); the return of the gods at Montgomery, p. 68 (the Chronicle).

³ Isa. 21:5 (Leningrad p. 459, left column); Jer. 51:39, 57 (pp. 554 left, 555 middle); Jer. 50:38, 51:36, 51:32 (pp. 552 left, 554 left, 554 middle); Isa. 13:17, 21:2, Jer. 51:11, 28 for Media and Elam (pp. 454 left, 459 middle, 553 left, 554 middle). Translations are the book's from the Hebrew, checked against JPS 1917.

When were the oracles written? The shelf's critics agree on the exile and disagree on the decade, and they agree that the oracles were written before the event and not after it. Driver, in the Introduction that fixed the English consensus, places Isaiah 13–14 among exilic prophecies in which "the Jews are represented as in exile, held in thralldom by the Babylonians, but shortly to be released in consequence of the capture of Babylon by the Medes." Of Jeremiah 50–51 he writes that "the point of view is not that of Jer. either in or about the year 593. At that time, as we know from c. 27–29, Jer. was opposing earnestly the prophets who were promising that shortly Babylon would fall, and the exiles be restored; he was even (c. 29) exhorting the exiles to settle down contentedly in their new home. But the prophet who speaks in c. 50–51, so far from counselling patience, uses all the arts of language for the purpose of inspiring the exiles with the hopes of a speedy release." His conclusion: "the work of a follower of Jeremiah ... who wrote no very long time before the fall of Babylon, from the same general standpoint as Is. 13, 2–14, 23. c. 40–66. (It is not, therefore, in the judgment of the present writer, a *vaticinium ex eventu*.)", that is, not a prophecy written after the event. Isaiah 21, whose prophet is appalled rather than exultant, he refers with Cheyne to an Assyrian siege of Babylon in Isaiah's own day. At the two ends of the shelf stand the positions the consensus lies between: Stuart's tract of 1880, arguing that anonymity would have exposed "the elders of Israel to a cruel death" and that the oracles are therefore Isaiah's and Jeremiah's own; and Torrey's book of 1928, arguing that the names of Cyrus and Babylon in Isaiah 40–55 are "palpable interpolations" and asking why "in chapter 47, which is devoted wholly to Babylon, there should be no mention of deportation, captivity, or return."⁴

⁴ Driver, *An Introduction to the Literature of the Old Testament*, 4th ed. (Edinburgh 1892), pp. 201 (Isa. 13–14), 205–206 (Isa. 21), 248–249 (Jer. 50–51); Stuart, *The Fall of Babylon, Its Prediction Not Anonymous* (Edinburgh 1880), pp. 5–6; Torrey, *The Second Isaiah* (New York 1928), pp. 38–40.

Two consequences follow for Part 5. The first is that Jeremiah 50–51's hatred of Babylon and Second Isaiah's welcome of Cyrus, in Isaiah 40–55, belong, on Driver's dating, to the same decade and the same community, and Part 5.2 finds that the welcome runs through Yahweh's hand and names no Persian god. The second is that the exiles' expectation of the fall was an expectation of vengeance on idols, "Bel is put to shame, Merodach is dismayed," and the fall as the conqueror recorded it was a Marduk-worshipper's entry into Marduk's city. Whatever the exiles learned from Persia, they did not learn it from the night of 539 as they had imagined it. A third consequence belongs to Parts 1 and 3. The oracle of Isaiah 13–14 opens its word of return with a stranger: "For the LORD will have compassion on Jacob, and will yet choose Israel, and set them in their own land; and the stranger shall join himself with them, and they shall cleave to the house of Jacob." The verb of joining is the one Third Isaiah uses of the foreigner who has "joined himself to the LORD." The exiles who expected Babylon's fall expected the return to gather strangers into Jacob.⁵

⁵ Isa. 14:1–2 at the Leningrad Codex p. 455, right column; Isa. 56:3, 6 at pp. 487–488 (Part 3.3). The verb is גלוי in both. The Old Greek transliterates הגר as γιώρας; Q's margin records the Three's προσήλυτος.

2.5 The Exiles' Posture

One more text of the exile belongs here. It is the only instruction on marriage that a prophet addressed to the exiles in Babylon, and it is the reverse of Ezra's.

JEREMIAH 29:4–7 (JPS 1917)

⁴ Thus saith the LORD of hosts, the God of Israel, unto all the captivity, whom I have caused to be carried away captive from Jerusalem unto Babylon: **5** Build ye houses, and dwell in them, and plant gardens, and eat the fruit of them; **6** take ye wives, and beget sons and daughters; and take wives for your sons, and give your daughters to husbands, that they may bear sons and daughters; and multiply ye there, and be not diminished. **7** And seek the peace of the city whither I have caused you to be carried away captive, and pray unto the LORD for it; for in the peace thereof shall ye have peace.

Jeremiah's letter, sent to the first deportation of 597, commands settlement, marriage, increase, and prayer for Babylon. It says nothing about whom the exiles' sons and daughters should marry; the same prophet had called Nebuchadnezzar "My servant" and told the nations to serve "him, and his son, and his son's son, until the time of his own land come." Driver read this letter as the fixed point from which Jeremiah 50–51 must be dated away: the man who wrote it was "exhorting the exiles to settle down contentedly in their new home," and the man who wrote the oracle was not.¹

The other voice of the exile is the psalm. "By the rivers of Babylon, there we sat down, yea, we wept, when we remembered Zion ... How shall we sing the LORD's song in a foreign land?" It remembers Jerusalem, curses Edom for the day of Jerusalem, and ends with the wish that Babylon's children be dashed against the rock. It is a song of loyalty to a city and of hatred for the captor. It too says nothing of marriage, of seed, or of separation from the peoples.²

¹ Jer. 29:4–7 at the Leningrad Codex p. 526, left column (29:8–14 at p. 527, right); 27:6–7; Driver, *Introduction*, p. 248.

² Ps. 137:1–9 (JPS), at the Leningrad Codex p. 793, middle column foot and left column.

Between these two texts lies the whole distance the book has to measure. In 597 the exiles were told to marry and multiply in Babylon and to pray for the city; in 539 they expected the city to burn and its gods to fall; in 458 the assembly of the exile in Jerusalem dissolved the marriages of a hundred and thirteen men because the seed was holy and had been mingled. Nothing in the exilic instructions to the exiles prepared the last step. Parts 3 and 4 ask where it came from. Part 5 finds that it did not come from Persia's account of itself.³

³ The count of a hundred and thirteen is the list of Ezra 10:18–43 as re-derived in Part 4.2.

PART 3 — THE GOLA: IDENTITY IN EXILE AND RETURN

3.1 Crisis Theology in Ezekiel and Lamentations

The people who made the rule of Ezra 9 called themselves the Gola, the exile, and the name was a claim. Part 3 asks what the exile had made of them, and it asks the exile's own texts, because the men who came back with Ezra brought their theology with them from Babylon and not from Persia. Two books speak from inside the catastrophe: Ezekiel, a priest deported in 597 and prophesying among the deportees by the river Chebar, and Lamentations, the voice of those who stayed in the ruined city. They disagree on the question that matters most here: whether standing before God is inherited.¹

Lamentations says that it is. "Our fathers have sinned, and are not; and we have borne their iniquities." The book opens with the widowed city, "she that was great among the nations, and princess among the provinces," and closes without an answer: "Wherefore dost Thou forget us for ever, and forsake us so long time? Turn Thou us unto Thee, O LORD, and we shall be turned; renew our days as of old. Thou canst not have utterly rejected us, and be exceeding wroth against us!" In the Leningrad Codex the last verse is followed by a blank and then the opening of Esther, and the Masoretic tradition, unwilling to end a book on that verse, directs that the previous one be read again. The theology is that of a people bearing a debt they did not incur.²

¹ Ezekiel's deportation with Jehoiachin in 597 and his prophecy "by the river Chebar" are the book's own datings (Ezek. 1:1–3; 33:21 "of our captivity"), read at the Leningrad Codex pp. 591–592; Lamentations is anonymous and undated, and the book follows the shelf's critics in reading it from Jerusalem after 586.

² Lam. 5:7, 1:1, 5:20–22 at the Leningrad Codex pp. 868 (left column), 864 (right column), 869 (right column, with the Esther incipit below the blank). The liturgical repetition of 5:21 after 5:22 is the synagogue's practice, not the manuscript's.

Ezekiel denies it, in the most explicit sentence on the subject in the Hebrew Bible.

EZEKIEL 18:2–4, 20 (JPS 1917)

² What mean ye, that ye use this proverb in the land of Israel, saying: The fathers have eaten sour grapes, and the children's teeth are set on edge? **3** As I live, saith the Lord GOD, ye shall not have occasion any more to use this proverb in Israel. **4** Behold, all souls are Mine; as the soul of the father, so also the soul of the son is Mine; the soul that sinneth, it shall die. ... **20** The soul that sinneth, it shall die; the son shall not bear the iniquity of the father with him, neither shall the father bear the iniquity of the son with him; the righteousness of the righteous shall be upon him, and the wickedness of the wicked shall be upon him.

The proverb Ezekiel quotes is the proposition Lamentations affirms. He rejects it for the exiles, in the exile, and he rejects it in the terms Part 4 finds absent from Ezra 9: conduct. The son does not bear the father's guilt; the righteous man's righteousness is his own; "return ye, and turn yourselves from all your transgressions." Whatever the Gola became, its prophet had told it that descent settled nothing.³

He told it so a second time, and against the people who stayed. Twice Ezekiel reports the claim that the inhabitants of Judah made against the deportees, and twice he reports it in the language of land and lineage. Before the fall: "the inhabitants of Jerusalem have said: Get you far from the LORD! unto us is this land given for a possession." After it: "they that inhabit those waste places in the land of Israel speak, saying: Abraham was one, and he inherited the land; but we are many; the land is given us for inheritance." The claim is by descent from Abraham and by possession. The answer, both times, is by conduct. To the first, that God has been "a little sanctuary" to the exiles "in the countries where they are come," and will gather them and give them "one heart" and "a new spirit." To the second: "Ye eat with the blood, and lift up your eyes unto your idols, and shed blood; and shall ye possess the land? Ye stand upon your sword, ye work abomination, and ye defile every one his neighbour's wife; and shall ye possess the land?"

³ Ezek. 18:2–4, 20, 30 at the Leningrad Codex pp. 573–574 (18:20 at p. 574, middle column: בן לא ישא בעון (האב).

Davidson, whose Cambridge commentary of 1892 is the shelf's plainest, put the point in a sentence: "Those remaining in the land presume that they shall inherit the land because they are in it, notwithstanding their evil conduct: the inheritance of the land will be given on different conditions."⁴

The exiles were not exempt. In the twentieth chapter, after the review of Israel's rebellions from Egypt onward, God turns on the deportees' own thought, "We will be as the nations, as the families of the countries, to serve wood and stone," and answers it with a purge that falls on them before any return: "I will bring you out from the peoples ... and I will bring you into the wilderness of the peoples, and there will I plead with you face to face ... And I will cause you to pass under the rod, and I will bring you into the bond of the covenant; and I will purge out from among you the rebels, and them that transgress against Me; I will bring them forth out of the land where they sojourn, but they shall not enter into the land of Israel." The Gola is to be sifted, in exile, by God, for rebellion. The sieve is not descent.⁵

Ezekiel does have a vocabulary of impurity, and Part 5 reads Boyce's argument that Persian example widened its reach in Jewish life. What Ezekiel does with it is this. In the thirty-sixth chapter the house of Israel "defiled" the land "by their way and by their doings; their way before Me was as the uncleanness of a woman in her impurity"; the remedy is "I will sprinkle clean water upon you, and ye shall be clean; from all your uncleannesses, and from all your idols, will I cleanse you. A new heart also will I give you, and a new spirit." The words are the priest's, the thing defiled is conduct, and the thing cleansed is the heart. Nothing in the chapter is

⁴ Ezek. 11:15–20 (p. 566, right and middle columns: למקדש מעט... למורשה היא נתנה הארץ למורשה); 33:23–26 (pp. 591–592: אחד היה אברהם ויירש את הארץ ואנחנו רבים); Davidson, *The Book of the Prophet Ezekiel*, Cambridge Bible (1892), pp. 78–79, 245–246. Read at the image.

⁵ Ezek. 20:32–38 at the Leningrad Codex pp. 576 (left column) and 577 (right column: וברותי מכם המרדים (והפושעים בי)).

said of seed, and the motive God gives is not Israel's merit: "I do not this for your sake, O house of Israel, but for My holy name."⁶

⁶ Ezek. 36:17–28 at the Leningrad Codex pp. 595 (middle and left columns) and 596 (right); Boyce's argument at Part 5.3.

3.2 Boundary and Loyalty

Ezekiel never names Babylon as an enemy. The point was made in a polemical tract of 1880 and it is true: the prophet of the deportees, who denounces Tyre and Egypt at length and Edom and Ammon in passing, has no oracle against the power that holds him. Jeremiah's letter of 597, read in Part 2.5, told the exiles to build, plant, marry, multiply and pray for the peace of the city. Ezekiel's silence is the same posture. The Gola's loyalty to its captor was not in question in the exile's own literature, and its boundary against him was not drawn there either.¹

Where Ezekiel does draw a boundary against outsiders, it is at the sanctuary, and it is drawn by circumcision. The temple vision of chapters 40 to 48, the exilic programme for the return, contains the prophet's one exclusion of foreigners: "No alien, uncircumcised in heart and uncircumcised in flesh, shall enter into My sanctuary, even any alien that is among the children of Israel." The offence he is correcting is that the house of Israel had "brought in aliens, uncircumcised in heart and uncircumcised in flesh, to be in My sanctuary, to profane it." The aliens are resident, "among the children of Israel"; the bar is the sanctuary, not the land or the family; and the mark is a double uncircumcision, of flesh and of heart, the second of which no genealogy can record.²

Eight verses from the end of the book the same prophet gives the resident alien a share of the land.

¹ Stuart, *The Fall of Babylon* (1880), pp. 13, 17; Jer. 29:4–7 at Part 2.5. The book's count of Ezekiel's foreign oracles is from the text (chs. 25–32, 35).

² Ezek. 44:6–9 at the Leningrad Codex p. 606, right column: כל בן נכר ערל לב וערל בשר לא יבוא אל מקדשי לכל בן נכר אשר בתוך בני ישראל.

EZEKIEL 47:22–23 (JPS 1917)

²² And it shall come to pass, that ye shall divide it by lot for an inheritance unto you and to the strangers that sojourn among you, who shall beget children among you; and they shall be unto you as the home-born among the children of Israel; they shall have inheritance with you among the tribes of Israel. **23** And it shall come to pass, that in what tribe the stranger sojourneth, there shall ye give him his inheritance, saith the Lord GOD.

The stranger who has begotten children in the land inherits with the tribes "as the home-born." No land-law in the Hebrew Bible is more inclusive, and it stands in the programme that the exiles carried home. Part 4 finds that the men of Ezra 10 dissolved marriages because the children of foreign mothers were mingled seed. Their prophet, a century before, had written that the children of foreign fathers born in the land would hold it by lot beside the tribes.³

³ Ezek. 47:22–23 at the Leningrad Codex p. 610, middle column: ולהגרים הגרים בתוכם אשר הולדו בנים בתוכם. והיו לכם כאזרח בבני ישראל. Ezra 10:3, 44 at Part 4.2; Vaticanus reads a tribe of proselytes at v. 23.

3.3 Sabbath, Text and Assembly: What Replaced the Temple

The exiles had no altar. What they had, on Ezekiel's account, was a sign: "Moreover also I gave them My sabbaths, to be a sign between Me and them, that they might know that I am the LORD that sanctify them"; and again, "hallow My sabbaths, and they shall be a sign between Me and you." The sabbath is the one observance that travels, and in the exilic chapters it becomes the mark of the covenant.¹

The prophecies gathered at the end of Isaiah, which the shelf's critics from Driver onward place in the early Persian period, make the sabbath the test of membership, and they make it in words this book has already met.

ISAIAH 56:3–7 (JPS 1917)

³ Neither let the alien, that hath joined himself to the LORD, speak, saying: 'The LORD will surely separate me from His people'; neither let the eunuch say: 'Behold, I am a dry tree.' **4** For thus saith the LORD concerning the eunuchs that keep My sabbaths, and choose the things that please Me, and hold fast by My covenant: **5** Even unto them will I give in My house and within My walls a monument and a memorial better than sons and daughters; I will give them an everlasting memorial, that shall not be cut off. **6** Also the aliens, that join themselves to the LORD, to minister unto Him, and to love the name of the LORD, to be His servants, every one that keepeth the sabbath from profaning it, and holdeth fast by My covenant: **7** Even them will I bring to My holy mountain, and make them joyful in My house of prayer; their burnt-offerings and their sacrifices shall be acceptable upon Mine altar; for My house shall be called a house of prayer for all peoples.

The Hebrew of the alien's fear is *הבדל יבדילני*, "separate, He will separate me." The verb is the verb of Ezra 9:1, where Israel "have not separated themselves from the peoples of the lands," of Ezra 10:11, "separate yourselves from the peoples of the land, and from the foreign women," and of the covenant of Nehemiah 10, entered by "all they that had separated themselves from the peoples of the lands unto the law of God." In Isaiah 56 the separation is what the foreigner fears

¹ Ezek. 20:12, 20 at the Leningrad Codex p. 576, right and middle columns.

and God forbids; the tests are sabbath and covenant, and the reward is the altar. The same collection ends by taking priests from the nations: "And of them also will I take for priests and for Levites, saith the LORD." It opens its last chapter by asking what house can be built at all: "The heaven is My throne, and the earth is My footstool; where is the house that ye may build unto Me?" The book does not decide the relation of these prophecies to Ezra; it records that both stand in the Persian-period corpus, that they use the same verb to opposite ends, and that Part 6 will follow what became of each.²

What replaced the Temple in practice was the assembly and the book. Part 4.6 reads the scene in Nehemiah 8 in which Ezra brought the law "before the congregation, both men and women, and all that could hear with understanding" and read it "from early morning until midday." The sabbath, the text and the assembly are the Gola's institutions; none of the three needs a sanctuary, and all three were in place before Ezra's rule of seed was made. They are the frame the rule was set in, and none of them is Persian.³

² Isa. 56:1–8 at the Leningrad Codex pp. 487 (left column, with יהוה מעל עמו) and 488 (right); 58:13 at p. 489; 66:1–2 at p. 494 (middle column); 66:21 at p. 495 (middle column: וגם מהם אקח לכהנים ללויים). The verb בָּדַל at Ezra 9:1, 10:11 and Neh. 9:2, 10:29: Parts 4.1, 4.2, 4.4. Driver, *Introduction*, 4th ed. (1892), pp. 223–224, on the exilic standpoint of Isa. 40–66. Kittel's apparatus at 66:21 records that many manuscripts and the versions read *and for Levites*. At 56:3 Kittel's apparatus proposes to read the participle, הַנִּלְוֶה, "that joineth himself," for the Masoretic perfect הִנְלִיךָ, bringing the singular alien of verse 3 into line with the plural participle of verse 6 (Pars II, p. 624, read at the image at 400 dpi). The Geneva Bible of 1560 (2004 facsimile, p. 609, right margin, read at 300 dpi) glosses the alien's fear at note d: "Let none thinke himselfe vnmete to receiue the grace of the Lord, for the Lord wil take awaie all impedimentes, and wil forsake none that wil kepe his true religion & beleue in him"; note c makes the sabbath of verse 2 comprehend "the whole seruice of God & true religion," and note f reads the memorial of verse 5 as a people "of the same religion" (the printer's abbreviations for *the* and *that* are expanded).

³ Neh. 8:2–3 at Part 4.6 (Leningrad p. 921).

3.4 Who Came Back, and When

The tradition, followed by Meyer in 1896 and by the standard histories since, has a return under Cyrus in 538, a temple finished under Darius in 515, Ezra's mission in the seventh year of Artaxerxes I, 458, and Nehemiah's governorship from 445. Every element of this has been denied by a scholar on the shelf. Who denied it, and why, has to be said, because the popular account (Part 7) assumes the tradition without knowing it was ever questioned.

Kosters, in the Dutch monograph of 1893 translated into German in 1895, denied the return under Cyrus altogether. His argument is from silence and from names. Haggai and Zechariah, prophesying at the building of the temple, never allude to a return of forty thousand exiles, and call their audience "the remnant of the people," a term which "lets us think far sooner of those left behind than of those carried off and come back"; Nehemiah's memoir calls the people of the land "the Jews" and never "Israel," reserving "Israel" for "the scattered or the future people." The temple was built by those who stayed, and Ezra's Gola arrived after Nehemiah's wall. Kosters did not put that arrival under Artaxerxes II in 398; that was Van Hoonacker's date, and he spent three pages refusing it. He put it under Artaxerxes I, after the governor's return from Susa in the king's thirty-second year, and took the "seventh year" of Ezra 7 for the figure of the redactor, the editor who assembled the book, not Ezra's own. Meyer answered him with the Aramaic report of Ezra 5, in which the Persian governor Tattenai's inquiry recites the return of the vessels under Cyrus and the appointment of Sheshbazzar: "the return from the exile under Cyrus stands beyond doubt through Sisines's report ... the whole artificial structure that Kosters set in place of the tradition collapses beyond rescue." Meyer accepted the Aramaic documents and rejected the Hebrew edict of Ezra 1:2–4 as "the edict of Cyrus fabricated by the Chronicler,"

observing that "forged documents ... are composed in Hebrew" while genuine Persian documents of the period are Aramaic. Torrey, in 1910, extended Kusters's scepticism to the Aramaic documents themselves and to the whole figure of Ezra. Batten, writing the International Critical Commentary in 1913, placed Ezra after Nehemiah but refused the fourth-century date, which he laid at Kusters's door: "we have apparently no authority save that of the Chronicler for the name of any Persian king in connection with Ezra ... Certainly we dare not follow Kusters and give Ezra's date as 398 B.C., for 'the 7th year' is entirely untrustworthy. And yet ... Ezra's work was done in the first quarter of the fourth century." The date Batten refused was Van Hoonacker's; Kusters had refused it too. Boyce in 1982 and Waters in 2014 report the question as still open.¹

Kusters also read the list, and his reading stands beside Schaefer's rather than against it. The register of Ezra 2 and Nehemiah 7 had, in his analysis, its original place in Nehemiah, from which the redactor of Ezra copied it to serve as a roll of those who came up under Cyrus. Its heading calls the men "the sons of the province," which describes the population of the Persian district of Judah in so far as it consisted of former exiles, "in distinction from other inhabitants of the province who had not been exiles"; its gifts are priests' garments for a temple already standing; its Tirshatha, the governor, is Nehemiah; and the twelve leaders of its second verse, Zerubbabel and Jeshua among them, are the Chronicler's. It is a register of the constituted community, not of a caravan, and what governed it Kusters put in one sentence: "not the return

¹ Kusters, *Die Wiederherstellung Israels in der persischen Periode*, tr. Basedow (Heidelberg 1895), pp. 4, 13, 51–53, and on the date pp. 112–116: "Wir müssen also dafür halten, dass thatsächlich Artaxerxes I. gemeint ist" (p. 115); "nach dem Esras Kommen in des Artaxerxes 32tes Jahr zu versetzen ist" (p. 116); Van Hoonacker's 398 is stated and refused at pp. 112–115, and the "seventh year" of Ezra 7:7–8 assigned to the redactor at p. 115. Pp. 115–116 read at the image; the translations are the book's; Meyer, *Die Entstehung des Judenthums* (1896), pp. 8–9, 49, 70–71 (Part 5.5); Torrey, *Ezra Studies* (Chicago 1910), preface and ch. 1; Batten, *A Critical and Exegetical Commentary on the Books of Ezra and Nehemiah*, ICC (1913), pp. 14, 28–29; Boyce II, p. 190; Waters, *Ancient Persia* (2014), p. 161. Van Hoonacker's pamphlets of 1890–1892, which first placed Ezra under Artaxerxes II, are not on the shelf; his *Nouvelles études* (1896) is.

from Babylon, but descent and genealogical register decided whether one family or another had a place in the list, and which." Schaeder took the same roll for the archive copy of 538 that Ezra made the basis of his census. On either dating the document that Part 4.4 reads as the Gola's instrument was drawn up to say who belonged, and it said so by fathers' houses.²

Schaeder, in 1930, gave the register of returnees a different place. In his analysis the list of Nehemiah 7 is the roll of 538 preserved in the temple archive, which Ezra copied into his own report as the register of the community he found, and the corrupt notice at the end of Ezra 8, read with Klostermann, records the census Ezra ordered on arrival: "In that time a register was taken of the whole community, of all who had come home from the captivity." Its purpose, in Klostermann's words which Schaeder adopts, was that the heads of families "can report to him how far Jews and heathens and half-heathens are mixed in the families," so that he might at once take counsel with the community "to establish a purely Israelite association." On this reading the genealogy is not the Chronicler's antiquarianism but the first administrative act of the mission, taken before the law was read, and the Gola's self-definition by written descent, which Part 4.4 examines, begins as a scribe's census. Schaeder adds that Nehemiah's later census had "a wholly different" purpose: Ezra "wants to establish the pure community," Nehemiah wants a peopled city.³

² Kesters, pp. 29–35 (the list: its place, pp. 29–32; the heading and Smend's gloss, pp. 32–33; the gifts and the Tirshatha, pp. 34–35) and 36–41 (the twelve names of Ezra 2:2 and the descent of Zerubbabel and Jeshua as the Chronicler's). The heading at p. 32: "die Bevölkerung der Landschaft, insofern sie aus Verbannten bestand, zum Unterschiede von anderen Bewohnern der Landschaft, die keine Verbannten gewesen waren"; the sentence at p. 33 is Kesters's own: "nicht die Rückkehr aus Babel, sondern Abkunft und Geschlechtsregister haben entschieden, ob einer oder der anderen Familie ein — und so auch, welcher — Platz in der Liste zukam" (the dashes are his). Pp. 32–33 read at the image; the translations are the book's. Schaeder at Part 3.4.

³ Schaeder, *Esra der Schreiber*, Beiträge zur historischen Theologie 5 (Tübingen 1930), pp. 7, 15–22 and p. 25 n. 1, quoting Klostermann, *Geschichte des Volkes Israel* (1896), p. 243. Read entire at the image; the translations are the book's.

The book takes no side, because its argument does not turn on the order. If Ezra came first, the rule of seed was made in 458 and Nehemiah's oath of 445 and expulsion of a priest for his Samaritan marriage followed it; if Ezra came second, Nehemiah's measures came first and Ezra's dissolution was the systematic sequel. In either case the rule is Ezra's, the frame is a king named Artaxerxes, and the theology the Gola brought from Babylon is Ezekiel's. Kesters, whose history gives the Persian king nothing to do but permit, explained Ezra's dismay at what he found in the same way: Ezra "came from Babylon, where the exiles lived separated from their surroundings, and therefore applied a wholly different standard from the Jews living in Judah, who had for years been used to this state of things." What the debate does settle is that the "return" was not one event but a century of movements, and that the community that made the rule of Ezra 9 was a party within Judah, which its own texts call the Gola, and not the whole of it. Kesters found the division inside the text of Ezra 10 itself, where "all the men of Judah and Benjamin" are summoned by their princes and elders under penalty, while a smaller body, the assembly, "which regards itself as Israel and is therefore called the Kahal," weeps with Ezra, swears and decides; the whole measure, on his reading, "proceeded from a minority," the Gola that had come with Ezra, "which, however great its moral influence may have been, had no means of compelling the unwilling."⁴

⁴ Neh. 10:31 and 13:28 at Parts 4.4 and 4.5; the Gola as a party within Judah at Part 4.5 (Montgomery). Kesters, pp. 97–98 ("Volk" and "Juda und Benjamin" against "Kahal" and "Israel"; "die mit Esra zurückgekehrte Gola, die sich für Israel ansieht und darum die Kahal heisst," p. 98), 101 ("dass die ganze Sache von einer Minderheit ausging, wie ich meine, von der mit Esra zurückgekehrten Gola, und dass diese, wie gross ihr moralischer Einfluss auch sein mochte, keine Mittel hatte, Widerspenstige zu zwingen"), 107 ("dass Esra aus Babel kam, wo die Verbannten abgesondert von ihrer Umgebung lebten, und deshalb einen ganz anderen Massstab anlegte, als die in Juda wohnenden Juden, die seit Jahren an diesen Zustand gewöhnt waren"); the king permits and no more at pp. 119 and 122. Pp. 97, 98, 101 and 107 read at the image; the translations are the book's.

3.5 The Aramaic Documents and the Edict of Cyrus

The book of Ezra preserves the Persian side of the restoration in two languages. In Hebrew, at its head, stands a proclamation of Cyrus. In Aramaic, in chapters 4 to 7, stand the letters of the provincial officials, the memorandum found in the archive at Ecbatana, the rescript of Darius, and the letter of Artaxerxes to Ezra that Part 5.5 reads. The difference of language is the first fact about them, and Meyer made it the key: the chancery of the western provinces wrote Aramaic, and a document that speaks for Cyrus in Hebrew is speaking for the Chronicler.¹

EZRA 1:2–3 (JPS 1917)

² 'Thus saith Cyrus king of Persia: All the kingdoms of the earth hath the LORD, the God of heaven, given me; and He hath charged me to build Him a house in Jerusalem, which is in Judah. **3** Whosoever there is among you of all His people, his God be with him, let him go up to Jerusalem, which is in Judah, and build the house of the LORD, the God of Israel, He is the God who is in Jerusalem.'

In the Leningrad Codex this proclamation opens the book after the colophon of Chronicles, and the scribe spells the king's name in full once and then without its vowel letter. It has Cyrus confess that "the LORD, the God of heaven" gave him the kingdoms, and it has him say so in the idiom of the Cylinder, where Marduk gave them. Part 2.1 set the two side by side; Part 5.1 reads the Cylinder's theology as Marduk's from first line to last. The Hebrew edict is the Gola's account of what Cyrus did, written in the Gola's language and theology, and Meyer's judgement of it as the Chronicler's has not been overturned on the shelf.²

¹ Meyer, pp. 8–9: "Dass die Urkunden aramäisch abgefasst sind, ist kein Argument gegen ihre Aechtheit, sondern genau das was wir in einem authentischen Dokument aus der Perserzeit erwarten müssen — gefälschte Dokumente wie das vom Chronisten fabricirte Edikt des Kyros Ezra 1, 2–5 sind hebräisch verfasst." Read at the image; the dash is Meyer's. Meyer's philological case is at pp. 24–30 (read at the image): the Persian loanwords and chancery headings of Ezra 4–6 argue authenticity, and he concedes (p. 30) that the rescript of Ezra 7:12 ff. lacks them and "scheint ... von Anfang an aramäisch concipirt zu sein."

² Ezra 1:1–4 at the Leningrad Codex p. 899, right column, after the Chronicles colophon; the spellings כורש (1:1a) and כרש (1:1b, 1:2). The Cylinder at Parts 2.1 and 5.1.

Schaeder confirmed the judgement in 1930 in stronger words and with a caution. The Hebrew edict's "inauthenticity the reader perceives at first glance," yet "it would be quite wrong to think of an intent to forge on the Chronicler's part": having no record of the first return but the genuine Aramaic memorandum of Ezra 6:3–5, he composed from it the proclamation his narrative required. The same study dated the Aramaic dossier of Ezra 4:8 to 6:15 to about 446 and read it as a memorandum drawn up in chancery form to move Artaxerxes to lift the ban on the wall, recapitulating the correspondence and the precedent of Darius; its failure is shown by the fact that the wall waited for Nehemiah. The Persian documents in Ezra are, on this account, the Gola's own chancery work, kept because they had once been sent.³

The Aramaic memorandum of chapter 6 is another kind of document.

EZRA 6:3–5 (JPS 1917)

³ In the first year of Cyrus the king, Cyrus the king made a decree: Concerning the house of God at Jerusalem, let the house be builded, the place where they offer sacrifices, and let the foundations thereof be strongly laid; the height thereof threescore cubits, and the breadth thereof threescore cubits; 4 with three rows of great stones, and a row of new timber, and let the expenses be given out of the king's house; 5 and also let the gold and silver vessels of the house of God, which Nebuchadnezzar took forth out of the temple which is at Jerusalem, and brought unto Babylon, be restored, and brought back unto the temple which is at Jerusalem, every one to its place, and thou shalt put them in the house of God.

Dimensions, materials, a charge on the treasury, the return of the vessels: no theology, no confession, no motive but the order. Darius's rescript that follows funds the sacrifices "that they may offer sacrifices of sweet savour unto the God of heaven, and pray for the life of the king, and of his sons," which is the clause Part 5.5 finds again in Artaxerxes' letter and which Meyer explained as what any government asks of a cult it tolerates. The officials' report of chapter 5 recites the same history from the Persian side: Nebuchadnezzar took the vessels, Cyrus gave

³ Schaeder, pp. 27–29; the translations are the book's.

them to Sheshbazzar, whom "he had made governor," and the house has been "in building" since. This is the record Meyer set against Kusters, and the current histories accept it.⁴

Meyer's answer was written to Kusters's attack, so the attack must be stated. His attack fell on the Artaxerxes correspondence of Ezra 4:8–23, the letter of Rehum and Shimshai and the king's reply, which he judged the redactor's own composition. Its list of transplanted peoples makes two nations out of a class of Persian officials, the Apharsachites who report to Darius in chapters 5 and 6; its "book of the records" has the king find kings of Jerusalem who ruled the whole province Beyond the River, of whom no Babylonian or Assyrian archive knew anything; its ban on the wall until the king himself should order otherwise is the sentence of a writer who knew that Artaxerxes would later commission Nehemiah; and Nehemiah's own memoir, in which the neighbours mock a work no one had attempted since 586 and the governor asks the king for leave without a word about any earlier prohibition, leaves no room for a wall nearly finished and thrown down a few years before. The language proves nothing, he added in a footnote: the redactor writes Aramaic wherever he reports the correspondence of Persian kings with their officers, and it is "not improbable" that even the borrowed piece of 5:1–6:15 "was originally written in Hebrew and only translated into Aramaic by the redactor." That footnote is the sentence Meyer's opening pages answer, and his philology of the Persian loanwords is the reply. The dispute is not settled here. What matters is that both disputants treat the Persian documents as the Gola's own, whether composed at Jerusalem or translated there, and neither finds in them anything the Gola did not already hold.⁵

⁴ Ezra 6:1–5 at the Leningrad Codex p. 905, middle column; 6:6–12 at p. 905, left column (די להון מהקרבין 17–5:12); ניהוחין לאלה שמיא ומצלין לחיי מלכא ובנוהי at p. 905, right column. Meyer on 6:10 at Part 5.5; Waters, p. 161.

⁵ Kusters, pp. 54–62 (Ezra 4:8–23: the Apharsachites, pp. 56–57; the "book of the records," pp. 57–58; Nehemiah's memoir against an earlier wall, pp. 58–60; Neh. 1, pp. 60–61; the redactor's purpose, pp. 61–62), and p. 62 n. 1: "Dass 4. 8–23 in aram. Sprache verfasst ist, beweist nicht, dass wir hier nicht das eigene Werk des Redaktors haben ... Darum halte ich es selbst nicht für unwahrscheinlich, dass das aram. anders woher entlehnte

What the Aramaic documents establish is narrow. The Persian court authorised the rebuilding of a temple and the return of its vessels, funded its sacrifices, and required prayer for the king; a Persian governor made the inquiry and a Persian archive held the order. They do not mention the people who returned, their number, their descent, or their marriages. They contain no Persian god. Between the Hebrew edict, in which Cyrus speaks as a Yahwist, and the Aramaic memorandum, in which he speaks as a clerk, lies the whole distance between what the Gola believed about Persia and what Persia did, and it is the same distance Part 5 measures between the oracles and the Cylinder. The Gola came home with Ezekiel's theology, Jeremiah's posture, Isaiah's altar open to the foreigner who kept the sabbath, and a Persian building permit. The rule of the holy seed is in none of these, and Part 4 shows where it was made.

Stück 5. 1–6. 15 ursprünglich hebräisch geschrieben und erst vom Redaktor ins aram. übersetzt ist." P. 62 read at the image; the translations are the book's. Meyer's reply at pp. 8–9 and 24–30 (Part 3.5), where p. 30 n. 3 names Kusters as the opponent. On Kusters's reading of the Rescript of Ezra 7 see Part 5.5.

PART 4 — THE HOLY SEED

4.1 Ezra 9:1–2 at the Hebrew and at Every Version

Everything the book asks begins in two verses, and the two verses have been read at fourteen witnesses. The Hebrew is the Leningrad Codex; the Greek is Swete's edition of the two Greek Ezras; the Latin is the Sixto-Clementine editio princeps of 1592; the English runs from Coverdale in 1535 through the Great Bible, Geneva, the Bishops' Bible and the Authorized Version of 1611 to Leeser and the Jewish Publication Society. Kittel's Hebrew with its apparatus was read in the 1909 Leipzig printing.¹

EZRA 9:1–2 (JPS 1917)

¹ Now when these things were done, the princes drew near unto me, saying: 'The people of Israel, and the priests and the Levites, have not separated themselves from the peoples of the lands, doing according to their abominations, even of the Canaanites, the Hittites, the Perizzites, the Jebusites, the Ammonites, the Moabites, the Egyptians, and the Amorites. **2** For they have taken of their daughters for themselves and for their sons; so that the holy seed have mingled themselves with the peoples of the lands; yea, the hand of the princes and rulers hath been first in this faithlessness.'

At the Leningrad Codex the two verses close the left column of page 909; verse 3 opens the next page. The consonants of the key clause are וְהִתְעַרְבוּ יִרְעֵה הַקֹּדֶשׁ בְּעַמִּי הָאֲרָצוֹת, and against the line the Masoretes set the small letter that marks a form occurring once. The verb is a hithpael, the reflexive stem: the holy seed *has mingled itself*. That grammatical fact is the first thing the versions lose.²

¹ Leningrad Codex p. 909; Kittel, *Biblia Hebraica*, 2nd ed., Pars II (Leipzig 1909), p. 1197; Swete, *The Old Testament in Greek*, vol. II (1907), pp. 156, 177; *Biblia Sacra Vulgatae Editionis* (Rome 1592), fol. 406; Coverdale 1535, opening 209; Great Bible 1540, opening 197; Geneva 1560, fol. 211; Bishops' Bible 1568, 1 Esdras 9; *The Holy Bible* (1611), Ezra 9; Leeser 1891, Ezra 9; JPS 1917.

² Leningrad p. 909, left column, last fourteen lines.

The Greek Bible has the verse twice, because it has two books of Ezra. In the one Swete prints as Esdras B, the translation of the Hebrew book, the clause is παρήχθη σπέρμα τὸ ἅγιον ἐν λαοῖς τῶν γαιῶν: the holy seed *was brought over*, a passive, with the list of nations rendered name by name and a corrupt Μοσερεί where the Hebrew has Egyptian. In the one he prints as Esdras A, the Greek Ezra that the Latin church called 1 Esdras, the clause is ἐπεμίγη τὸ σπέρμα τὸ ἅγιον εἰς τὰ ἀλλογενῆ ἔθνη τῆς γῆς: the holy seed *was mixed* with the foreign nations of the land. Both are passive. Neither has the seed do anything. And Esdras A ends its list of nations not with Amorites but with Idumaeans, Ἰδουμαίων, the Edomites.³

Jerome made the men the subject: *commiscuerunt semen sanctum cum populis terrarum*, they have mingled the holy seed with the peoples of the lands. The seed is the object of the men's act. The 1592 editio princeps and the 1881 Tournai text agree, and the 1881 printing's chapter argument states the editors' understanding of what the chapter is about: *Audiens Esdras Judaeos matrimonia contraxisse cum gentibus*, Ezra hearing that the Jews had contracted marriages with the gentiles.⁴

The English chain divides exactly here, and the division is the book's first datum about how the phrase was read. Coverdale in 1535 followed the Latin: they "haue myxte the holy sede with ye nacions in the londes." The Great Bible of 1540 and the Bishops' Bible of 1568 made the seed the object of a passive: "the holy sede is mixte with the nacions in the lande." Geneva in 1560 kept the Latin active: "they haue mixed the holy sede with the people of the lands." Then in 1611 the translators of the Authorized Version restored the Hebrew: "so that the holy seed haue

³ Swete II p. 177 (Esdras B IX 1–2) and p. 156 (Esdras A VIII 66–67), with apparatus. Esdras A's parallels to Ezra 3:3, 4:1–5 and 6:21 (V 49, V 63–70, VII 13; Swete II pp. 145–146, 150) are read; the Greek Ezra names the petitioners enemies before they speak, adds "we alone", and drops the joining clause of 6:21. Esdras B VI 21 (Swete II p. 172, read at the image) keeps the Hebrew's "unto them" (πρὸς αὐτούς) that Esdras A drops; Torrey, *Ezra Studies* (Chicago 1910), pp. 11–36, for Esdras A as a faithful older Greek translation and the canonical Greek as Theodotion's (text layer).

⁴ Vulgate 1592 fol. 406; Vulgate (Tournai 1881) p. 316. Read at the image.

mingled themselves with the people of those lands." The reflexive, in which the seed is the agent of its own mixing, reached English readers for the first time in 1611, and Leeser in 1853 and the Jewish Publication Society in 1917 kept it. The Douay Bible, translating the Vulgate, kept Jerome's active.⁵

The sixteenth-century margins record what the translators thought the verse rested on. Coverdale, the Great Bible and the Bishops' Bible all print at verse 2 the same three references: Deuteronomy 7, Joshua 23, Judges 3. Geneva's note on verse 1 says the people "had degenerate contrary to the Lawe of God, and married where it was not lawful, Deu. 7,4." The chapter arguments of the Great Bible, Geneva and the Bishops' Bible say that Ezra "complayneth on the people that had turned them selves from God, and married with the gentyles"; 1611's says he "mourneth for the affinitie of the people with strangers." In the English reading from 1535 to 1611, Ezra 9 is about marriage with gentiles in breach of Deuteronomy 7. No margin, note or argument mentions Persia.⁶

Kittel's apparatus, read in the 1909 copy, does two things. At verse 1 it proposes, with the Greek of Esdras A, that the last nation in the list was originally the Edomite, *יְהוּדָאִי*, not the Amorite, *יְהוּדָאִי*; the two words differ by one letter in the unpointed text, and Bertholet had already translated "Edomiter" in 1896 on the same ground. The proposal matters because Deuteronomy 23:7 admits the Edomite as a brother; if Kittel is right, Ezra's list closed with the one nation the older law had opened to. At verse 2 Kittel records nothing. The clause about the

⁵ Coverdale 1535, opening 209; Great Bible 1540, opening 197; Geneva 1560, fol. 211; Bishops' 1568, 1 Esdras 9; 1611, Ezra 9; Leeser 1891, p. 990 of the Bloch printing; JPS 1917; Douay–Rheims, Challoner revision, 1 Esdras 9. All at the image except Leeser and JPS.

⁶ Coverdale, Great and Bishops' margins at Ezra 9:2; Geneva 1560, notes a and b and chapter argument; 1611, chapter argument. Read at the image.

holy seed stands in his witnesses without a variant. Whatever happened to the phrase in translation, its Hebrew is not in doubt.⁷

There remains Isaiah 6:13, the only other place in the Hebrew Bible where the words holy and seed stand together.

ISAIAH 6:13 (JPS 1917)

¹³ And if there be yet a tenth in it, it shall again be eaten up; as a terebinth, and as an oak, whose stock remaineth, when they cast their leaves, so the holy seed shall be the stock thereof.

The Hebrew is זָרַע קֹדֶשׁ מִצְבָּתָהּ, and Kittel's Hebrew prints it. But Codex Vaticanus ends the verse three words earlier, at "when it falls from its sheath," and the clause "a holy seed is its stock" appears in Swete's apparatus only as a marginal reading in Codex Marchalianus attributed to Theodotion and marked with an asterisk. Kittel's note records that the clause is lacking in Vaticanus and in the Old Latin. The Vulgate has it; the Hebrew tradition has it; the oldest Greek does not. Whether the words are Isaiah's, or a gloss written after the exile in the idiom of Ezra 9:2, is a question the manuscripts pose and do not answer. The book states it and leaves it to specialist review; it does not build on the verse.⁸

What the English did with Isaiah's clause shows how loosely "holy seed" sat in the language. Coverdale has "so shal the holy sede haue frute." The Great Bible has "so shall the holy sead cōtynue in theyr substance," and reads the tenth as "x. kinges," a tradition Geneva's note also records, "from Vzziah to Zedekiah." The Bishops' Bible has "the stay therof." Geneva and 1611 have "the substance thereof," and 1611's margin offers "stocke, or stemme," which is where Leaser's "stem" and JPS's "stock" stand. Leaser's footnote glosses the holy seed as "the

⁷ Kittel 1909 p. 1197, notes a and b at 9:1; no note at 9:2. Bertholet, *Die Stellung der Israeliten und der Juden zu den Fremden* (1896), pp. 135–137. Kittel at the image; Bertholet at the text layer.

⁸ Kittel, Pars II, p. 560, Isa. 6:13 note c–c; Swete III (1905), p. 111, apparatus at 13; Vulgate 1592 fol. 640. Read at the image.

truly pious," not a lineage. Ryle's Cambridge commentary of 1911 glosses Ezra's holy seed as "the Chosen People, set apart and consecrated to God," and sends the reader to Exodus 19:5 and to this verse.⁹

The reading at every version yields three conclusions for the argument. First, the phrase's grammar in Hebrew makes the seed the agent: it mingled itself. No version before 1611 conveyed that, and the passive and active renderings that preceded it made the seed a thing done to. Second, the phrase's only biblical companion is textually insecure in Greek, so that the Hebrew Bible's second witness to a holy seed may be its first witness read back. Third, the translators and annotators who carried the phrase into English from 1535 onward grounded it, uniformly and without exception, in Deuteronomy 7 and in marriage with gentiles who served other gods. Part 4.2 turns to what Ezra did with the phrase; Part 5 asks whether anything Persian stood behind it. The versions, at least, knew of nothing.

⁹ Coverdale, opening 274; Great Bible, opening 260; Geneva fol. 285, notes q and r; Bishops' 1568 fol. lxxiiij; 1611, Isa. 6, margins; Leiser p. 508, note f; Ryle, *The Books of Ezra and Nehemiah* (Cambridge 1911), at 9:2. All at the image except Leiser.

4.2 The Dissolution

What Ezra did about the marriages is told in the chapter that follows his prayer, and the chapter has been read at the same fourteen witnesses as the verses that open it. The reading changes the question the book can ask. It is usual to say that Ezra dissolved the mixed marriages of Yehud. The Hebrew text says that a dissolution was proposed, sworn, organised and expiated. Whether it says the dissolution happened depends on a Greek book and an emendation.¹

The prayer first. Ezra's confession in chapter 9 contains the only purity language in the whole episode, and where it falls matters.

EZRA 9:11–12, 14 (JPS 1917)

¹¹ which Thou hast commanded by Thy servants the prophets, saying: The land, unto which ye go to possess it, is an unclean land through the uncleanness of the peoples of the lands, through their abominations, wherewith they have filled it from one end to another in their filthiness. **12** Now therefore give not your daughters unto their sons, neither take their daughters unto your sons, nor seek their peace or their prosperity for ever ... **14** shall we again break Thy commandments, and make marriages with the peoples that do these abominations?

Three purity words stand in verse 11: נִדָּה, the word for menstrual impurity, here used of the land; טִמְאָה, uncleanness; תּוֹעֵבָה, abomination. All three are predicated of the land and of the peoples of the lands. None is predicated of a wife, a child or an Israelite husband. The sentence is attributed to "the prophets," and it is not a quotation of any prophet; it is a conflation of Deuteronomy 7:3, on giving and taking daughters, with Deuteronomy 23:7 in the Hebrew numbering, on not seeking the peace of Ammon and Moab, set in the idiom of Leviticus 18, where the land is defiled by the abominations of the nations and vomits out its inhabitants. Verse

¹ Leningrad Codex pp. 910–912; Kittel, *Biblia Hebraica*, 2nd ed., Pars II (1909), pp. 1198–1200; Swete, *The Old Testament in Greek*, vol. II, pp. 157–159 (Esdras A) and 178–181 (Esdras B); *Biblia Sacra Vulgatae Editionis* (1592), fols. 406v–407; Geneva 1560, fols. 211v–212; *The Holy Bible* (1611), Ezra 10; Leiser 1891, pp. 922–923; JPS 1917.

14 names the sin with Deuteronomy's own verb, *הִתְּחַלֵּף*, to make marriage alliance. Ezra's prayer, in other words, grounds the wrong in Israel's own law, and the uncleanness it speaks of is the land's. The Greek translator of the Hebrew Ezra did not even recognise the first purity word, and rendered it as "a land of removal, in the removal of the peoples," from a homonym meaning to wander.²

Then the proposal.

EZRA 10:2–3 (JPS 1917)

² And Shecaniah the son of Jehiel, one of the sons of Elam, answered and said unto Ezra: 'We have broken faith with our God, and have married foreign women of the peoples of the land; yet now there is hope for Israel concerning this thing. **3** Now therefore let us make a covenant with our God to put away all the wives, and such as are born of them, according to the counsel of the Lord, and of those that tremble at the commandment of our God; and let it be done according to the law.'

The proposal is Shecaniah's, not Ezra's. Its form is a covenant, *בְּרִית*, with God. Its verb for what the men had done is *הוֹשִׁיב*, to settle or bring home, the same verb Nehemiah used and not the verb for marrying. Its verb for what is now to be done is *הוֹצִיא*, to bring out, not the verb the law of Deuteronomy uses for divorce. The children are "what is born of them." And the counsel by which it is to be done is written with four consonants that can be read either as *the Lord* or as *my lord*. The Greek Ezra read *my lord* and translated "as it seems good to thee"; the translators of 1611 printed "according to the counsell of my lord" and put "the Lord" in the margin; Kittel's apparatus proposes "my lord." Geneva, Leeser and the Jewish Publication Society read "the Lord." On one vowel the measure is either Ezra's ruling or God's command. The manuscripts do not decide it.³

² Leningrad p. 910, middle column; Swete II p. 178, Esdras B IX 11: γῆ μετακινουμένη ἐστὶν ἐν μετακινήσει λαῶν τῶν ἐθνῶν. The other Greek Ezra (Esdras A VIII 80, p. 157) has "a land polluted with the pollution of the foreigners of the land."

³ Leningrad p. 911, right column; Kittel p. 1198, note c at 10:3 ("לְהַצִּי") and note a (with 1 Esdras, "our foreign wives" for "all wives"); Swete II p. 179, Esdras B X 3, ὡς ἂν βούλη; p. 158, Esdras A VIII 90, ὡς ἐκρίθη

Ezra makes the chiefs swear, fasts in the chamber of Jehohanan, and a proclamation goes out.

EZRA 10:8, 10–11 (JPS 1917)

⁸ and that whosoever came not within three days, according to the counsel of the princes and the elders, all his substance should be forfeited, and himself separated from the congregation of the captivity. ... **10** And Ezra the priest stood up, and said unto them: 'Ye have broken faith, and have married foreign women, to increase the guilt of Israel. **11** Now therefore make confession unto the LORD, the God of your fathers, and do His pleasure; and separate yourselves from the peoples of the land, and from the foreign women.'

The sanction is forfeiture, the verb being *הָרַם*, to devote, and separation "from the congregation of the captivity," *קְהָל הַגּוֹלָה*. The body that acts is the assembly of the exile, and it names itself as such. The Greek Ezra called it "the assembly of the colony," the other Greek book "the multitude of the captivity," Jerome "the gathering of the transmigration," Geneva "the Congregation of them of the captiuitie" with the marginal gloss "excommunicat." The punishment for not attending was to cease to be one of the returned. The remedy Ezra demands at verse 11 is confession and separation, *הַבְּדִל*, the verb of Ezra 9:1 and of Leviticus 20:24–26, where God separates Israel from the peoples and Israel separates clean beasts from unclean.⁴

The people answer with one voice and then, at once, with a practical objection: there are too many of them, it is the rainy season, this is not the work of a day or two. A commission is proposed and sits from the first day of the tenth month to the first day of the first month. Four men oppose it, and the text records their names. The Levite Shabbethai who helped them is otherwise known as a teacher of the law. Leiser's note, following Rashi, takes "stood upon this" to mean that the four insisted on the original proposal against the delay; the plainer reading,

סו; 1611, Ezra 10:3 and margin; Geneva fol. 211v, note c: "Which are strangers and married contrarie to the Law of God."

⁴ Leningrad p. 911; Swete II pp. 179–180 (Esdras B X 8, 11) and p. 159 (Esdras A IX 4, 9); Vulgate 1592 fol. 407, *abijcietur de coetu transmigrationis*; Geneva fol. 211v, margin at 10:8. Lev. 20:24–26 for the verb.

which Geneva and 1611 adopt, is that they opposed the whole matter. Either way the episode records dissent within the assembly, by name.⁵

Then the priests.

EZRA 10:18–19 (JPS 1917)

¹⁸ And among the sons of the priests there were found that had married foreign women, namely: of the sons of Jeshua, the son of Jozadak, and his brethren, Maaseiah, and Eliezer, and Jarib, and Gedaliah. **19** And they gave their hand that they would put away their wives; and being guilty, they offered a ram of the flock for their guilt.

The high priest's own family heads the list. The pledge is a handclasp; the verb is again "bring out"; and the expiation is a ram "for their guilt," זָשָׁם, the guilt-offering of Leviticus 5. The Greek of the other Ezra calls it a ram "for their ignorance," and the sixteenth-century margin at the handclasp reads "As a token that thei wolde kepe promes & do it." The offence is treated as a trespass against God to be atoned by sacrifice, and the atonement is the one the priestly law prescribes for unwitting trespass.⁶

Then the list of names, one hundred and thirteen men across the priests, Levites, singers, porters and lay families, and then the last verse.

EZRA 10:44 (JPS 1917)

⁴⁴ All these had taken foreign wives; and some of them had wives by whom they had children.

That is where the Hebrew book of Ezra ends. At the Leningrad Codex the words are the last before the one-line space that opens Nehemiah: כָּל־אֵלֶּה נָשְׂאוּ נָשִׁים נְכָרִיּוֹת וַיָּשׁ מֵהֶם נָשִׁים וַיֵּשֶׁבוּ בְנֵיהֶם. The second half is not good Hebrew; it says something like "and there were of them wives, and they set children." Kittel's apparatus marks it corrupt and proposes to read, with the Greek

⁵ Ezra 10:12–17; Leeser p. 923, note on 10:15; Geneva fol. 211v, 1611 at 10:15. Shabbethai the Levite: Neh. 8:7, 11:16.

⁶ Leningrad p. 911, left column; Kittel p. 1199, note at 10:19; Swete II p. 159, Esdras A IX 20, κρισὺς ὑπὲρ τῆς ἀγνοίας αὐτῶν; Geneva fol. 211v, note l at 10:19. Lev. 5:14–19 for the guilt-offering.

Ezra, "and they sent them away, wives and children." The Greek translation of the Hebrew book has "and they begat sons of them." Jerome has "and there were among them women who had borne sons." Geneva has "and among them were women that had children," with the note that the children "were made illegitimate because the marriage was unlawful." The Authorized Version has "and some of them had wives by whom they had children." Only the other Greek Ezra, the book the Latin church called 1 Esdras, ends the story: "all these had taken foreign wives, and they put them away with their children."⁷

So the record of the dissolution, read at the page, is this. A layman proposed it as a covenant. Ezra swore the leaders to it and summoned the assembly under threat of exclusion. The assembly agreed and asked for time. A commission sat three months. Four men are named as standing against it. The priests, beginning with the high priest's brothers, pledged to bring out their wives and offered guilt-offerings. One hundred and thirteen names were recorded. And the Hebrew text, at the point where it would say that the wives and children were sent away, is corrupt, and the versions that translate it do not say so. The sentence that says so is in a different book, written in Greek, and the modern critical text imports it. That the measure was intended, and that pledges were given, is not in doubt. That it was carried out, the Hebrew Bible never states. Every reader who thinks otherwise has learned it from 1 Esdras or from Kittel.⁸

The reading is not new, and it is older than Schaeder. Kusters in 1893 read Ezra 10 as a chapter the redactor had reworked from Ezra's first-person memoir, and found in it the marks of a measure that had not carried: the opposition of the four men at verse 15, cut short by a redactor

⁷ Leningrad p. 912, middle column; Kittel p. 1200, note b–b at 10:44: "crp; prps c 9,36 וְיִשְׁלְחוּ מֵהֶם נָשִׁים וְיָבָנִים"; Swete II p. 181, Esdras B X 44, καὶ ἐγέννησαν ἐξ αὐτῶν υἱοὺς; p. 159, Esdras A IX 36, καὶ ἀπέλυσαν αὐτὰς σὺν τέκνοις; Vulgate 1592 fol. 407; Geneva fol. 212, note n; 1611.

⁸ The count is the book's own from the list at 10:18–43 as printed in JPS 1917 (counting Kelaiah once and Bani at verse 38 as a man, not a family), and is given for orientation, not as a datum; the lists differ in the versions.

who "preferred to pass over in silence what could have injured the honour of his hero"; the close of the commission's inquiry at verse 17, which says nothing of dismissals; the pledge of the high priest's family, which would not have been singled out had all complied; and a last verse broken off in mid-sentence, "surely because it told something of these women and their children from which the failure of Ezra's measure appeared." His conclusion was that the original account "said that Ezra's attempt at reform came to grief on the love of the transgressors for their wives and children," and that the community was then formed by the one means left: "if the unlawful marriages could not be dissolved, the transgressors could yet be excluded from Israel. So the community came into being."⁹

Schaeder, whose study of 1930 made Ezra a Persian official and supplied Olmstead's "secretary of state," wrote that the Chronicler's excerpt ends with the list: "Not a word is heard of the outcome of Ezra's action against the mixed marriages." He dismissed the Greek Ezra's ending as a groundless guess at a corrupt text, and he refused to read the close of the commission's work in verse 17 as evidence of dissolution, since "only the carrying through of the statistics is spoken of there." He went further than this book does. Because Nehemiah found "exactly the same situation" thirteen years later, and because neither Nehemiah's memoir nor the Aramaic memorandum of 446 mentions Ezra, he concluded that "Ezra's action against the mixed marriages had failed": that resistance came from the leading families down to the high priest's house, whose taste for alliances with noble circles outside the community was strong, and that

⁹ Kesters, pp. 96–103 (ch. 10 as the redactor's reworking of Ezra's first-person memoir, pp. 96 and 98; the opposition of 10:15, pp. 99–101, with the redactor's motive at p. 100: "da der Redaktor das, was der Ehre seines Helden hätte schaden können, lieber verschwieg"; the commission and the pledge, pp. 101–102; 10:44, pp. 102–103: "sicher weil sie etwas von diesen Frauen und ihren Kindern erzählte, woraus der Misserfolg von Esras Massregel hervorging ... dass der ursprüngliche Bericht besagte, dass Esras Versuch zur Reformierung an der Liebe der Übertreter zu ihren Frauen und Kindern gescheitert ist," p. 103) and p. 110: "Aber kann man die ungesetzlichen Heiraten nicht auflösen, so kann man doch die Übertreter von Israel ausschliessen. So bildet sich die Gemeinde." Pp. 100, 101, 103 and 110 read at the image; the translations are the book's. Kesters places Nehemiah's measures of Neh. 13 before Ezra's and observes that Nehemiah never demanded dissolution (pp. 109–110); the order is the one Part 3.4 leaves open.

Ezra's report was written as an account to the king and to the Babylonian Jews after the failure of his mission, ending "at the point where the turn to failure began." Whether or not the inference holds, the record it rests on is the one read here: a covenant, a list, and silence.¹⁰

What the chapter does state is the vocabulary in which the community understood what it was doing, and that vocabulary is the vocabulary of Part 1. Covenant, oath, assembly, separation, devotion of property, guilt-offering, the land's uncleanness from Leviticus 18, the marriage prohibition from Deuteronomy 7, the peace not to be sought from Deuteronomy 23. There is no word in Ezra 10 for the wives or the children as unclean. There is no Persian word, office or authority in it; the king is not mentioned. The one thing in the chapter that is new is the community's name for itself, the assembly of the exile, and the book turns to that in Part 4.4.

¹⁰ Schaeder, pp. 10 and n. 1, 13–14, 37, 62; the translations are the book's.

4.3 Nehemiah 13 and Malachi 2

Two texts from the generation after Ezra speak to the same marriages, and neither uses his phrase. The book reads them at the Hebrew and the versions here, because the way they were translated shows, better than any argument, where the idea of a holy seed did and did not come from.

Nehemiah's account of his own action is the plainer.

NEHEMIAH 13:23–30 (JPS 1917)

²³ In those days also saw I the Jews that had married women of Ashdod, of Ammon, and of Moab; **24** and their children spoke half in the speech of Ashdod, and could not speak in the Jews' language, but according to the language of each people. **25** And I contended with them, and cursed them, and smote certain of them, and plucked off their hair, and made them swear by God: 'Ye shall not give your daughters unto their sons, nor take their daughters for your sons, or for yourselves. **26** Did not Solomon king of Israel sin by these things? ... nevertheless even him did the foreign women cause to sin. **27** Shall we then hearken unto you to do all this great evil, to break faith with our God in marrying foreign women?' **28** And one of the sons of Joiada, the son of Eliashib the high priest, was son-in-law to Sanballat the Horonite; therefore I chased him from me. **29** Remember them, O my God, because they have defiled the priesthood, and the covenant of the priesthood, and of the Levites. **30** Thus cleansed I them from every thing foreign ...

At the Leningrad Codex the passage fills the right and middle columns of the book's last page, and four of its words carry the argument. The verb of verse 23 is not the marriage verb; it is הָשִׁיבוּ, they had settled or brought home, and the 1611 margin records it: "Heb. had made to dwell with them." The mark of the offence in verse 24 is the children's speech. The charge in verse 29 is הַזְנוּת, the defilements of the priesthood. And the remedy in verse 30 is וְטָהַרְתִּים מִכָּל־נֹכַר, I cleansed them from every foreign thing, a neuter noun. Nehemiah's precedent is Solomon; his nations are Ashdod, Ammon and Moab; his instrument is an oath in Deuteronomy's words. There is no seed in the passage.¹

¹ Leningrad p. 930, right and middle columns; 1611, Neh. 13, margins at 23, 24 and 29.

The versions changed it in three places that matter. The Greek dropped the clause "and according to the language of each people" from verse 24, as Kittel's apparatus records and Swete's text confirms. At verse 29 the Greek misread the Hebrew root: where Nehemiah wrote defilements, the translators saw the homonym that means kinsman and wrote ἐπὶ ἀγγιστεία τῆς ἱερατείας, "for the next-of-kinship of the priesthood," which is nonsense in context but shows a translator who did not have purity in mind. Jerome kept the Hebrew sense at 29, *qui polluunt sacerdotium*, but at 30 he turned the neuter into persons, *ab omnibus alienigenis*, from all foreigners, and the English followed him for three centuries: Geneva "from all strangers," 1611 "from all strangers," Leeser "from all aliens." The Jewish Publication Society in 1917 restored the neuter, "from every thing foreign." Kittel's apparatus, which queries the verb of 23 and the gentilics and proposes "the priests" for "the priesthood" at 29 with one manuscript and three versions, has no note at the oath of 25 or at the cleansing of 30.²

Geneva's annotators told their readers what the Ashdod marriages had done: the Jews "had married wiues thereof, and so had corrupted their speache and religion." The 1611 margin at 29 gives "Heb. for the defilings." Neither speaks of blood.³

Malachi is the harder text and the more important one, because it is the one place outside Ezra where the Hebrew says seed of a Jewish marriage.

² Kittel 1909 p. 1221, notes at 13:23–30; Swete II pp. 211–212 (Esdras B XXIII 23–31); Vulgate 1592 fol. 420; Geneva 1560, Neh. 13; 1611, Neh. 13; Leeser p. 1009; JPS 1917. All at the image except Leeser and JPS.

³ Geneva 1560, Neh. 13, notes l and n; 1611, Neh. 13, margin at 29. Read at the image.

MALACHI 2:10–11, 14–16 (JPS 1917)

¹⁰ Have we not all one father? Hath not one God created us? Why do we deal treacherously every man against his brother, profaning the covenant of our fathers? **11** Judah hath dealt treacherously, and an abomination is committed in Israel and in Jerusalem; for Judah hath profaned the holiness of the LORD which He loveth, and hath married the daughter of a strange god. ... **14** Yet ye say: 'Wherefore?' Because the LORD hath been witness between thee and the wife of thy youth, against whom thou hast dealt treacherously, though she is thy companion, and the wife of thy covenant. **15** And not one hath done so who had exuberance of spirit! For what seeketh the one? A seed given of God. Therefore take heed to your spirit, and let none deal treacherously against the wife of his youth. **16** For I hate putting away, saith the LORD, the God of Israel ...

The Hebrew of verse 11 is וַיִּזְעַל בֶּת-אֵל נָכָר, he has married the daughter of a foreign god; the Hebrew of verse 15 is זָרַע אֱלֹהִים, seed of God. Kittel's apparatus finds verse 15 corrupt at five points and proposes emendations for four of its words, but proposes nothing for seed of God; verse 11 he leaves alone except to suggest deleting "in Israel and." The phrase stands.⁴

The Greek Bible has neither the marriage nor the seed. At verse 11 the Septuagint reads καὶ ἐπετήδευσεν εἰς θεοὺς ἄλλοτρίους, "and went after strange gods": no daughter, no marriage, an idolatry charge in place of a marriage charge. At verse 15 it reads καὶ εἶπατε τί ἄλλο ἢ σπέρμα ζητεῖ ὁ θεός, "and ye said, What else but seed does God seek?", which turns the seed of God into God's desire for offspring. At verse 16 it reads ἀλλὰ ἐὰν μισήσας ἐξαποστείλῃς, "but if, hating, thou put away," which permits the divorce the Hebrew condemns. A reader of the Greek Bible never met Malachi's complaint against marrying out, never met a seed of God, and read Malachi as allowing a man to put away the wife he hated.⁵

Jerome kept the marriage, *habuit filiam dei alieni*, and kept the seed, *nisi semen Dei*, but followed the Greek on the divorce: *cum odio habueris, dimitte*, when thou shalt hate her, put her away. The English translators had both traditions before them and recorded both. Geneva printed "hathe married the daughter of a strange god" and explained in the margin: "Thei haue ioyned

⁴ Leningrad pp. 654–655; Kittel 1909 pp. 905–906, apparatus at Mal. 2:11 and 2:15–16.

⁵ Swete III pp. 96–97 (Mal. II 10–16), with apparatus. Read at the image.

them selues in mariage with them that are of another religion." At 15 it printed "because he soght a godlie seed," glossed as children "borne in lawful and moderat mariage." At 16 it printed the permissive reading, "If thou hatest her, put her away," and then disowned it in the note: "Not that he doeth allowe diuorcement, but of the two fautes he sheweth, which is the lesse." The 1611 translators printed "a godly seed" and set the Hebrew in the margin: "Heb. a seed of God." They printed "he hateth putting away" and set the Greek and Latin in the margin: "Or, if hee hate her, put her away." Leeser printed "a godly posterity" and reported in a note that the Targum read the "one" of verse 15 as Abraham and the seed as the child preserved to him. The Jewish Publication Society gave "A seed given of God" and "For I hate putting away."⁶

The two texts together establish the vocabulary Ezra's generation had for the marriages he dissolved. Nehemiah spoke of defiling the priesthood and cleansing from the foreign; his test was the children's speech and his precedent Solomon. Malachi spoke of one father, one God, the covenant of the fathers, the daughter of a foreign god, the wife of one's youth, and a seed of God. Both are Israel's own vocabulary; both give a religious reason; neither says holy seed and neither says mingle. Where the versions changed them, they changed them in one direction. The Greek removed Malachi's marriage and his seed and licensed his divorce; the Latin turned Nehemiah's foreign things into foreigners. The English margins of 1560 and 1611, to their credit, preserved the Hebrew against their own texts, and told their readers that the marriages in question were with people "of another religion." The doctrine that would later be read into these chapters, that the seed itself was holy and could be defiled by blood, is not in them.

⁶ Vulgate 1592 fol. 849; Geneva 1560 fol. 385, notes p, z and b; 1611, Mal. 2, margins at 15 and 16; Leeser pp. 766–767 and note; JPS 1917. All at the image except Leeser and JPS.

4.4 The Genealogies as Instrument

Ezra and Nehemiah are books of lists, and the lists are where the word seed does its other work. Two passages use a genealogy as a test, and one covenant defines who belongs. All three are read here at the Hebrew and at every version on the shelf.¹

The first test is applied to laymen.

EZRA 2:59–60 (JPS 1917)

⁵⁹ And these were they that went up from Tel-melah, Tel-harsha, Cherub, Addan, and Immer; but they could not tell their fathers' houses, and their seed, whether they were of Israel: **60** the children of Delaiah, the children of Tobiah, the children of Nekoda, six hundred fifty and two.

The Hebrew is וְרָעָם אִם מִיִּשְׂרָאֵל הֵם, "and their seed, whether they were of Israel." This is the one place in the two books where seed is the object of a test, and the test is of descent. Six hundred and fifty-two men from five Babylonian settlements could not show their fathers' house or their line. They are counted in the census all the same; the text records the defect and moves on. Nothing is said of purity, and nothing is done to them. The Greek of the Hebrew book kept "seed"; the other Greek Ezra wrote "generations"; the translators of 1611 printed "seed" and glossed it in the margin as "pedigree"; Leeser wrote "descent." Everyone who translated the verse understood it as a question of ancestry.²

The second test is applied to priests, and here the vocabulary changes.

¹ Leningrad Codex pp. 901, 920–921, 924; Kittel, *Biblia Hebraica*, Pars II (1909), pp. 1188, 1210, 1215; Swete, *The Old Testament in Greek*, vol. II, pp. 144, 165, 195–196, 203; *Biblia Sacra Vulgatae Editionis* (1592), fols. 400, 413–414, 417; Geneva 1560, fols. 208, 215, 216v; *The Holy Bible* (1611), Ezra 2, Neh. 7, Neh. 10; Leeser 1891, pp. 914, 932, 935; JPS 1917.

² Leningrad p. 901, middle column; Swete II p. 165, Esdras B II 59, καὶ σπέρμα αὐτῶν εἰ ἐν Ἰσραὴλ εἰσὶν; p. 144, Esdras A V 37, τὰς πατριὰς αὐτῶν καὶ γενεάς; 1611, Ezra 2:59, margin "Or, pedigree"; Leeser p. 914.

EZRA 2:61–63 (JPS 1917)

⁶¹ And of the children of the priests: the children of Habaiah, the children of Hakkoz, the children of Barzillai, who took a wife of the daughters of Barzillai the Gileadite, and was called after their name. **62** These sought their register, that is, the genealogy, but it was not found; therefore were they deemed polluted and put from the priesthood. **63** And the Tirshatha said unto them, that they should not eat of the most holy things, till there stood up a priest with Urim and with Thummim.

The Hebrew of verse 62 is וְנִגְזְלוּ מִן־הַכֹּהֲנָה. The root is the one Nehemiah uses of the priesthood at 13:29, and it means to defile. The 1611 translators rendered "they were as polluted, put from the priesthood" and set the literal Hebrew in the margin: "they were polluted from the priesthood." This is the one place in all the marriage material of Ezra and Nehemiah where a word of defilement is applied to persons rather than to the land. What it attaches to is this. Three priestly families could not produce their register. One of them had taken its name from a Gileadite father-in-law two centuries or more earlier. The remedy is not a washing or a sacrifice but a suspension: they may not eat the most holy things until a priest stands up with the oracle. The defect is a lost document, the consequence is loss of title, and the cure is a ruling.³

The versions did three different things with the verb. Jerome wrote *eiecti sunt de sacerdotio*, they were cast out. The Greek translator of the Hebrew Ezra misread the root, as he did at Nehemiah 13:29, and wrote that they were "reckoned by kinship away from the priesthood," a phrase that shows he had lineage, not pollution, in mind. The other Greek Ezra wrote simply that they were "separated from the priestly office." Kittel records no variant, except to prefer the other Greek Ezra's "holy things" for "most holy things" in verse 63. The Geneva annotators, who had to explain why priests should be set aside for a missing paper, wrote that the sons of Barzillai had "changed their estate by their name" and so "by Gods iuste iudgemēt lost

³ Leningrad p. 901, left column; 1611, Ezra 2:62 and margin. For the root, Neh. 13:29 in Part 4.3.

bothe the estimation of the worlde & the dignitie of their office." The register, for them, was about office.⁴

Nehemiah 7 repeats both tests word for word, with the number changed to six hundred and forty-two and the governor given the definite article. Kittel's apparatus at the two passages does nothing but cross-refer them. The lists were copied as lists.⁵

The third text is not a test but a definition, and it is the one that tells the reader what the community of Nehemiah's day thought it was.

NEHEMIAH 10:28–30 (JPS 1917)

²⁸ And the rest of the people, the priests, the Levites, the porters, the singers, the Nethinim, and all they that had separated themselves from the peoples of the lands unto the law of God, their wives, their sons, and their daughters, every one that had knowledge and understanding; **29** they cleave to their brethren, their nobles, and entered into a curse, and into an oath, to walk in God's law, which was given by Moses the servant of God ... **30** and that we would not give our daughters unto the peoples of the land, nor take their daughters for our sons.

The parties to the covenant are the priests, the Levites, the temple staff, and **וְכָל־הַנְּבָדֵל מֵעַמִּי** **הָאֲרָצוֹת אֲל־תּוֹרַת הָאֱלֹהִים**, "everyone who has separated himself from the peoples of the lands unto the law of God," with their wives, sons and daughters, "every one that had knowledge and understanding." The community that swears the marriage rule defines itself by the law it swears to, not by the seed it was born of. The Greek translator made the point sharper than the Hebrew: he rendered the participle as "everyone who comes over from the peoples of the land to the law of God," which is a description of converts. The Geneva note took the same view: "Which being

⁴ Vulgate 1592 fol. 400; Swete II p. 165, καὶ ἡγγιστεύθησαν ἀπὸ τῆς ἱερατείας; p. 144, Esdras A V 39, ἐχωρίσθησαν τοῦ ἱερατεύειν; Kittel p. 1188, note a–a at 2:63; Geneva fol. 208, note k. Read at the image.

⁵ Leningrad pp. 920–921; Kittel p. 1210, notes at 7:61–65.

idolaters forsoke their wickednes & gaue thē selues to serue God." Jerome, the 1611, Leeser and the Jewish Publication Society kept "separated." Kittel records no variant.⁶

The first of the covenant's specific undertakings is the marriage rule, and it is Deuteronomy 7:3 recast in the first person plural. The 1611 margin cites Exodus 34:16 and Deuteronomy 7:3 beside it. The rule stands before the Sabbath, the seventh year, the temple tax and the firstfruits. The community put it first; but it put it in the mouth of a body that had just defined itself by adherence to Torah and had sworn its daughters as parties.⁷

What the genealogies were for, then, is answered by the texts that use them. They counted the returned community by fathers' houses, and where a house could not be shown they said so and counted the men anyway. They tested priestly title, and where the register was lost they suspended the priest and called the loss a defilement of his office. They did not test the seed of the people for purity. The one Mishnaic text that later systematised lineage, Kiddushin 4:1, remembers the classes as having "come up from Babylon" and builds the marriage law of the whole people on the priest's, with Leviticus 21 for the impaired priest and Deuteronomy 23 for the excluded; the book returns to it in Part 6.4. Between Ezra's census and that systematisation there is a distance the texts themselves do not close.⁸

⁶ Leningrad p. 924, right column; Swete II p. 203, Esdras B XX 28, π^ς ὁ προσπορευόμενος ἀπὸ λαῶν τῆς γῆς πρὸς νόμον τοῦ θεοῦ; Geneva fol. 216v, note c; Vulgate 1592 fol. 417, *omnes qui se separauerunt de populis terrarum ad legem Dei*; Kittel p. 1215.

⁷ 1611, Neh. 10:30, margin "Exod. 34. 16. Deut. 7. 3." Read at the image.

⁸ Mishnah Kiddushin 4:1–3 at the Kaufmann manuscript and in Danby's translation (1933), p. 327.

4.5 The Samaritans and the Jews Who Stayed

The rule of Ezra 9 and 10 was made by people who had come back from Babylon, and it was made against people who had not. This section asks who those people were. The popular account, and some of the scholarly one, has long assumed three things: that the "peoples of the lands" were the Samaritans, that the Samaritans were foreign colonists of mixed blood, and that the marriage rule was meant to keep that blood out. The book of Ezra does not say so, the book of Nehemiah does not say so, and the one ancient author who connects a mixed marriage with the Samaritan temple wrote five centuries after the event and placed it in the wrong century.¹

The Samaritans enter the story in Ezra 4, before Ezra himself, at the building of the temple under Zerubbabel. The narrator calls them "the adversaries of Judah and Benjamin." They call themselves something else.

EZRA 4:2–3 (JPS 1917)

² then they drew near to Zerubbabel, and to the heads of fathers' houses, and said unto them: 'Let us build with you; for we seek your God, as ye do; and we do sacrifice unto Him since the days of Esarhaddon king of Assyria, who brought us up hither.' ³ But Zerubbabel, and Jeshua, and the rest of the heads of fathers' houses of Israel, said unto them: 'Ye have nothing to do with us to build a house unto our God; but we ourselves together will build unto the LORD, the God of Israel, as king Cyrus the king of Persia hath commanded us.'

Two things in this exchange matter. The first is that the adversaries claim the same God and a cult of two centuries' standing, and the refusal does not dispute the claim. The refusal is a refusal of title: "not for you and for us to build," in the Hebrew, and the warrant cited is not descent, nor purity, nor the law of Moses, but the commission of Cyrus. The neighbours are excluded from the house because the king gave the house to the returned exiles. The second is a

¹ Josephus, *Antiquities of the Jews* XI.7.2–8.2, in Whiston's translation (New York c1855), pp. 309–310; Montgomery, *The Samaritans, the Earliest Jewish Sect* (Philadelphia 1907), pp. 64–69.

small matter of the Hebrew text that every translator has silently decided. The consonants of verse 2 read "and *not* do we sacrifice," which would make the petitioners deny the very cult they are claiming; the Masoretic margin reads "and *to Him* we sacrifice," and every version on the shelf, Greek, Latin, English and Jewish, follows the margin. Kittel's apparatus tells the reader to do the same. The book reads with the margin and records that it has done so.²

Nehemiah, a governor writing his own memoir, names his enemies: Sanballat the Horonite, Tobiah "the servant, the Ammonite," Geshem the Arabian. When they mock the wall he answers in the same language of title: "ye have no portion, nor right, nor memorial, in Jerusalem." When Sanballat rails he does so "before his brethren and the army of Samaria." The Hebrew calls them the army of Samaria. It does not call them Cuthites, colonists, or a mixed people; the polemic of 2 Kings 17, which does, is the narrator of Kings and not the memoir of Nehemiah. Gaster, reading that chapter as a Jew defending the Samaritans, found that its list of transplanted nations agrees with no other list, and that Hezekiah and Josiah, a century apart, met the northern tribes and "do not even refer to their existence." His garrisons may be one reading too many. But the chapter is a summary written to a purpose, and the memoir does not lean on it.³

Where Nehemiah does speak of marriage across the Samaritan line, the vocabulary is priestly. The nobles of Judah, he complains, were bound by oath to Tobiah because Tobiah was son-in-law to Shecaniah son of Arah and Tobiah's son had married the daughter of Meshullam son of Berechiah; two alliances between the Ammonite servant and the Judaeen aristocracy,

² Ezra 4:1–3 at the Leningrad Codex p. 903, right column, with the Qere וְלִי in the margin against the Kethib וְלֵא; Kittel, *Biblia Hebraica* (1909), p. 1190, note a; Swete II p. 167, Esdras B IV 2, καὶ αὐτῷ ἡμεῖς θυσιάζομεν; Vulgate 1592 p. 401, *ecce nos immolauimus victimas*; Geneva 1560 fol. 208, "& we haue sacrificed vnto him," with notes a and b; 1611 p. 731.

³ Neh. 2:19–20 and 3:33–34 (Heb; 4:1–2 in the English versions) at the Leningrad Codex p. 916, right column; Gaster, *The Samaritans, Their History, Doctrines and Literature* (London 1925), pp. 16–18; 2 Kings 17:24–41.

recorded as the cause of the nobles' divided loyalty and not as a pollution. And at the end of the book:

NEHEMIAH 13:28–29 (JPS 1917)

²⁸ And one of the sons of Joiada, the son of Eliashib the high priest, was son-in-law to Sanballat the Horonite; therefore I chased him from me. **29** Remember them, O my God, because they have defiled the priesthood, and the covenant of the priesthood, and of the Levites.

The verb of verse 29 is the one Part 4.4 found at Ezra 2:62, where it was applied to priests whose register could not be found. It is the vocabulary of Leviticus 21, of the priest's office and the priest's marriage, and it is applied here to a grandson of the high priest who had married into the house of the governor of Samaria. The one marriage across the Samaritan line that the Bible condemns is a high-priestly one, and it is judged by the priestly rule. Nehemiah's own verses on the marriages of laymen, five verses earlier, name Ashdod, Ammon and Moab. They do not name Samaria.⁴

The story that makes this expulsion the birth of the Samaritan schism is in Josephus. There, a Sanballat "sent by Darius, the last king, into Samaria," and "a Cuthean by birth; of which stock were the Samaritans also," gives his daughter Nicaso to Manasseh, brother of the high priest Jaddua. The elders of Jerusalem, "very uneasy that the brother of Jaddua the high priest, though married to a foreigner, should be a partner with him in the high-priesthood," order Manasseh "to divorce his wife, or not to approach the altar"; Sanballat promises him a priesthood, a governorship and "a temple like that at Jerusalem, upon Mount Gerizzim"; "many of those priests and Levites were entangled in such matches; for they all revolted to Manasseh." Josephus gives the elders a motive that reads like a gloss on Deuteronomy: they "esteemed this man's marriage a step to such as should be desirous of transgressing about the marriage of

⁴ Neh. 6:17–19 at the Leningrad Codex p. 919, right column; Neh. 13:28–29 at p. 930, middle column (Part 4.3); Ezra 2:62 and the verb נָאֵל at Part 4.4; Neh. 13:23 at Part 4.3.

strange wives, and that this would be the beginning of a mutual society with foreigners, although the offence of some about marriages, and their having married wives that were not of their own country, had been an occasion of their former captivity." The temple is built after Alexander's arrival, in 332. Nehemiah's Sanballat lived a century earlier.⁵

Montgomery, whose Bohlen lectures of 1906 remain the fullest history of the sect in English, put the matter exactly. "The Old Testament vouchsafes nothing more about this scandal, and in no way connects it with the Samaritan schism. Our authority for such an identification is found solely in Josephus." The identity of the two stories "has been generally accepted," Wellhausen among the acceptors, but the "cardinal discrepancy" of a century divides the critics: some take Josephus's date and hold that he "has unwarrantably combined" two stories, and Hölscher held that the verse in Nehemiah "has nothing to do with the Samaritan schism, while Josephus's story is an unhistorical Midrash on that passage." Josephus, Montgomery adds, "like all Jewish literature of antiquity, is absolutely irresponsible in Persian history and chronology." Olmstead, forty years later, states the combined story as fact in a single sentence. The book states it as Josephus's, and notes that even in Josephus it is the elders' fear of "a mutual society with foreigners," and the altar, that drives the expulsion, not a doctrine of seed.⁶

There remains the identification that has done most work in the popular account: that the "peoples of the lands" of Ezra 9 and 10 *are* the Samaritans. This is Meyer's reading. For him the "Landbewohner" are "not people of non-Jewish descent in the province, but the neighbours sitting round about," the Samaritans "mit vollem Recht," and the offenders of Ezra 10 are the

⁵ Josephus, *Ant.* XI.7.2 and XI.8.2–4, Whiston pp. 309–310; the temple after Alexander at XI.8.4. Whiston at the text layer.

⁶ Montgomery, pp. 66–69 and n. 47 (Wellhausen, *Israelitische und jüdische Geschichte*, 4th ed., p. 180; Steuernagel; Hölscher); Olmstead, *History of the Persian Empire* (1948), p. 351 and n. 23. Montgomery at the image; Olmstead at the text layer.

notables who had dealings with "the powerful and rich landowners of the neighbourhood"; Montgomery's footnote allows that the phrase *am ha-areš*, once a social term for the country people, "may have largely obtained its sinister meaning through confusion with the other, 'the peoples of the lands,' designating the Gentile colonists." Ezra 9:1 itself names eight nations, all ancient and none of them Samaria, and Part 4.1 has shown that the list is Deuteronomy's. The identification is an inference from the politics of Nehemiah's memoir read back into Ezra's. It may be right. It is not what the text says, and the book records it as Meyer's.⁷

What the texts do say is consistent. The neighbours of the restored community are excluded from its house by title and from its priesthood by the priestly law; they are not once, in Ezra or Nehemiah, excluded by blood. The Persian king stands on both sides of the quarrel, appointing the governor of Samaria and commissioning the builders of Jerusalem. Five centuries later the Mishnah will list the Samaritan among the "doubtful" stocks, between the foundling and the child of unknown father, and Josephus will call him a Cuthean by birth. Those are later answers to a question the fifth-century texts asked in other terms.⁸

⁷ Meyer, *Die Entstehung des Judenthums* (1896), pp. 126–127; Montgomery, p. 64 n. 44; Ezra 9:1 at Part 4.1.

⁸ Mishnah Kiddushin 4:3, Kaufmann manuscript and Danby p. 327 (Part 4.4); Josephus, *Ant.* XI.7.2.

4.6 The Women's-Status Inflection

The rule of Ezra 9 and 10 was made about women by men. That is not a comment on the age; it is a description of the texts, and the description has to be exact, because the women of these books are neither absent nor silent in the way a reader of the marriage chapters alone would suppose.

They are present at every gathering and counted in every list. While Ezra prayed before the house of God "there was gathered together unto him out of Israel a very great congregation of men and women and children; for the people wept very sore." Among the returned exiles Nehemiah's register counts "two hundred forty and five singing men and singing women." When Ezra read the law it was "before the congregation, both men and women, and all that could hear with understanding ... in the presence of the men and the women, and of those that could understand," in the words of Deuteronomy's own command that "the men and the women and the little ones, and thy stranger" should hear it. When the covenant was sworn, "their wives, their sons, and their daughters, every one that had knowledge and understanding" entered it. When the wall was dedicated "the women also and the children rejoiced." And when the poor cried out against their brethren over debt and the selling of sons and daughters, it was "the people and their wives" who cried.¹

They are absent from every decision. The assembly that resolves on the dissolution is "all the men of Judah and Benjamin"; the sealers of the covenant are men, listed by name; the offenders of Ezra 10 are men who "have taken foreign wives," and the wives are named

¹ Ezra 10:1 (Leningrad p. 911); Neh. 7:67 (p. 921, right column); Neh. 8:2–3 (p. 921, middle column); Deut. 31:12; Neh. 10:29 (p. 924); Neh. 12:43; Neh. 5:1.

nowhere, speak nowhere, and have no recorded fate, because the Hebrew of the last verse of Ezra breaks off and the dismissal is supplied only by the Greek of 1 Esdras. Nehemiah's remedy for the marriages of Ashdod, Ammon and Moab is an oath imposed on the husbands. The one woman's voice in the whole matter is the children's: they "spoke half in the speech of Ashdod," their mothers' tongue.²

That last detail is the point on which the whole question of Persian influence turns for this Part, and it was found by reading Boyce rather than by reading Ezra. The rule of Ezra 9:2 makes the mother's people decisive. A foreign wife makes the seed mingled and the children foreign, and both are sent away together. The mother has no standing, but her descent has every consequence. Boyce, arguing that the Achaemenian court held the Zoroastrian purity law, found that the kings from Artaxerxes I onward took Babylonian wives who "kept her alien faith," and explained why this did not trouble the faith: "The admixture of foreign blood in the royal line could be ignored because of the widespread ancient belief ... that woman was no more than a vessel into which man cast his seed. So the child of an Iranian male could be thought of as purely Iranian." She adds that the belief "persisted down to modern times in the Zoroastrian community, and not a single woman's name appears in the long genealogies of Parsi priests," and Kreyenbroek's Bombay informants of the 1990s still accept the children of Parsi fathers and refuse the children of Parsi mothers. Ezra's rule and the Persian rule are mirror images. In Persia the father's seed made the child pure and the foreign wife could be ignored; in Yehud the foreign wife made the child foreign and could not be kept. Boyce herself, in the same paragraph, supplies the only Persian sentence that resembles Ezra's logic, that "however much the mother's physical role might be diminished, her capacity to mould a child's thoughts and habits had to be

² Ezra 10:9, 10:2–3, 10:44 (Part 4.2); Neh. 10:2–28; Neh. 13:23–25 (Part 4.3).

acknowledged," and she offers it as the Persian motive for marrying within the faith, not as a model for anyone's law of divorce.³

Whether the standing of women in Israel fell, rose, or held across the exile is a question the shelf disputes at the baseline. Stade, followed by Schwally, Benzinger and Nowack, held that the Hebrew woman "was not capable of exercising the cult," and built a picture of pre-exilic religion in which women were disqualified by sex. Peritz, in the one monograph on the subject before 1930, answered that the conclusion rests "not upon any direct evidence derived from the Old Testament itself, but upon a remote and supposed analogy" from the law of inheritance; that the laws which make a woman "ceremonially defiling" in childbed or in her courses describe a condition that "is only temporary: its removal can be effected. And the very exception of woman's fitness for the cult under those conditions proves the rule of her ordinary inclusion"; and that the singing women of Nehemiah's register show women "still held positions in the temple choirs" in the restoration itself. Peritz's evidence is pre-exilic and Priestly, and he does not treat the dissolution. The book records the dispute and observes only that the women of Ezra and Nehemiah, hearing the law and entering the covenant, fit his baseline better than Stade's.⁴

The baseline itself is stated most plainly by Bertholet in 1919. In the old Israelite family the legal line ran through the father and took no account of the mother's origin: Ishmael, the slave's son, would have shared Isaac's inheritance had Sarah not driven him out, and Jephthah, the son of a common prostitute, was driven out by his brothers precisely because, left in place, he would have inherited with them. "So little did the old Israelite have, in the legal sense, any

³ Boyce, *A History of Zoroastrianism* II (Leiden 1982), p. 196 of the spread; Kreyenbroek, *Living Zoroastrianism* (2001), p. 58 n. 67; Part 5.3. The inversion is stated here because this is where the standing of women is treated.

⁴ Benzinger, *Hebräische Archäologie*, p. 140, as quoted by Peritz; Peritz, "Woman in the Ancient Hebrew Cult," *Journal of Biblical Literature* 17 (1898), pp. 111–113, 132–133, 147–148. Bertholet's *Kulturgeschichte Israels* (1919), which treats marriage and the family, is read at Parts 1.3 and 4.6.

concept of what we call legitimacy of birth. Everything depends on descent from the father." The parents' displeasure at Esau's Hittite wives and Samson's Philistine one did not unmake the marriages, and the many cases of intermarriage with Canaanites, Bertholet judged, more than outweighed the preference for marrying within the clan. If that was the rule before the exile, then Ezra 10, where the children go out with their foreign mothers, and the Mishnah of Part 6.4, where the mother's standing decides the child's, do not continue Israel's older law. They invert it. And Boyce's Persia, in which the child of an Iranian father is Iranian whatever the mother, runs with the old Israelite rule and against the new one.⁵

What the fifth-century texts attest, then, is narrow and firm. Women were members of the assembly and parties to the covenant, and they were the objects and not the authors of the marriage rule. Their descent determined their children's standing and their own standing determined nothing. The rabbinic dispute on whether a daughter should be taught Torah, Ben Azzai for and Rabbi Eliezer against, belongs to the second century of our era and to Part 6; it is a dispute, not a rule, and it is not evidence for the fifth century before it. Whether any of this owes anything to Persia is a question on which the shelf holds one Persian datum, and that datum points the other way.⁶

⁵ Bertholet, *Kulturgeschichte Israels* (Göttingen 1919), pp. 109–111, read at the image ("Auf die Herkunft vom Vater kommt alles an, — das ist in der Tat vollendeter Ausdruck des zur Herrschaft gekommenen Patriarchates. Die Frau ist Nebensache," p. 111; the Canaanite connubium, p. 110); the translation is the book's. Boyce II p. 196 at Part 5.3.

⁶ Mishnah Sotah 3:4 at the Kaufmann manuscript; Part 6.4.

PART 5 — PERSIA AND THE QUESTION OF INFLUENCE

5.1 Cyrus's Religion in His Own Words, and Darius's

If a Persian idea reached Yehud through the court, the court's own statements of its religion are the first place to look for it. Two survive from the reigns that matter: the Cylinder of Cyrus, read in Part 2.1, and the great inscription of Darius on the rock of Behistun, read here in the British Museum collation of 1907 by King and Thompson.¹

Cyrus's words have been given. He is Marduk's chosen, "the king who worships him," of a dynasty "whose rule Bel and Nabu love"; he restores gods to their cities "by command of Marduk"; he asks the restored gods to pray for him "before Bel and Nabu." No god of Iran is named, and nothing is said of purity, of marriage, or of seed except his own, "eternal seed of royalty," the phrase every Near Eastern king used of his line. Whether Cyrus held any Iranian faith the Cylinder does not say; it says what he chose to say in Babylon, and it is the only statement of his religion in his own name.²

Darius spoke at length, and in his own language. The Behistun inscription opens with descent: "I am Darius, the great king, the king of kings, the king of Persia, the king of the provinces, the son of Hystaspes, the grandson of Arsames, the Achaemenian ... On that account are we called Achaemenians; from antiquity are we descended; from antiquity hath our race been kings ... Eight of my race were kings before me; I am the ninth. In two lines have we been

¹ King and Thompson, *The Sculptures and Inscription of Darius the Great on the Rock of Behistun* (London 1907); the Persian text with translation at pp. 1 ff., the Babylonian version at pp. 159 ff.

² Rogers, *Cuneiform Parallels* (1912), pp. 380–383; Weissbach, *Keilinschriften der Achämeniden* (1911), pp. 2–7. Rogers at the image; Weissbach pp. 2–7 at the image.

kings." Then the god: "By the grace of Auramazda am I king; Auramazda hath granted me the kingdom." The narrative that follows is of usurpation and the Lie. When Cambyses went to Egypt "the people became hostile, and the lie multiplied in the land, even in Persia, as in Media, and in the other provinces." Then "a certain man, a Magian, Gaumata by name," rebelled and "lied unto the people, saying: 'I am Smerdis, the son of Cyrus.'" Darius killed him, and "the temples which Gaumata the Magian had destroyed I rebuilt."³

The fourth column states his creed as a confession. "By the grace of Auramazda have I always acted. Auramazda brought me help, and the other gods, all that there are. On this account Auramazda brought me help, and the other gods, all that there are, because I was not wicked, nor was I a liar, nor was I a tyrant." And to his successors: "thou who shalt be king hereafter, beware of lies; the man who is a liar, destroy him utterly."⁴

This is the religion of the Persian court as the court stated it in the years when Zerubbabel was building the second temple. Its god is Auramazda, named beside "the other gods, all that there are." Its cardinal sin is the Lie. Its legitimacy is descent within a royal house. Its enemy in the narrative is a Magian, whose religious acts the king reversed by rebuilding what he had destroyed. It contains no dualism, no Angra Mainyu, no law of purity, no rule about the marriage of Persians with others. It contains a genealogy, but the genealogy is the king's, and its function is the one every dynastic inscription in the Near East gives it. Herodotus, describing Persian customs two generations later, saw the same religion from outside: worship on mountain tops without images or temples, sacrifice only in a Magus's presence, the Lie as the most disgraceful of things, a readiness to adopt foreign customs greater than any other nation's, several wives and

³ King and Thompson pp. 1–8 (col. I §§ I–XI) and § XIV. Text layer, confirmed at the image at the leaves quoted.

⁴ King and Thompson p. 71 (col. IV §§ LXII–LXIII) and § LV. Text layer, confirmed at the image at the leaves quoted.

more concubines, and a rule of exposing the dead which, he says, the Magi followed openly and the Persians did not, covering their dead with wax and burying them.⁵

Darmesteter, who edited the *Vendidad* for the *Sacred Books of the East*, drew the conclusion in 1880: the Avesta's central purity practice, the exposure of corpses, "was either disregarded by the Achaemenian kings, or unknown to them," and dualism in their time was "a Magian article of faith." How and Wells, commenting on Herodotus in 1912, agreed that "these rules of burial were not observed by the ordinary Persian." The Avesta's purity law and the court's Auramazda cult were, on the evidence of the court itself and of the Greek who watched it, two different things, and only the second was in a position to reach Yehud through the channels of empire.⁶

Moulton, delivering the Hibbert Lectures in 1912 as a specialist in the Avesta, reached the same result on Cyrus by the same route. Against Eduard Meyer's dictum that no unprejudiced mind could doubt Cyrus was a Zoroastrian he set the record: "We have nothing whatever from Cyrus's own hand which could possibly bear on the question, except the 'Cylinder Inscription' with its profession of loyalty to Marduk, and the rescript in Ezra (1:2–3) where he declares that Yahweh is God." He read the rescript as the kind of concession Darius also made to foreign subjects, and drew from neither document a conclusion about the king's own faith: "it will not do for us to compensate for the silence by a mere 'doubtless,' which is all too often the cloak for a total absence of evidence." Cyrus might have been a Mazdean by clan, but "if it was possible to be a Mazdean without ever having heard of Zarathushtra, we have nothing left as proof, and next to nothing amounting to a presumption, that Cyrus had come in contact with the Reform." The

⁵ Herodotus I.131–140, in Rawlinson, *The History of Herodotus*, vol. I (New York 1861), pp. 207–216. Text layer, confirmed at the image at the leaves quoted.

⁶ Darmesteter, *The Zend-Avesta, Part I: The Vendidad*, Sacred Books of the East IV (Oxford 1880), Introduction III, pp. xlv–xlv; How and Wells, *A Commentary on Herodotus*, vol. I (Oxford 1912), p. 116, at I.140.1.

rescript's "God of heaven," he added, "suits his own religious phraseology perfectly," the phraseology of a king whose chief god may have been the sky. Darius he held a Zoroastrian, on Geldner's authority. The Iranist's Cyrus in 1912 is the Cylinder's Cyrus, and the Iranist's reading of Ezra 1 is the one this book gives it in Part 5.5: an authorisation in the idiom of the people addressed.⁷

So, before the Avesta is read in Part 5.2: the two Persian kings whose words survive from the century of the return said nothing the holy-seed rule could descend from. Cyrus spoke Marduk's theology. Darius spoke Auramazda's, beside all the other gods, against the Lie, and against a Magian. If the rule came from Persia, it did not come from the court in the court's own voice.

One phrase in the Cylinder's titles: Cyrus calls his house "eternal seed of royalty," *zēru dārû ša šarrūti*, the Akkadian cognate of the Hebrew word for seed used of a dynasty. It is ordinary courtly language of the Babylonian scribes, twenty years before any Judaeon text speaks of a holy seed, and it is a dynastic idiom, not a purity one. It shows that seed as lineage was the common speech of the court the exiles served. Nothing more is drawn from it.⁸

⁷ Moulton, *Early Zoroastrianism*, Hibbert Lectures 1912 (London 1913), pp. 40–43, 48; pp. 41 and 43 read at the image, pp. 40, 42, 44–48 at the text layer. Two printings were compared, the 1913 Williams and Norgate printing and the 1926 Constable re-issue, page for page identical; cited by printed page.

⁸ Rogers, p. 382, line 22, translation and transliteration, read at the image.

5.2 What Zoroastrianism Was in 539

The influence hypothesis requires a Zoroastrianism that existed, in the relevant form, at the moment of contact. What can be shown to have existed, and by whom? The question is put to every authority on the shelf, from the editor of the Avesta in 1880 to the Cambridge textbook of 2014. They do not agree, and each is heard.

The oldest external witness is Herodotus, writing about ninety years after the fall of Babylon and within a generation of Ezra. His Persians have no images, temples or altars; they sacrifice on mountain tops to the sky, which he calls Zeus, and to sun, moon, earth, fire, water and winds; they have lately added a goddess borrowed from the Arabians and Assyrians. A Magus must be present at every sacrifice. They hold the Lie the most disgraceful of things. They adopt foreign customs more readily than any nation. They keep several wives and more concubines, and prize many sons. They will not defile a river. And the exposure of the dead, which he has heard is Persian, he can vouch for only of the Magi, "for they practise it without any concealment"; the Persians cover their dead with wax and bury them.¹ The Magi gave the Greek language its word for their craft: *μαγικός*, the Magian art, is the root of *magic*, and Pliny could write that without doubt magic arose in Persia with Zoroaster. That is the ancient form of the attribution the book examines, and it is recorded here as such and not as evidence.²

What that account shows has been read two ways. Darmesteter, editing the Vendidad in 1880, read it as evidence that "the most important practice of the Avesta law was either

¹ Herodotus I.131–140, in Rawlinson, *The History of Herodotus*, vol. I (New York 1861), pp. 207–216.

² Yamauchi, "Magic in the Biblical World," *Tyndale Bulletin* 34 (1983), p. 174 and n. 17 (Pliny, *NH* 30.2; Messina 1930; Benveniste 1938; Bidez and Cumont, *Les mages hellénisés*, 1938; Nock 1940); in copyright, cited at the print pagination.

disregarded by the Achaemenian kings, or unknown to them," and that dualism was in that age "a Magian article of faith," "peculiar to one class, the sacerdotal class, the Magi." How and Wells in 1912 agreed: "H. is quite right, however, in saying that these rules of burial were not observed by the ordinary Persian." Olmstead in 1948 put it more strongly: "Herodotus proves that in his day tearing by bird or dog was still confined to the Magi."³

Mary Boyce, in the second volume of her *History of Zoroastrianism* in 1982, read the same chapter the other way. "In general Herodotus' comments on the religion of the Persians accord very well with Zoroastrian beliefs and practices as these would have been apprehended by an intelligent and inquiring observer." On the burials: "inhumation had been the regular funerary rite of the western Iranians before they embraced Zoroastrianism; and Herodotus' remarks suggest that the laity found it hard to exchange this for exposure. His statement about embalming presumably applies only to the wealthy, who seem in this to have preferred royal example to religious precept. The magi, however, having adopted the eastern faith, appear to have accepted its observances unreservedly." For Boyce the Persians of Herodotus are Zoroastrian laity slow to adopt one hard rule; for Darmesteter and Olmstead they are a people whose priests alone kept it. The text is the same. The reading turns on what one already holds about the kings.⁴

On the kings, Boyce is definite. Cyrus was a Zoroastrian, and his acknowledgment of Marduk in Babylon, of the "great gods" at Ur, of Sin at Harran, was "a matter of traditional diplomatic courtesy rather than one involving faith." She does not hide the cost of the position: "Doctrinally it is impossible to reconcile his verbal acknowledgements of alien great gods with

³ Darmesteter, *The Zend-Avesta, Part I: The Vendidad*, SBE IV (Oxford 1880), Introduction III, pp. xlv–xlv; How and Wells, *A Commentary on Herodotus*, vol. I (Oxford 1912), p. 116, at I.140.1; Olmstead, *History of the Persian Empire* (Chicago 1948), p. 19 n. 22.

⁴ Boyce, *A History of Zoroastrianism*, vol. II, *Under the Achaemenians* (Leiden 1982), pp. 182–183; the volume is in copyright and is cited at the print pagination.

his own acceptance of Ahuramazda as the one true God, Creator of all; but in this he was only acting, however illogically, in accordance with the conventions of the civilizations he had subdued." Her evidence is indirect. The Achaemenid family names are Zoroastrian; the fire-holders and tombs at Pasargadae "testify to orthopraxy"; and Second Isaiah's new theology of creation, which "seems to have been new and unfamiliar in these for Jewish ears," runs parallel to the questions of Yasna 44, so that "it is moreover reasonable to suppose that the agent in this case was a magus ... who could travel to Babylon in ostensible quest of knowledge, and hold discussions there with a man of religion such as Second Isaiah." Boyce herself calls the Zoroastrian tradition that Cyrus established the faith as a religion of state a late reconstruction by western magi who confused him with the prophet's patron Kavi Vištāspa. And she records that Cyrus was buried, and that "even outside the imperial family, burial seems to have remained the common rite for some generations under the Achaemenians."⁵

Olmstead, whose 1948 history was the standard account when Boyce wrote, took a different line on both the prophet and the king. He put Zoroaster's mission "about the middle of the sixth century" and his patron Vishtaspa at the court of Darius's father, so that Darius's own name, "Who Sustains Good Thought," "proves that already in 550 his father had been converted." On this view Zoroaster was a contemporary of Cyrus, not his predecessor, and Cyrus's own faith is left undescribed; Olmstead quotes the Cylinder at length as "a model of persuasive propaganda" and draws no inference from it about what Cyrus believed. Boyce rejects the identification of Darius's father with the prophet's patron as the same late confusion.⁶

⁵ Boyce II, pp. 64–66 (Cyrus and alien faiths), 43–47 (Second Isaiah and Yasna 44, after Morton Smith, *JAOS* 83, 1963), 66 (Pasargadae), 68–69 (the later identification of Cyrus with Kavi Vištāspa), 59 (burial). Read at the image (the scan is two-page spreads without a text layer).

⁶ Olmstead, *History of the Persian Empire*, pp. 94, 102–103 and n. 19, 107; pp. 52–53 on the Cylinder.

The Cambridge textbook of 2014 states the present position. "Ahuramazda does not occur in any earlier written sources" than Darius. "The Achaemenids are often described as Zoroastrians. This is perhaps an apt characterization on the surface — especially if one focuses only on the ideology as expressed in the royal inscriptions — but one that does not do justice to the variety of evidence." The Avesta's earliest copies "date several centuries after the Achaemenid period ... it is difficult to use it as a source." "The date of Zoroaster himself is still debated, with estimates ranging from c. 1800 to the sixth century BCE." "None of the texts therein contains clear reference to the Medes or the Achaemenid Persians. However one defines a Zoroastrian stream of tradition, the Achaemenid kings were instrumental in shaping it. Instead of forcing the Achaemenids into a preconceived Zoroastrian system, we should consider the Achaemenids' impact on a still nascent and evolving tradition." And from the one class of primary evidence none of the older authors had in full: "There is no traceable instance of compulsory worship of Ahuramazda ... The Persepolis Fortification archive indicates that well over a dozen Iranian, Elamite, and Mesopotamian deities were worshipped in the core of the Empire, testimony to the continuity and compatibility of several traditions."⁷

The court's own words are the one fixed point. Darius at Behistun names Auramazda as the giver of his kingdom and, in the same breath, "the other gods, all that there are." He calls the Lie the sin that undid Cambyses's realm. He names a Magian as the usurper and boasts of rebuilding the temples the Magian destroyed. He says nothing of a hostile spirit, nothing of purity, nothing of marriage. Whatever the Magi believed, the Achaemenid king did not put it on his rock.⁸

⁷ Waters, *Ancient Persia: A Concise History of the Achaemenid Empire, 550–330 BCE* (Cambridge 2014), pp. 150–156; in copyright, cited at the print pagination.

⁸ King and Thompson, *The Sculptures and Inscription of Darius the Great on the Rock of Behistun* (1907), pp. 1–8, 71; Part 5.1.

So the shelf holds three positions. Darmesteter, How and Wells and Olmstead hold that the Avestan purity practice was the Magi's and not the court's. Boyce holds that the court was Zoroastrian from Cyrus onward and the laity slow to follow the priests in one hard observance. Waters holds the question open and the label "Zoroastrian" apt only on the surface, with the archives showing a plural cult at the empire's core. What existed in 539, on the evidence all three accept, was a royal cult of Auramazda tolerant of other gods and hostile to the Lie, and a priestly caste, the Magi, with observances the court did not visibly share. What is disputed is whether the king privately held the priests' faith. What no one on the shelf places in Yehud is a Magus.

5.3 The Purity Law and Its Date

If Ezra's holy seed had a Persian antecedent, it would have to be found in the Avesta's law of purity, the *Vendidad*, or in the Persian practice of marriage. Three things are read here: the one passage of that law which a careful advocate could cite, in the standard English edition; the editor's account of when the law was written down; and what the leading modern advocate of Achaemenid Zoroastrianism says about Persian marriage and Persian seed.

The *Vendidad* is a code of pollution and cleansing. Its long central section, Fargards (chapters) V to XII, concerns the dead body and everything the dead body touches. Fargard XVI concerns the menstruating woman. Fargard XVIII, in its second half, concerns the courtesan, and it is this passage that speaks of the faithful and the unfaithful together.¹

Zarathustra asked Ahura Mazda: "Who grieves thee with the sorest grief? Who pains thee with the sorest pain?" Ahura Mazda answered: "It is the Gahi, O Spitama Zarathustra! who goes a-whoring after the faithful and the unfaithful,

¹ Darmesteter, *The Zend-Avesta, Part I: The Vendidad*, SBE IV (Oxford 1880), contents and Fargards V–XII, XVI, XVIII.

after the worshippers of Mazda and the worshippers of the Daêvas, after the wicked and the righteous. Her look dries up one third of the mighty floods that run from the mountains; her look withers one third of the beautiful, golden hued, growing plants ... Verily I say unto thee, O Spitama Zarathustra! such creatures ought to be killed even more than gliding snakes, than howling wolves ..."²

The Gahi is the courtesan, "an incarnation of the female demon Gahi." Her sin is promiscuity, and the Pahlavi commentary Darmesteter prints insists that the line between the faithful and the unfaithful makes no difference to it: "whether she gives up her body to the faithful or to the unfaithful, there is no difference; when she has been with three men, she is guilty of death." Nothing in the passage concerns marriage between a Mazda-worshipper and an outsider. Nothing in it concerns seed, lineage or descent.³

The rest of the Vendidad's purity law is law of body and contact. How and Wells called it "a Persian Leviticus," and the comparison is fair as far as it goes, for Leviticus 11 to 15 is law of the same kind. But Leviticus 21 and Ezra 9 are not that kind of law, and the Vendidad contains no counterpart to them.⁴

Boyce describes what Persian practice did hold about marriage and seed. It is set out in full, because it bears on the holy seed from two directions. The Iranians were, she says, "an endogamous people," and the Zoroastrian duty of *khvaetvadatha*, next-of-kin marriage, "was regarded as a highly meritorious religious duty, incumbent on king and commoner, layman and priest." Its origin she can only conjecture: "at an early and struggling stage of its history ... the Zoroastrian community, while earnestly promoting marriages between the faithful, found itself, because of their small numbers, solemnizing unions within the immediate family," and priests later "developed a theory ... that these close unions actually strengthened the faith"; it was

² Darmesteter, *Fargard XVIII* 61–65, pp. 200–201. Read at the image.

³ Darmesteter, p. 200, notes 1 and 2; p. 201, note 3, citing the Saddar. Read at the image.

⁴ How and Wells, *A Commentary on Herodotus*, vol. I, p. 115, at I.138.2.

"presumably in origin a desire to unite true believers, born of the same stock and with the same inheritance of faith and piety." That is a same-stock marriage ideal, held in Persia in the century of Ezra. It is the nearest thing to a parallel the shelf affords.⁵

Then Boyce turns to the fact that the Achaemenid kings took foreign wives, and explains why it did not trouble the faith. "The admixture of foreign blood in the royal line could be ignored because of the widespread ancient belief (attested in Iran down to modern times) that woman was no more than a vessel into which man cast his seed. So the child of an Iranian male could be thought of as purely Iranian, however alien his mother ... It is in accordance with this belief that not a single woman's name appears in the long genealogies of Parsi priests." Here the Persian doctrine is the reverse of Ezra's. Ezra 9:2 holds that the holy seed has mingled itself by taking foreign daughters, and Ezra 10 proposes to put the wives and their children out. The Zoroastrian doctrine, on the account of its most sympathetic modern historian, holds that a foreign wife cannot touch the seed at all. If Persian influence had operated on this point, it would have argued for keeping the wives.⁶

The first volume of the same history, which the second sends the reader to for the purity code itself, makes the case for a late barrier in Boyce's own words. The rules of daily living, she writes there, "can be shown to have proliferated down the centuries, and they created eventually an iron code of conduct which had the effect of raising a barrier between Zoroastrian and unbeliever almost as rigid as that which separates the caste Hindu from the rest of humanity." She adds that "in the absence of any early Avestan text concerning such matters, it is impossible to determine which were the original observances of the faith, which later extensions," and she explains the Vendidad's tariff of lashes as a scale for money fines that grew up "after

⁵ Boyce II, pp. 75–77, 196. Read at the image.

⁶ Boyce II, p. 196. Read at the image.

Zoroastrianism had become a state religion." In that code the unbeliever appears as a source of pollution, whose corpse defiles less than a believer's and whose household is unclean; he does not appear as a spouse. Nothing in the chapter concerns marriage across the line of faith.⁷

The same volume shows what entry into the community was. It was by profession. The creed a convert recited, the Fravarane, "has been characterised as 'the oath which was required of someone being received into the faith'," the message was "open to any person of good will and understanding," and the convert took a girdle as the badge of a new allegiance. The one clause of that creed which names kin marriage Boyce herself calls "oddly placed," so that "the possibility that it is an interpolation cannot therefore be dismissed." Twenty years later, reviewing another scholar's comparison of the two religions, she put the difference in a sentence: "whereas the religion of Israel was an ethnic one, Zoroastrianism is the first of the credal faiths." That is the book's difficulty with channel C stated by its foremost advocate. A religion that admitted members by oath is an unlikely source for a rule that admitted them by birth.⁸

The date of the law is the last question. Darmesteter ascribed the first collection of the Avesta to an Arsacid king and its canon to the Sasanians, with the Vendidad's commentary of Sasanian date. Waters in 2014 says the same in a sentence: the earliest copies "date several centuries after the Achaemenid period," and the texts contain no "clear reference to the Medes or the Achaemenid Persians." Boyce holds the tradition far older and orally transmitted, and no one on the shelf disputes that the Gathas are old; what is disputed is whether the purity code of the Vendidad, as distinct from the prophet's hymns, can be placed in the sixth century. The book

⁷ Boyce, *A History of Zoroastrianism*, vol. I, *The Early Period* (Leiden 1975), ch. XII, pp. 294–295, 301 n. 38, 306, 309 n. 92, 318–319, 324; read at the image of the author's copy; in copyright, cited at the print pagination.

⁸ Boyce I, pp. 250–257, with p. 254 n. 24 on the clause in Yasna 12.9 (Mills, SBE XXXI, Oxford 1887, p. 250: "the Faith of kindred marriage", read at the image); p. 186 on Yasna 46.5; Boyce, "On the Orthodoxy of Sasanian Zoroastrianism," *BSOAS* 59 (1996), p. 12.

records that the earliest external witness to any Persian purity custom is Herodotus, that what he attests is leprosy, rivers and the exposure of the dead, and that on the last he says the Persians did not do it.⁹

The finding is in three parts. The purity law of the Avesta, as it can be read, contains no rule of the marriage line and no doctrine of seed. The Persian doctrine of seed that can be recovered is the father's seed alone, under which foreign wives are harmless; the Persian marriage ideal that can be recovered is endogamy within the faith and the family. And the written code cannot be dated on the shelf's evidence earlier than the Arsacid collection, so that even a rule it did contain could not be shown to have existed when Ezra wrote. A hypothesis of origin needs a text and a date, and for the marriage rule channel C has neither. What it has, in Boyce, is a parallel ideal and an inverted doctrine, and the book carries both.

⁹ Darmesteter, Introduction III, pp. xxxii–xlvi; Waters, *Ancient Persia*, p. 152; Herodotus I.138–140 in Rawlinson I, pp. 215–216. Darmesteter and Waters at the text layer; Rawlinson at the image at the leaves quoted.

5.4 What the Influence Literature Actually Claims

The claim that Judaism took its shape from Persia has a literature, and the literature is on the shelf: the works that argued or examined Persian influence between 1866 and 1921, the standard histories of the Persian empire from 1948 and 2014, and the strongest modern statement of the influence thesis, Boyce's second volume of 1982. Every one was searched for the marriage question and read where the question appears. The result takes two sentences. None of them derives the marriage rule, the holy seed or the dissolution of 458 from Persian religion. The ones that explain the rule at all explain it from Israel, and the one that comes nearest to a Persian explanation, Boyce, argues for something else.¹

Kuenen's *Religion of Israel*, in 1875, contains the most systematic nineteenth-century chapter on the subject, and Kuenen was no minimiser of Persian influence. He grants Persia the angels of Zechariah, the growth of Satan into an adversary, the resurrection of the dead, the division of history into ages, and Purim. But on the reform he is firm: "The birth and earliest history of Judaism have been explained in this and the previous chapter quite naturally, without any necessity for calling in the influence of Parseeism to our aid ... We will not dwell any longer, therefore, upon this opinion, which, besides, is now altogether obsolete." On the priestly law: "The precepts concerning *clean* and *unclean*, which occupy so large a space in it, are of Israelitish origin." The chapter never mentions marriage.²

¹ The works and the pages searched are named in Part 5.4. Quotations here from the older works are from the page image; Boyce was read at the image; Olmstead and Waters at the text layer of their publishers' files.

² Kuenen, *The Religion of Israel to the Fall of the Jewish State*, tr. May, vol. III (London 1875), ch. IX, pp. 35–36, 37–43. Read at the image at the leaves cited, at the text layer elsewhere.

Cheyne, the leading English advocate of Persian influence at the century's end, addressed the marriages directly in 1898 and disliked what Ezra did. He called the story "not less full of improbability," and explained it: "This vehemence and rigour (so far as they are historical) were but the excess of his religious patriotism. They arose out of his dread of the too possible disastrous consequences of mixed marriages. A child is always affected permanently for good or for evil by the religion of its mother ... That was chiefly why Ezra and Nehemiah were so much opposed to mixed marriages. The religion which they desired to promote was a book-religion." There is no Persian element in his account.³

Bousset in 1906 treated the prohibition once, as the crown of a national programme: "Quite in the spirit of an Ezra and Nehemiah, whose reform began with the building of the wall that shut Jerusalem off from the outside world and was crowned with the strict enforcement of the prohibition of mixed marriage, the further development of Jewish religion proceeded ... The holiness of the people and of the land, that is, its untouchedness and unmixedness with heathen ways, became its highest ideal." His long discussions of Persian influence never return to the subject.⁴

Moulton answered Bousset from the Iranist's side in the Hibbert Lectures of 1912, and his concluding lecture, "Zarathushtra and Israel," is the fullest audit of the influence question written by a specialist in the Avesta before the war. He observed that the theories of dependence "do not come from Iranian experts, but from scholars whose fame was achieved in other fields," that Darmesteter had held the borrowing to run the other way, and that "the real Avestan experts are very cautious indeed." He then took the alleged debts one by one. The elaborated angelology of

³ Cheyne, *Jewish Religious Life after the Exile* (New York and London 1898), pp. 58–61.

⁴ Bousset, *Die Religion des Judentums im neutestamentlichen Zeitalter*, 2nd ed. (Berlin 1906), p. 107 and note 1; the translation is the book's.

later Judaism might have "a possible *vera causa* in Magianism," a question that "seems to me to have singularly little importance." Guardian angels and the angels of the nations resemble the fravashis closely enough that "it is not unreasonable to suspect a real foreign influence here." For Satan, "a hint was given and used, but used in a wholly original and characteristic way." For the imagery of apocalyptic a connexion "remains on the whole probable. The debt, if acknowledged, is small enough." For immortality, Persia "may have contributed something." That is the whole list, and his index confirms it: under Judaism's alleged borrowing from Parsism stand angelology, fravashi, demonology, apocalyptic, immortality and the virgin birth. Marriage, purity, descent and the reform of Ezra are not there. The one Iranian marriage doctrine Moulton found travelling westward was the Magian next-of-kin marriage, which "these alien priests failed in their long struggle to get ... established as orthodox," and whose Avestan attestation he placed "quite late." Bousset's own admission, that the Jews met Persian religion in Babylon "not in its purity but when strongly tainted with Babylonian elements," meant for Moulton that "Zarathushtra himself is to be struck out of the list of the prophets who contributed to the development of Israel's religion."⁵

Bertholet's monograph of 1896 on the position of Israelites and Jews toward foreigners explains the rigour from Malachi and Trito-Isaiah, from the Deuteronomist and Ezekiel, and from what he calls the barrier of blood: "he in whose veins the pure blood of the people of the constitution does not flow is not of the holy seed." The Persian court appears in one sentence, as

⁵ Moulton, pp. 205–206, 286–289, 317–329, and Index III s.v. Judaism, p. 459. Pp. 206, 287, 296, 301, 317–318, 321–322, 324–326, 329 and the index p. 459 read at the image; pp. 205, 286, 288–289, 319–320, 323 at the text layer.

the dispensation that gave the reformers "the means." That is authorisation, and Part 5.5 takes it up.⁶

Olmstead's history of 1948 is the standard mid-century account, and it frames the reform as a Persian administrative act carried out for Jewish reasons. Ezra "held a double office": priest of the Babylonian Jews and "the scribe of the law of the God of heaven, or, as we might say, the secretary of state for Jewish affairs, responsible to the king for his community." "Persia was tolerant of the various ethnic religions but insisted that their cults should be well organized under responsible leadership and that religion should never mask plans for rebellion." The lawbook was "significantly entitled data like the king's law." Then: "Of the needed reforms, the most pressing was the abolition of mixed marriages, through all centuries the most dangerous threat to Judaism. 'Mingling of the holy seed with the daughters of the peoples of the lands' might be condoned in a community in which males were in the majority, but that the higher classes should be the chief offenders was unforgivable." Olmstead adds that Ezra's opponents "could appeal to the evidence of the historical sections of the lawbook itself," and reads the book of Ruth as their tract. Waters in 2014 treats Ezra's law as "the Mosaic law code" enforced "under the aegis of the King's law" and does not mention the marriages at all.⁷

Boyce is the exception, and she needs care: she is the one author on the shelf who argues that Zoroastrianism shaped the Jewish law of purity in the age of Ezra and Nehemiah. Her argument runs through Nehemiah's office. "As a royal cupbearer, in daily attendance on the Great King," he "must have been required to keep the laws of purity strictly himself (as an unclean man could not have served the king)." From that she infers: "it seems likely that

⁶ Bertholet, *Die Stellung der Israeliten und der Juden zu den Fremden* (Freiburg and Leipzig 1896), pp. 136–137; the translations are the book's.

⁷ Olmstead, *History of the Persian Empire* (Chicago 1948), pp. 304–307; Waters, *Ancient Persia* (Cambridge 2014), pp. 161–163.

Zoroastrian example was also one of the factors which led to the gradual transformation of the Jewish purity code from regulations concerning cultic matters to laws whose observance was demanded of every individual in his daily life. Thus after the exile the Jews ... came to have their whole lives regulated by strict laws of purity, and to be, like Zoroastrians, in a state of self-imposed isolation from other peoples." She extends the thought to the Priestly Code, to the doctrines of the hereafter and to angelology, and she states the condition under which such borrowing could happen: "the Jews could accept ... because in these matters the Zoroastrian doctrines seemed a development rather than a contradiction of their own beliefs." In the same pages she grants that the Holiness Code, Leviticus 18 to 26, "though it is wholly Jewish in inspiration, may owe its place and something of its emphases to the deepening interest in purity."⁸

Three things follow about this, the strongest form of the influence thesis on the shelf. It is a thesis about scope and emphasis, not about origin: the purity law is Israelite, and what Persia is said to have supplied is the extension of that law from the cult to daily life and the temper of separateness that went with it. It rests on an inference from an office, not on a text: no source places a Magus in Yehud or records what Nehemiah did at the king's table. And it does not touch the marriages. Boyce's account of what Zoroastrians held about seed and foreign wives, set out in Part 5.3, runs the other way from Ezra's rule. She does not claim, and on her own evidence could not claim, that the holy seed came from Persia.⁹

Her popular history of 1979 confirms the limit from the other side. There the Jews are "one of the peoples, it seems, most open to Zoroastrian influences," and what they adopted is listed: the one supreme God, a Saviour, judgment, heaven and hell, the resurrection. The purity

⁸ Boyce II, pp. 189–190 and n. 51, 191–195. Read at the image.

⁹ Boyce II, pp. 75–77, 196; Part 5.3 above.

laws appear in the next sentence, but on the other side of the ledger, among the things "in which Judaism and Zoroastrianism were in harmony" and which therefore "allowed Zoroastrian doctrines to exert their influence." A strict code was what the Jews already had, in her account, not what they received. And she closes: "The extent of this influence is best attested, however, by Jewish writings of the Parthian period," which is three centuries after Ezra. When she describes a Zoroastrian court dealing with foreign wives, in the Sasanian age where the evidence is thick, the wives are purified and kept. Boyce's real claim, sustained across every one of her works on the shelf, is about apocalyptic and the hereafter, and that claim belongs to Part 6.¹⁰

The third volume, written with Grenet in 1991, is her last word, and it moves the date. Writing of the magi under the Seleucids, she says that "one potent means of keeping Iranians apart from the foreign settlers existed in the purity laws," that to develop these "would then have been a natural priestly preoccupation," and that "in Palestine at this epoch new prescriptions were given out, designed to keep orthodox Jews pure and separate from the intruding Gentiles." Her note assigns the Vendidad's purity texts to the Seleucid or Parthian period on the ground that "purity laws are much more likely to have been a matter for preoccupation in a time of foreign dominance than when Zoroastrians were ruling Iran." On that chronology the Zoroastrian barrier is younger than Ezra's, and the two are siblings, each a subject people's answer to Greek settlers. When the same volume returns to the Jews, the argument of 1982 is carried as "it has been suggested that the remarkable extension of Jewish purity laws in post-Exilic times owed something to Zoroastrian example," and the footnote cites her own second volume. The carriers are now "fringe groups among the Jews, outsiders in the eyes of the community's leaders," and Jews in Persian service, with Nehemiah placed at the table of Artaxerxes II. And she states the

¹⁰ Boyce, *Zoroastrians: Their Religious Beliefs and Practices* (London 1979), pp. 51–52, 77, 98–100, 139; Boyce, "On the Antiquity of Zoroastrian Apocalyptic," *BSOAS* 47 (1984), pp. 71–75, for the apocalyptic claim and its opponent; in copyright, cited at the print pagination.

general rule the book has followed: "in no instance ... can the end product be described as simply Persian."¹¹

The rest of the shelf is silence. Kohut cites Ezra for the return. Stave, whose whole book argues Persian influence, has no marriage entry in his list of parallels and describes Ezra's means as a royal firman, a decree. Söderblom's marriages are Zarathustra's own. Böklen's Ezra is the apocalypse. Scheftelowitz's Ezra is the legend of his assumption. Mills cites Ezra for the edict of Cyrus. Carter in 1918, listing the agreements between the two religions, notes that the Zoroastrian orders "were not castes, for they were not hereditary, nor was intermarriage forbidden," and that the Jewish community in the Persian period "received many foreigners into its midst." Meyer's one mention of mixed marriage is a footnote on the Ashdodite speech of the children.¹²

This is a finding about the literature, not a proof about history. A thing may be true that no one has argued. But when later writing derives Ezra's rule from Zoroastrian purity, it is not inheriting the scholars who built the influence thesis, and it is not inheriting Boyce. They built the thesis on angels, on Satan, on the resurrection and on Purim; Boyce extended it to the reach of the purity law and the habit of separateness; and when any of them came to the marriages they wrote of religious patriotism, national self-preservation, the barrier of blood and the king's law.

Thirteen works across a century and a half explain the rule. None explains it from Persia.

¹¹ Boyce and Grenet, *A History of Zoroastrianism*, vol. III, *Zoroastrianism under Macedonian and Roman Rule* (Leiden 1991), pp. 68 and n. 78, 361, 367 and n. 21, 410–411 and n. 226; read at the image of the author's copy; in copyright, cited at the print pagination. Ch. 11 (pp. 360–457) was searched entire: the Jewish borrowings claimed are eschatology, resurrection, angelology and dualism, Hellenistic in date and sectarian in milieu; marriage, seed and Ezra are not mentioned.

¹² Kohut, *Über die jüdische Angelologie und Dämonologie* (1866); Stave, *Über den Einfluss des Parsismus auf das Judentum* (Haarlem 1898), pp. 54, 72–78; Söderblom, *La vie future d'après le mazdéisme* (1901); Böklen, *Die Verwandtschaft der jüdisch-christlichen mit der parsischen Eschatologie* (1902); Scheftelowitz, *Die altpersische Religion und das Judentum* (1920); Mills, *Zarathushtra, Philo, the Achaemenids and Israel* (1906) and later; Carter, *Zoroastrianism and Judaism* (Boston 1918), pp. 38–39, 83; Meyer, *Ursprung und Anfänge des Christentums*, II (1921), p. 108 n. Stave is cited at the page and not quoted.

The thesis has had three modern forms outside the academy, and the book records them because Part 7 must know what it is answering. The freethought form is John P. Brown's *Researches in Oriental History* (1891), which makes the Jews' religion a plagiarism from Persia and names Ezra as the agent; the Muslim-missionary form is Kamal-ud-Din's *Islam and Zoroastrianism* (c. 1925), which treats Zoroaster and Moses alike as prophets whose books were corrupted and makes no claim about Persian influence on Judaism at all; the evangelical form is the one Yamauchi wrote against and Taylor's 2024 essay repeats. Only the first derives Ezra from Persia. The three are the same comparison put to three different uses, and the second shows that the comparison can be made without the derivation.¹³

¹³ Brown, *Researches in Oriental History*, 3rd ed. (Rockford, Ill., 1891), tested clause by clause; Kamal-ud-Din, *Islam and Zoroastrianism* (Woking, c. 1925), title and contents, in which Judaism appears only as a foil; Taylor 2024 and Yamauchi at Part 5.4 above.

5.5 The Authorization Thesis

Part 5.4 finds that the literature which derives Jewish doctrine from Persia does not derive the marriage rule from it. There is a second and older account of Persia's part in the making of Judaism that has nothing to do with doctrine. It holds that the Persian court supplied not the content of Ezra's law but its force: that a book which a party of Babylonian Jews had compiled became binding on the community of Jerusalem because the king made it so, and that the dissolution of the marriages in Ezra 10 was carried out under a royal warrant. This is the authorization thesis. It was stated in its classic form by Eduard Meyer in 1896, adopted the same year by Bertholet and two years later by Stave, and it stands in the current histories as the frame within which Ezra's mission is read. It rests on one document, the Rescript of Artaxerxes in Ezra 7:12–26, and this section reads that document before it reads the thesis.¹

The Rescript is the one Persian act toward Yehud whose text the Bible preserves in full. It is in Aramaic, the chancery language of the empire, set into the Hebrew narrative without a break in the manuscript and introduced by a Hebrew rubric that calls Ezra "the scribe of the words of the commandments of the LORD, and of His statutes to Israel." The Aramaic that follows names him differently. It calls him "scribe of the law of the God of heaven," and its word for law is not an Israelite word but the Persian *dāta*, the king's own term for his law. The document uses that word five times: for the law in Ezra's hand by which he is to inquire into

¹ Meyer, *Die Entstehung des Judenthums* (Halle 1896), pp. 60–71, 126–127, 168; Bertholet, *Die Stellung der Israeliten und der Juden zu den Fremden* (1896), pp. 136–137; Stave, *Über den Einfluss des Parsismus auf das Judentum* (Haarlem 1898), pp. 72–79; Stade, *Geschichte des Volkes Israel* II (1888), pp. 153–154, 161; Kuenen, *Einleitung* I 2 (1890), pp. 165–166; Driver, *Introduction*, 4th ed. (1892), p. 516; Olmstead, *History of the Persian Empire* (1948), pp. 304–305; Waters, *Ancient Persia* (2014), pp. 161–162. The pages of Meyer and Stave quoted below were read at the images (Method).

Judah and Jerusalem, for the laws of his God which the judges he appoints must know, and in the closing verse for both laws at once.²

EZRA 7:25–26 (JPS 1917)

²⁵ And thou, Ezra, after the wisdom of thy God that is in thy hand, appoint magistrates and judges, who may judge all the people that are beyond the River, all such as know the laws of thy God; and teach ye him that knoweth them not. **26** And whosoever will not do the law of thy God, and the law of the king, let judgment be executed upon him with all diligence, whether it be unto death, or to banishment, or to confiscation of goods, or to imprisonment.

What the Rescript grants is easily listed. Any Israelite, priest or Levite who wishes may go up with Ezra. He is sent by the king and his seven counsellors to inquire "according to the law of your God which is in your hand." He carries the king's gifts and the people's, and is to spend them on sacrifice at the altar in Jerusalem. The treasurers of the satrapy are to honour his requisitions up to stated ceilings. The temple staff are exempt from tribute, impost and toll. He is to appoint judges over all who know his God's laws, to teach those who do not, and to punish those who will not do "the law of your God and the law of the king" with death, uprooting, fine or bonds. The king's stated motive is fear: "for why should there be wrath against the realm of the king and his sons?"³

What the Rescript does not contain is as easily listed, and it matters more. It contains no word for wife, woman, seed, foreigner, people of the land, separation, purity or marriage. It describes the law it authorises in one phrase only, "the law of your God which is in your hand," and it names no provision of that law. Its only substantive religious content is sacrifice. Throughout, the king says "your God" and "the God of Israel whose dwelling is in Jerusalem,"

² Ezra 7:11–12, 14, 21, 25, 26 at the Leningrad Codex pp. 907–908 and Kittel, *Biblia Hebraica* (1909), pp. 1194–1195. On *dāta* as the Persian legal term: Olmstead, p. 305; Meyer, pp. 60–61, on the title.

³ Ezra 7:13–26; the ceilings of v. 22 are a hundred talents of silver, a hundred kors of wheat, a hundred baths of wine, a hundred of oil, and salt without limit. The Aramaic at Leningrad p. 907; the English is the JPS 1917 translation.

never "my God." The one Persian document in the book of Ezra is a grant of standing, jurisdiction and penalty to a law whose content it leaves entirely to the man who holds it.⁴

The versions confirm this reading and add nothing to the law. The Greek of Esdras B keeps the two laws side by side; the older Greek of Esdras A widens the venue to "all Syria and Phoenicia" and raises the God of heaven to "the Most High," but supplies no religious provision. Jerome's Latin, the Geneva Bible, the 1611 Bible, Leeser and the Jewish Publication Society all render the same four penalties and the same two laws. Where they diverge is on a single word, the uprooting word of verse 26, which occurs nowhere else in the Bible: both Greek recensions make it a word for chastisement, Jerome makes it exile, the English Bibles make it banishment, and only the 1611 margin, "Chald. to rooting out," and Rashi, "extermination," keep the root. The Geneva annotator of 1560 read verse 25 as the authorization thesis in miniature: "He gaue Ezra ful autoritie to restore all things according to the worde of God, and to punish them that resisted and wolde not obeie." He read verse 23 as a statement about the king: "This declareth that the feare of Gods iudgements caused him to vse this liberalitie, and not the loue that he bare to Gods glorie or affection to his people."⁵

Meyer's book of 1896 was written to defend this document. He opens by conceding the state of the question: the Rescript "gilt gegenwärtig allgemein für eine 'grobe Fälschung.'" Kuenen had found "sehr schwerwiegende Gründe" against its authenticity, though his own conclusion was the narrower one that a genuine edict had been "im jüdischen Geiste bearbeitet und erweitert"; Kusters thought it "so jüdisch gefärbt" that Ezra could not have transmitted it;

⁴ Ezra 7:12–26 at the Leningrad Codex p. 907.

⁵ Swete, *The Old Testament in Greek*, II (1907), pp. 152–153 (Esdras A VIII 19–24) and 173–174 (Esdras B VII 12–26); *Biblia Sacra Vulgatae Editionis* (Rome 1592), p. 404; Geneva Bible (1560), fol. 210, notes f, n, o, p; 1611 Bible, pp. 735–736 and margins; Leeser (1891 ed.), pp. 919–920 and notes. Esdras A VIII 1–13 (pp. 150–151) read at the image: Ezra "priest and reader of the law of the Lord", the rescript as a Hellenistic royal letter with "the seven friends-counsellors".

Wellhausen set it aside altogether; Stade held that its content bore "den Stempel der Wahrheit," and Driver that "in substance, it is undoubtedly genuine." Kuenen's objection is the one that bears on this book, and Meyer quotes it: the king in this letter "spricht darin nicht wie ein Anhänger des Zarathustra, sondern wie ein gläubiger Israelit." Meyer's answer is that the king does no such thing. For Artaxerxes the God of heaven at Jerusalem "ist nur ein mächtiger Gott, dessen Zorn man zu meiden hat," and even in the Rescript he is "'Euer Gott in Jerusalem' (v. 17), nicht sein eigener Gott." Darius, Meyer allows, was "ein überzeugter Mazdajasnier" for whom the foreign gods were a matter of policy; his descendants had grown more anxious, and for Artaxerxes "zu dem politischen Motiv offenbar noch ein individuelles, wirklich religiöses hinzugekommen," a respect for the power of a foreign god. Both the critic who rejected the document and the historian who saved it agree on the point this book needs. Neither finds Zoroastrian doctrine in it.⁶

Meyer then explains the Jewish colouring that had troubled Kusters. The names Israel and "the God of Israel whose dwelling is in Jerusalem," the knowledge of the Levites and the temple classes, the knowledge of the sacrificial ritual: "Das kann allerdings kein Perser aus eigener Kenntniss geschrieben haben." The Rescript is "nichts anderes als die Redaction einer Vorlage, die Ezra und seine jüdischen Genossen, welche am Hofe Einfluss hatten, den Ministern vorgelegt haben." The Persian government could not have acted of its own motion, "denn sie konnte davon nichts wissen"; it approved the petitions the Babylonian Jews laid before it, and the

⁶ Meyer, pp. 60, 63–64. Kuenen's words read at first hand in *Historisch-kritische Einleitung in die Bücher des alten Testaments*, tr. Weber, I 2 (Leipzig 1890), § 33 n. 5, pp. 165–166, where his conclusion is not forgery but that "das ursprüngliche Edict im jüdischen Geiste bearbeitet und erweitert worden ist"; Stade, *Geschichte des Volkes Israel* II (Berlin 1888), p. 153 ("den Stempel der Wahrheit"); Driver, *An Introduction to the Literature of the Old Testament*, 4th ed. (Edinburgh 1892), p. 516 ("In substance, it is undoubtedly genuine"). Kusters's own words at *Wiederherstellung*, p. 95: "Das Empfehlungsschreiben des Arthasastha ist so jüdisch gefärbt, dass Ezra es nicht mitgeteilt haben kann"; he assigns the genealogy of 7:1–5 and the itinerary of 7:7–10 to the Chronicler as well and keeps 7:27–8:34 as Ezra's own (p. 95, read at the image).

document "ist von Ezra und seinen Genossen aramäisch, nicht persisch concipirt worden." The content, on the account of the thesis's own founder, came from the Jews.⁷

What came from the king was force. Verse 26, Meyer writes, "die vielfach Anstoss erregt hat, ist die unentbehrlichste in dem ganzen Erlass." The law was "nicht eine private Abmachung zwischen den Mitgliedern eines religiösen Conventikels, sondern das rechtlich bindende Grundgesetz einer vom Staate anerkannten Gemeinde," and such a book could be imposed on a class of subjects only "wenn es vom Reich sanktionirt, wenn es königliches Gesetz geworden ist. Das wird v. 26 ausdrücklich ausgesprochen." Those who would not submit "werden aus der Gemeinde ausgestossen, ihre Habe wird gebannt (Ezra 10,8)." The scope was the community of Judaea; the Jews of Babylonia might take the law upon themselves, "aber rechtlichen Zwang hat es für sie nicht." From this Meyer drew the sentence that gave the thesis its name. The Palestinian community "aus eigenem Antriebe niemals das unpraktische und allen irdischen Verhältnissen gegenüber völlig rücksichtslose Gesetz auf sich genommen haben würde, wenn sie nicht dazu gezwungen wäre; die babylonischen Juden aber hätten niemals die Macht gehabt, ihr das Gesetz zu octroyiren, wenn nicht die Reichsgewalt hinter ihnen gestanden hätte." And yet the Persians had done nothing extraordinary; they had done for Jerusalem what Darius did for the priesthood of Sais when he let its high priest come to Susa and take home a warrant to reorganise the temple scribes. "So ist die Entstehung des Judenthums nur zu begreifen als Product des Perserreichs."⁸

Meyer applied the thesis to the marriages directly. Ezra's antithesis, he writes, is the returned exile against "die Bewohner des Landes," whom Ezra 9:1 equates with the ancient nations "die das Gesetz des Deuteronomiums auszurotten befiehlt, mit denen jedes Ehebündniss

⁷ Meyer, p. 65. Read at the image.

⁸ Meyer, pp. 66–67, 70–71. Pp. 66, 70, 71 at the image; p. 67 at the text layer.

verboten ist, damit das Volk dadurch nicht zum Götzendienst verführt werde." The summons of Ezra 10:7–8 threatened confiscation and expulsion from the assembly, and Meyer's gloss is a single clause: "Ezra hat ja vom König die Strafgewalt erhalten." The people of the land were not the humbler natives of the province but "die ringsumstehenden Nachbarn," the Samaritans, and the offenders were the notables who had dealings with the great landowners beyond the border. Membership of the community itself was by proven Israelite descent, and the rest "gelten noch ein Jahrhundert lang als Proselyten." On this reading the source of the rule is the Deuteronomic ban and the fear of idolatry; the source of the penalty is verse 26. Rashi had drawn the same line in the eleventh century, as Leeser's note records: by this edict "the Israelites were to be judged after the Jewish, not the Persian laws, and Ezra was to be the chief-justice, but not the civil governor."⁹

Schaeder's study of 1930, *Esra der Schreiber*, is the thesis in its most developed form, and the source of the office that Olmstead's history gives Ezra. Reading the title in the Rescript, "the priest, the scribe of the law of the God of heaven," as an official designation repeated in the king's orders to the treasurers, he showed from Akkadian, Elephantine and Middle Persian usage that the scribe of a department was its high officer, so that the title "can mean nothing other than an official whose department within the Persian administration is the interests of the Jewish God and of his community," the forerunner of the later exilarch. Each half of the title he read as a concession by one side to the other. "Priest," in the Jews' own word rather than the Aramaic one they kept for pagan priests, was "a concession of the Persian bureaucracy to the Jews"; "God of heaven," in place of the Name, was the Jews' "well-considered concession to the religious conception and language of the Persians," which set their God beside "the lord of heaven

⁹ Meyer, pp. 126–127, 168; Leeser, p. 920, note on 7:25. Pp. 126–127 at the image; p. 168 and Leeser's note at the text layer.

Ahuramazda" without surrendering "the particular character of the Jewish idea of God." The Rescript itself "shows in its expression a strong Jewish colouring. It would be striking if it were otherwise. For of course the decree was authorised by the Great King, but it was conceived not by him or by any chancery clerk but by an expert, that is, by a Jew." And on what the king's warrant did in Jerusalem, Schaefer's finding is the reverse of Meyer's gloss. The warrant "expressly directed him to have those who resisted the provisions of his law judicially tried and punished. But it is characteristic of him that he renounced this power and took another way. He wanted to shake the consciences of those who had gone astray; not under compulsion from authority but in free acknowledgement of the forgotten divine command were they to change their ways." Ezra obtained "the solemn promise of the community to dissolve the mixed marriages"; the list took a quarter of a year; and there the record ends. On the marriages themselves Schaefer's explanation is internal and political: the rich and well-born, in economic distress and out of opportunism, sought connexion with the non-Jewish notables of the province "and above all with the Persian authorities, and to secure these by marriage alliances." The plan Ezra carried "had arisen from the religious world of ideas" of the Babylonian Jews, who "took a still stronger part in Ezra's undertaking than the government."¹⁰

Stave, whose book of 1898 is the fullest nineteenth-century case for Persian influence on Judaism, accepted the Rescript and Meyer's account of it. He added a qualification that no advocate of the Persian origin of the marriage rule can afford to overlook. The Jewish turns of phrase in the document, he wrote, are explained if Ezra or a Jew of influence at court "dem königlichen Minister ein Konzept vorlegte"; "Aus eigenem Antrieb hat Artaxerxes ein derartiges Gebot nicht erlassen können, sondern natürlich auf Ansuchen Esras oder seiner Genossen."

¹⁰ Schaefer, pp. 34, 36, 41–49, 55, 62; read at the image; the translations are the book's. Olmstead, p. 304 n. 7, cites the work for the office.

Then, of the separation itself: Ezra came to see "dass es eine unumgängliche Grundbedingung für die geistige Isolierung der Juden wäre, sie auch äusserlich scharf von den Heiden ringsumher abzuschliessen, und demgemäss seine Massregeln getroffen. Aber in seiner Vollmacht stand nichts von einer derartigen Erlaubnis." When the separation took the form of a wall, the neighbours complained and the king stopped it. Stave's conclusion is that Persia's outward help was what made a real religious community in Jerusalem possible, without which the exiles' hopes would have remained "pia desideria" and the Jews of Jerusalem "höchstens eine Mischungssekte von der Art der Samariter"; but the impulses, he says in the same breath, "rührten die geistigen Impulse von den frommen Juden in Babylon her." Bertholet put the same finding as a paradox: "eine seltsame Fügung, dass ihnen Fremde selber, der persische Hof, die Mittel an die Hand geben, die Massregeln durchzuführen, durch welche die Fremden von Israel ausgeschlossen werden sollen."¹¹

The current histories keep the frame and drop the confidence. Olmstead makes Ezra "the secretary of state for Jewish affairs, responsible to the king for his community," and observes that the lawbook was "significantly entitled *data* like the king's law"; Persia "insisted that their cults should be well organized under responsible leadership and that religion should never mask plans for rebellion." Waters reports that the authenticity of the Rescript "is debated," that "most scholars take this to mean the Mosaic law code, even if they differ on the extent of its implementation," and that the mission "provides a compelling example of local autonomy under the aegis of the King's law. The former could be granted as long as it did not contravene the

¹¹ Stave, pp. 74–76, 78; Bertholet, pp. 136–137. Stave pp. 74–76, 78 at the image; Bertholet at the text layer.

latter." Boyce, whose case for Persian influence on the purity law Part 5.3 has read, quotes the Rescript for Ezra's office and says nothing of its content.¹²

The authorization thesis, then, divides into three claims, and the method of this book requires that they be sorted separately. First, that the king lent his word for law, and his penalties, to Ezra's book. The Aramaic attests it, on one condition: that the document is what it claims to be. That dispute has run from Kuenen to Waters, and it is finer than genuine against forged. Kuenen himself allowed a genuine original worked over in a Jewish spirit; Stade and Driver, a genuine substance in a Jewish form. The spectrum is stated here, not settled. If the Rescript is a Persian chancery product, it shows what the king authorised; if it is a Jewish composition, it shows what the community said it had been authorised to do. On either reading it authorises no rule of marriage. That the dissolution of Ezra 10 was an exercise of the penalties in verse 26 is an inference, drawn by Meyer, by the Geneva annotator, and by Rashi before them; the Hebrew of Ezra 10:8 threatens confiscation and separation from the assembly and does not cite the king. That the content of the law came from Persia is claimed by no one. The founder of the thesis says the court "konnte davon nichts wissen"; the shelf's foremost advocate of Persian influence says the separation was not in the mandate. With Meyer and Schaefer the count of works on this shelf that explain the marriage rule without deriving it from Persia rises to seventeen.¹³

One consequence holds for Part 5 as a whole. The Rescript is the only Persian act toward Yehud whose words survive, and the only channel from the court to the province that any source attests. Its text carries no Persian religious content. The scholar who rejected it did so because its piety was too Israelite; the scholar who saved it did so by showing that its piety was the ordinary

¹² Olmstead, pp. 304–305; Waters, pp. 161–162; Boyce II, p. 190.

¹³ The seventeen: the fifteen of Part 5.4, Meyer 1896, who was read for the authorization question and not counted there, and Schaefer 1930.

caution of a king toward a foreign god. Channel B, as its founders understood it, is a channel for authority and not for doctrine. It explains why the assembly of the exile could threaten a man's goods and his place in the congregation. It does not explain why the assembly thought the seed holy, or why it thought the mother's people made a child foreign, and its authors never said it did.¹⁴

¹⁴ Ezra 10:8 at the Leningrad Codex p. 911.

5.6 Verdict: Attested, Inferred, Not Measured

The method sorts every claim of influence into what a source attests, what a scholar infers, and what has not been measured, and it sorts each proposition on its own rather than the thesis whole. Here is the result, proposition by proposition, as the shelf stands.¹

That a Zoroastrian purity system existed in the century of the return. Attested: a royal cult of Auramazda from Darius onward, hostile to the Lie, tolerant of "the other gods, all that there are"; a priestly caste, the Magi, with a purity observance the Persians of Herodotus's day did not share; a plural cult at Persepolis. Inferred: that the Avesta's purity code, or its Gathic core, was held at court in that form, which Boyce argues and Darmesteter, Olmstead and Waters do not. Not measured: the date of Zoroaster, which the current textbook leaves open across twelve centuries, and the date of the Vendidad's law, which no text on the shelf places before the Arsacid collection.

That the court held it. Attested: Darius's Auramazda and his Lie. Inferred: Cyrus's Zoroastrianism, which Boyce reads behind a Cylinder she herself calls doctrinally irreconcilable with it, from family names, from Pasargadae and from the parallels between Second Isaiah and Yasna 44. Not attested by any source: a religious motive for the conquest, or any vision of Yahweh.

That there was a channel to Yehud. Attested: Persian authorisation of Ezra's law and Nehemiah's mission, in the Rescript and the governorship, which Olmstead and Waters read as the king's law extended to a subject cult, and which Part 5.5 finds to be a grant of standing and

¹ The propositions are stated as Parts 1–5 have tested them; the evidence for each stands in the sections cited there.

penalty to a law whose content the grant never states. Inferred: Boyce's mechanism, a Magus in Babylon in Cyrus's cause and a cupbearer bound to the purity code at the king's table. Not attested: a Magus in Yehud, or any Persian religious act in the province.

That the holy-seed rule had a Persian antecedent. Not attested by any text: the Vendidad's one passage on the faithful and the unfaithful concerns a courtesan and says the distinction does not matter. Inferred, and inverted: the Persian doctrine of seed that Boyce recovers is the father's seed alone, under which foreign wives could be ignored; the Persian marriage ideal she recovers is endogamy within the faith. The first is the reverse of Ezra's rule; the second is a parallel of temper, not of text. Not measured: nothing, on this proposition; the shelf's evidence is in.

That Israel's own law was insufficient to produce the rule. Contradicted by the texts read in Parts 1 and 4: every term of Ezra 9 and 10 stands in an earlier Israelite text with a religious or priestly reason clause, and Ezra 9:2 is a coinage from those parts. What survives is Boyce's narrower claim, that Persian example extended the reach of an Israelite purity law from the cult to daily life. That claim is inferred, is not refuted by anything on the shelf, and does not concern marriage.

That the change in women's standing was Persian. Not measured, except that the one datum Boyce supplies, the vanishing of women from Persian genealogies under a doctrine of the father's seed, points away from the logic of a rule that made the mother's people decisive.

The verdict, then, is not a verdict on Persia. It is a verdict on a phrase. The holy seed of Ezra 9:2 is attested as Israelite in every part; its dissolution is attested as an act of the assembly of the exile under Persian authority; the Persian religion of the period is attested as a court cult with a priestly caste beside it, and disputed in everything beyond that; and the one modern

scholar who argues Persian influence on the Jewish law of purity argues it for the law's reach and not for this rule, and describes a Persian doctrine of seed that would have kept the wives. What the fall of Babylon did to Jewish self-definition is therefore not answered by finding its cause in Persia. It is answered, in Parts 6 and 7, by watching what the community did with an idiom it had made for itself.

PART 6 — SYSTEMATIZATION, 458 BC TO 200 CE

6.1 Ben Sira

Between Ezra and the Mishnah lie four centuries in which the rule of Ezra 9 was neither forgotten nor left alone. The texts of this Part show what became of it: hardened by some hands, opened by others, and made into a system by the rabbis who inherited both. The book reads them at the witnesses on the shelf, the Hebrew leaves of Ben Sira recovered from the Cairo Genizah, a synagogue storeroom, as Schechter and Taylor and Cowley and Neubauer printed them, Charles's Jubilees from the Ethiopic, Schechter's Zadokite fragments, Whiston's Josephus, and the Mishnah in the Kaufmann manuscript's text beside Danby's English.¹

Ben Sira wrote in Jerusalem about 180 BC, under the Seleucids, in praise of the high priest Simon. He uses the word seed of a class of men once, and the verse survives in Hebrew only in part. The Greek has four lines: "What seed is honoured? The seed of man. What seed is honoured? Those who fear the Lord. What seed is dishonoured? The seed of man. What seed is dishonoured? Those who transgress the commandments." The Hebrew fragment reads *וְרַע לְאָנוּשׁ*, "a seed of man," and has lost two lines to a copyist's eye; the Syriac has "the honoured seed is he who fears God." Smend, whose commentary of 1906 remains the fullest, saw the target: the seed is named "because the godless meant here are nobles of Hellenising mind," and against them Ben Sira sets "the fear of God as the true honour of man," so that "the nobility of birth of the

¹ Danby, *The Mishnah* (Oxford 1933), is in copyright and is cited at the print pagination; the Kaufmann text is cited from a typeset edition of the manuscript, read at the image; the Hebrew readings are the book's own.

Hellenising aristocracy is nothing beside it." The honoured seed, in the first Jewish book after Ezra to use the phrase, is defined by conduct against birth.²

The same author gives the daughter a page. "A daughter is to a father a deceptive treasure, and the care of her putteth away his sleep: in her youth lest she commit adultery, and in her virginity lest she be defiled ... in the house of her husband lest she bear not. My son, keep a strict watch over thy daughter, lest she make thee a name of evil odour, a byword in the city and a cursing of the people, and shame thee in the congregation of the gate." The daughter is a hazard to her father's honour; whom she may marry is not his subject.³

And at the close of the book, after the blessing on Simon, "May he confirm to him the covenant of Phinehas, which he executed unto him and unto his seed, as the days of heaven," come three lines of hatred: "Two nations my soul abhorreth; and the third is no people: the inhabitants of Seir and Philistia; and the foolish nation that dwelleth in Sichem." The priest's seed under the covenant of Phinehas, the covenant Numbers 25 gave for an act against a Midianite union, and the Samaritans as "no people," stand in adjacent verses; Smend read the Shechemites as worse in Ben Sira's eyes than Edom or the Philistines because the Seleucids made common cause with them. The marriage question is absent from all three passages. What Ben Sira carries forward from Ezra is the priestly seed and the Samaritan enmity, not a doctrine of blood.⁴

² Sir. 10:19 in Smend, *Die Weisheit des Jesus Sirach erklärt* (Berlin 1906), pp. 96–97, and Einleitung p. xxix, read at the image; the translations from Smend are the book's. The Greek is Smend's citation of the Septuagint text; the Hebrew is the Genizah manuscript as he prints it.

³ Sir. 42:9–11, Genizah fol. 2 verso, in Cowley and Neubauer, *The Original Hebrew of a Portion of Ecclesiasticus* (Oxford 1897), p. 13, English of the editors with the Greek beneath; Schechter and Taylor, *The Wisdom of Ben Sira* (Cambridge 1899), p. 61, on Sanhedrin 100b. Read at the image.

⁴ Sir. 50:24–26 in Schechter and Taylor, p. xlix (their English of the Genizah text); Smend, p. 491; Num. 25:12–13 at Part 1.2.

Ben Sira's silence about Ezra was noticed long ago. In the praise of the fathers Nehemiah is named and Ezra is not, and Smend's explanation, which Schaeder quotes, is that Ben Sira did not reflect on the origin of the canon, "and the story of the dissolution of the mixed marriages was probably unintelligible or indifferent to him, since his time tolerated the mixed marriages." Schaeder set beside it Ezra's own silence about the future. The memoir and the psalm of Nehemiah 9 say nothing of the Messiah, and this he took for "the conscious rejection of the new ideas" that had reached Judaism from "foreign eschatological and apocalyptic speculations during the exile." Whether or not that reading of Ezra is right, it comes from the one scholar on the shelf who studied Ezra as a Persian official with an Iranist's training, and the Persian element he found in Ezra was an office, not a doctrine.⁵

⁵ Schaeder, p. 37 n. 1, quoting Smend, *Die Weisheit des Jesus Sirach erklärt* (1906), II p. 474; p. 71. Sir. 49:13 names Nehemiah. The translations are the book's.

6.2 Jubilees and Qumran

The book of Jubilees, written in Hebrew in the second century BC and preserved whole in Ethiopic, is the first text on the shelf to make the marriage rule a rule of seed with a capital sentence. It puts the rule into the mouths of the patriarchs. Abraham, dismissing his sons, commands that "they should keep themselves from all fornication and uncleanness ... and let them not take to themselves wives from the daughters of Canaan; for the seed of Canaan will be rooted out of the land." To Jacob he says, "Be thou ware, my son Jacob, of taking a wife from any seed of the daughters of Canaan; for all his seed is to be rooted out of the earth. For, owing to the transgression of Ham, Canaan erred, and all his seed will be destroyed from off the earth." Rebecca repeats it, and Jacob answers that he has never "even thought of taking me a wife of the daughters of Canaan."¹

The law itself is given after Dinah. "If there is any man who wishes in Israel to give his daughter or his sister to any man who is of the seed of the Gentiles he shall surely die, and they shall stone him with stones, for he hath wrought shame in Israel; and they shall burn the woman with fire, because she has dishonoured the name of the house of her father." Israel is holy, "the seed of Israel"; the man who gives his daughter to a Gentile defiles the sanctuary; "to this law there is no limit of days, and no remission, nor any atonement"; and Levi, for his zeal at Shechem, is given the priesthood. Charles's notes trace the penalty to the Molech law of Leviticus 20 and the fire to Genesis 38, and observe that "this statement does not agree quite with any in the O.T." The idiom is Priestly throughout: stoning, the sanctuary defiled, the holy

¹ Jub. 20:4, 22:20–21, 25:1–5, in Charles, *The Book of Jubilees, or The Little Genesis* (London 1902), pp. 129, 141, 158–159, read at the image.

seed. The target is the Gentile husband as much as the wife, for the offence is giving a daughter. The motive is stated, and it is Canaan's doom, not Persia's example. Persia is not named.²

Jubilees also felt the difficulty of Tamar and repaired it. In its retelling Er hates his wife "because his mother was of the daughters of Canaan," and Tamar, whose people Genesis leaves unstated, is made an Aramaean, a daughter of Aram; the rabbis later made her a daughter of Shem or of a priest. When Judah confesses, the angel adds a reason Genesis does not give: "his two sons had not lain with her, and for this reason his seed was established for a second generation, and would not be rooted out." The book that first hardened the rule is the book that first had to explain how David's line came through a woman the rule would have burned.³

The sectarian document from the Cairo Genizah that Schechter published in 1910, and that Qumran later yielded in older copies, names three nets in which Israel is caught: "fornication," "wealth," and "the pollution of the sanctuary." Its fornication is not the foreign wife. "They are ensnared by two: by fornication, taking two wives during their lifetimes, but the foundation of the creation is, 'Male and female created He them.' ... They also contaminate the sanctuary as they separate not according to the Law and lie with her who sees the blood of her issue. They take unto them a wife the daughter of their brother and the daughter of their sisters. But Moses said, 'Thou shalt not approach the sister of thy mother.'" Polygamy, menstrual purity, the marriage of a niece: those are the sect's quarrels with its opponents, and the niece is a gap in Leviticus that the sect closes by analogy. Nothing in the pages read concerns Gentile wives, and

² Jub. 30:7–18, Charles pp. 180–183 and notes; Lev. 20:2 at Part 1.1.

³ Jub. 41:2, 17, 19, 27, Charles pp. 229–231 and notes (Bereshith Rabba 85; Pseudo-Jonathan); Bertholet, *Die Stellung*, p. 309, on 41:2 and on Tamar as Aramaean; Gen. 38 at Part 1.3.

Schechter noticed that the proselytes have no place among the sect's offices. The Qumran halakhic letter and the Genesis Apocryphon, which do bear on lineage, are not read in this draft.⁴

⁴ Schechter, *Documents of Jewish Sectaries*, vol. I, *Fragments of a Zadokite Work* (Cambridge 1910), translation pp. xxxvi–xxxvii (Text A, pp. 4–5 of the manuscript), read at the image; Introduction p. xxii on the proselytes. The Qumran texts are cited from Schechter's edition only.

6.3 Josephus

Josephus, a priest writing at Rome after 70, describes the rule as his order kept it, and his description is the fullest account of the machinery that the holy seed had acquired in four centuries. "Our forefathers ... made provision that the stock of the priests should continue unmixed and pure; for he who is partaker of the priesthood must propagate of a wife of the same nation, without having any regard to money, or any other dignities; but he is to make a scrutiny, and take his wife's genealogy from the ancient tables, and procure many witnesses to it; and this is our practice not only in Judea, but wheresoever any body of men of our nation do live; and even there, an exact catalogue of our priests' marriages is kept; I mean at Egypt and at Babylon." After a war "those priests that survive them compose new tables of genealogy out of the old records, and examine the circumstances of the women that remain; for still they do not admit of those that have been captives, as suspecting that they had conversation with some foreigners." And he boasts "the names of our high-priests, from father to son, set down in our records, for the interval of two thousand years."¹

Three things stand out. The rule is stated of the priests, as Leviticus 21 stated it; Josephus does not say that the layman must marry "of the same nation," and his own genealogy, given at the head of his Life, is a priest's. The instrument is the written table and the witnesses, kept in Egypt and Babylon as in Judea: the genealogical register that Ezra 2 and Nehemiah 7 first show, and that Josephus, retelling Ezra 2, reads as having excluded "some ... out of the number and honour of the priests, as having married wives whose genealogies they could not produce." And

¹ Josephus, *Contra Apionem* I.7, tr. Whiston, *The Works of Flavius Josephus* (New York c. 1855), p. 787, read at the image.

the anxiety is the woman who has been a captive, suspected of "conversation with some foreigners." The seed is guarded by inspecting the woman. That is the Priestly law of the high priest's marriage made into a bureaucracy of the whole order, and it is the form in which the rule reached the age of the Mishnah.²

² Josephus, *Life* 1 (Whiston p. 1); *Antiquities* XI.3.10 (Whiston p. 295) on Ezra 2:59–62; Ezra 2 and Neh. 7 at Part 4 and Lev. 21:13–15 at Part 1.2.

6.4 The Mishnah's Ten Lineages

The Mishnah, compiled about 200 CE, states the system and then, in case after case, opens it.

The system is in Kiddushin.

KIDDUSHIN 4:1 (DANBY)

Ten family stocks came up from Babylon: the priestly, levitic, and Israelitish stocks, the impaired priestly stocks, the proselyte, freedman, bastard, and Nathin stocks, and the shetuki and asufi. The priestly, levitic, and Israelitish stocks may intermarry. The levitic, Israelitish, impaired priestly, proselyte, and freedman stocks may intermarry. The proselyte, freedman, bastard, and Nathin stocks, the shetuki and asufi, may all intermarry.

The Hebrew of the Kaufmann manuscript is עֲשָׂרָה יְחָסִים עָלוּ מִבָּבֶל, ten pedigrees came up from Babylon. The sentence takes the return from Babylon as the origin of the whole scheme of lineage, which is the book's argument in the rabbis' own words. But the scheme is three concentric circles, not a wall. The proselyte, גֵּר, stands in the second circle with Levites and Israelites and may marry any of them. What the proselyte may not do is marry a priest. The line that stays hard is the priesthood's, and the Mishnah says how it is traced: "He that would marry a woman of priestly stock must trace her family back through four mothers," her mother, her mother's mother, her father's mother, and their mothers; Levites and Israelites add one more. The pedigree that guards the priest's seed runs through women. And Rabbi Eliezer ben Jacob adds the rule that decides the mixed case: "If an Israelite married a proselyte woman his daughter is eligible for the priesthood; if a proselyte married an Israelite woman his daughter is eligible; but if a proselyte married a proselyte woman his daughter is ineligible." One Israelite parent of either sex suffices for the daughter to marry a priest.¹

¹ Kiddushin 4:1, 4:4–5, 4:7, Kaufmann text pp. 658–659 of the typeset edition; Danby pp. 327–328.

Then the openings. Deuteronomy 23 had barred the Ammonite and the Moabite "even to the tenth generation," and Ezra's generation had applied the bar. The Mishnah reads it thus: "An Ammonite or a Moabite is forbidden and forbidden for all time, but their women are permitted forthwith. An Egyptian or an Edomite, whether male or female, is forbidden only for three generations." Rabbi Simeon argued that the Egyptian and Edomite women too should be admitted at once, by inference from the greater case; his colleagues answered, "If this is Halakah we receive it; but if it is but an inference a counter-inference may rebut it," and he replied, "No, but I say a Halakah." The Moabite woman is admitted at once. Ruth, whom Part 1.3 read, is thereby made lawful by the same tradition that inherited Ezra.²

The second opening is a story. "On that day came Judah, an Ammonite proselyte, and stood before them in the House of Study. He said to them, May I enter into the congregation? Rabban Gamaliel said to him: Thou art forbidden. R. Joshua said to him: Thou art permitted. Rabban Gamaliel said to him, Scripture says, An Ammonite or a Moabite shall not enter into the assembly of the Lord, even to the tenth generation. R. Joshua said to him: But are the Ammonite and the Moabite still where they were? Long ago Sennacherib, king of Assyria, came up and put all the nations in confusion." Gamaliel answers from Jeremiah that Ammon's captivity was to return; Joshua answers from Amos that Israel's own has not; "and they permitted him to enter into the congregation." A named Ammonite, standing in the academy at Jamnia a generation after the Temple fell, is admitted to the assembly by the argument that the nations Deuteronomy named no longer exist. Within a century and a half of the Temple's fall, the rule Ezra applied to the peoples of the lands was declared inapplicable to any people then living.³

² Yevamot 8:3, Kaufmann p. 457; Danby p. 229; Deut. 23:4 at Part 1.2; Ruth at Part 1.3.

³ Yadaim 4:4, Kaufmann pp. 1579–1580; Danby p. 783 and note; the proof-texts are Isa. 10:13, Jer. 49:6 and Amos 9:14.

The third opening is the proselyte at the altar. "These may bring the First-fruits but they may not make the Avowal: the proselyte may bring them but he may not make the Avowal since he cannot say, Which the Lord sware unto our Fathers for to give us. But if his mother was an Israelite he may bring them and make the Avowal. And when he prays in private he should say, 'O God of the fathers of Israel'; and when he is in the synagogue he should say, 'O God of your fathers'." The proselyte brings; he may not say "our fathers." Here the Mishnah keeps a line of descent in the liturgy itself, and the parent who erases it is the mother: "if his mother was an Israelite he may say, 'O God of our fathers.'" The next sentence gives the same rule for the priest's bride: "A woman that is the offspring of proselytes may not marry into the priestly stock unless her mother was an Israelite." Part 4.6 found that Ezra 10 made the mother's people decisive, against the Persian doctrine of the father's seed that Boyce described. The Mishnah confirms the finding at both ends: the mother's Israelite birth opens the Avowal and the priesthood to the proselyte's child.⁴

So the tradition that made Babylon the origin of the ten pedigrees also admitted the Moabite woman forthwith, admitted a living Ammonite to the assembly, let the proselyte marry any Israelite, and let his daughter marry a priest if her mother was of Israel. What it kept was a graded honour, hardest at the altar, traced through women. That is not Ezra 9:2. It is not Jubilees. And it is nothing in the Avesta, whose kin-marriage as merit has no counterpart here; the nearest rabbinic thing, the marriage of a niece that the Zadokites attacked, is a gap in Leviticus, not a Persian import.⁵

⁴ Bikkurim 1:4–5, Kaufmann pp. 196–197; Danby p. 94; Deut. 26:3 for the Avowal; Part 4.6 for the mother's decisiveness; Boyce II p. 196 at Part 5.3.

⁵ Schechter, *Documents* I, p. xxxvii (niece-marriage); Boyce I p. 254 n. 24 and Boyce II pp. 75–77 on khvaētvadatha at Part 5.3.

6.5 The Court of Women

The Mishnah's tractate on the measurements of the Temple gives the women's court its dimensions and its history. "The Court of the Women was one hundred and thirty-five cubits long and one hundred and thirty-five cubits wide. At its four corners were four chambers each of forty cubits; and they had no roofs" (the Nazirites' chamber, the wood, the lepers, the oil and wine). Then: "Beforetime it was free of buildings, and they surrounded it with a gallery so that the women should look on from above." The Hebrew of the Kaufmann manuscript is וְהָלְקָה הָיִתָּה וְהָקִיפוּהָ בְּצוּצְטָרָה שֶׁהַנָּשִׁים רֹאוֹת מִלְמַעְלָה, and the word for the gallery is Greek, an *exostra*. Edersheim, whose account of 1874 remains the standard English description, explained the name: the court "obtained its name, not from its appropriation to the exclusive use of women, but because they were not allowed to proceed farther, except for sacrificial purposes. Indeed, this was probably the common place for worship, the females occupying, according to Jewish tradition, only a raised gallery along three sides of the court."¹

The women's court, then, was the court beyond which women could not go, and within it, at some date the Mishnah puts after the first arrangement, a gallery was built so that they looked on from above. The Sotah tractate, which prescribes the ordeal of the suspected wife in that court, carries the debate on whether a woman should be taught the law at all: "Ben Azzai says: A man ought to give his daughter a knowledge of the Law ... R. Eliezer says: If any man gives his daughter a knowledge of the Law it is as though he taught her lechery." Part 1.4 read Deborah

¹ Middot 2:5, Kaufmann pp. 1190–1191; Danby p. 592; Edersheim, *The Temple, Its Ministry and Services* (Boston 1881 printing), pp. 24–26, read at the image. The gallery clause at the Kaufmann text is Middot 2:8 in that edition's numbering: והקיפיה כצוצטרה שהנשים רואות מלמעלה והאנשים מלמטה כדי שלא יהא מערבים; Danby's 2:5 = Kaufmann's 2:6–8.

judging Israel under her palm and Huldah certifying the book of the law; Part 4.6 read the women of Yehud weeping and swearing and never speaking. The Mishnah is the third point on the line, and it runs the same way. The Diaspora did not everywhere follow: Boyce and Grenet observe that the great synagogue of Sardis, built by Jews who sat on the city council beside Iranians, "had unusual features (such as no separate gallery for women)." The gallery was a Temple usage and a rabbinic one, not a universal Jewish one, and its cause the book has not measured.²

The Part's finding is short. Every text between Ezra and the Mishnah that hardens the rule of seed does it in the Priestly idiom, from Israelite texts, against Canaan and the Gentiles; every text that softens it does it from Israelite texts too, from Ruth and from the fear of God. Persia is named in none of them. The rule was inherited, disputed and systematised inside one tradition, and the tradition's own final statement made the mother's birth, not the father's seed, the door.

² Sotah 3:4, Kaufmann p. 594; Danby p. 296; Boyce and Grenet, *A History of Zoroastrianism* III (Leiden 1991), pp. 390–391 (in copyright, flagged); Parts 1.4 and 4.6.

PART 7 — THE LONG SHADOW

7.1 The Samaritan Woman and the Witnesses

The fourth chapter of John puts the two exclusions of Part 4 in a single person. Jesus, at Jacob's well in Samaria, asks a woman for water, and she answers with the rule: "How dost thou, being a Jew, ask of me to drink, which am a Samaritan woman? For the Jews do not communicate with the Samaritans." That is the Rheims English of 1582; the Vulgate has *non enim coutuntur Judæi Samaritanis*, and a modern hand renders it "Jews have no dealings with Samaritans." The dialogue that follows keeps both lines in view. On the Samaritans: "You worship One of whom you know nothing. We worship One whom we know; for salvation comes from the Jews." On the woman: when the disciples return they are "surprised to find Him talking with a woman." And the chapter ends with the town believing "because of the woman's statement," and then for themselves. The narrator does not cancel the rule; he states it and shows it crossed, and the crossing is made by a Samaritan woman's testimony.¹

The Christian genealogy of Jesus keeps the women Part 1.3 read. Matthew's list runs "Judah was the father (by Tamar) ... Salmon (by Rahab) ... David (by Uriah's widow)"; Luke's runs back through Obed, Boaz and Salmon to Perez and Judah. Bertholet remarked that the Christian tradition could take Rahab into Matthew's table without difficulty because such women

¹ John 4:9, 22, 27, 39–42, in *The Vulgate New Testament with the Douay Version of 1582 in Parallel Columns* (London 1872), p. 126, read at the image; the modern rendering is Weymouth's.

were "represented as converts." The three foreign or unplaced women of David's line stand in the first Christian document about descent.²

² Matt. 1:3, 5–6; Luke 3:32–33 (Weymouth); Bertholet, *Die Stellung*, p. 310; Parts 1.3 and 6.2.

7.2 Galatians 3:28 against Ezra 9:2

Paul's sentence to the Galatians, written about 50 CE, names three lines and denies them.

GALATIANS 3:26–29 (RHEIMS 1582)

²⁶ For you are all the children of God by faith in Christ Jesus. **27** For as many of you as are baptized in Christ, have put on Christ. **28** There is not Jew nor Greek, there is not bond nor free, there is not male nor female. For all you are one in Christ Jesus. **29** And if you be Christ's, then are you the seed of Abraham, heirs according to promise.

The Latin is *Non est Judæus, neque Græcus: non est servus, neque liber: non est masculus, neque femina ... Si autem vos Christi: ergo semen Abrahamæ estis*. Lightfoot, in the commentary of 1865 that fixed the English reading, put the stress "on *all* and *sons*; 'all,' Jews and Gentiles alike, those under the law and those without the law," and paraphrased the verse as "There is no distinction of race or caste or sex." The three distinctions are the three the Mishnah would systematise: the pedigrees of Kiddushin, the freedman's stock and the proselyte's Avowal, the gallery of the women's court. Paul's instrument of entry is baptism, as Exodus 12's was circumcision. And his word for the result is Ezra's word. The baptized are "the seed of Abraham," σπέρμα, *semen*, זרע, and they are so "according to promise," which is the ground Deuteronomy 10 gave for the chosen seed before it commanded that seed to love the stranger.¹

The book states the comparison without deciding what it proves. Read against Ezra 9:2, Galatians 3:28 is a reversal: the seed that had mingled itself and was to be purged becomes a seed anyone may join by a rite. Read against Deuteronomy 10, Exodus 12, Leviticus 24, Isaiah 14 and 56, Ruth and the Mishnah's Ammonite proselyte, it is a return, in a new idiom, to the older Israelite principle that standing is made by adherence and not by birth. Which of those two

¹ Gal. 3:26–29 at the 1872 parallel, p. 257, read at the image; Lightfoot, *St Paul's Epistle to the Galatians*, 6th ed. (London 1880), pp. 46, 149–150, read at the image, with his note on οὐκ ἐν ἁρσεν καὶ θῆλυ; Deut. 10:15–19 at Part 1.1; Exod. 12:48 at Part 1.1.

readings the history supports is the question the Conclusion puts to the Laws. What Part 7 establishes is narrower: the line Paul denies is the line Ezra drew, and neither man drew it from Persia.²

² The texts are those of Parts 1.1, 1.3, 2.4 (Isa. 14:1), 3.3 (Isa. 56) and 6.4.

7.3 The Contemporary Application

The Law of Return was passed by the Knesset on 20 Tammuz 5710, 5 July 1950, in five sections, and the whole of it fits on one page of the statute book. The first section says that every Jew has the right to come to this country as an *oleh*. The second and third make the *oleh*'s visa and the *oleh*'s certificate available to every Jew who has expressed the desire to settle in Israel, unless the Minister is satisfied that the applicant is engaged in activity directed against the Jewish people or is likely to endanger public health or the security of the State. The fourth deems every Jew already in the country, or born in it before or after the Law, to have come in as an *oleh*. The fifth names the Minister who administers it. The word on which the statute turns is not defined in it. The translator's note explains that *aliyah* means the immigration of Jews and *oleh* a Jew immigrating, and stops there. The 1954 amendment added a criminal past to the Minister's grounds and moved the statute from the Minister of Immigration to the Minister of the Interior, and still did not say who a Jew was.¹

Twelve years after the Law, the gap was tested by a man whom this history would place on both sides of its line at once. Oswald Rufeisen was born in Poland in 1922 to Jewish parents, was reared a Jew, was active in the Zionist movement and did two years' pioneer training for immigration. In 1941 he was imprisoned; he escaped, obtained a certificate that he was a German Christian, and as secretary and interpreter to the German police passed information and arms to the Jews of his district. Exposed and imprisoned again, he escaped again, and in 1942 found

¹ Law of Return, 5710-1950, *Laws of the State of Israel* IV (authorised translation), p. 114 (No. 48), read at the image (Knesset scan): "Every Jew has the right to come to this country as an *oleh*"; translator's note on *aliya* and *oleh*; footnote: passed 20 Tammuz 5710 (5 July 1950), Sefer Ha-Chukkim No. 51, p. 159. Law of Return (Amendment 5714-1954), Sefer Ha-Chukkim No. 163, p. 174, in the Knesset's official English text of the Law with its amendments (4 pp., with source notes). The Hebrew text is not cited. The Italian rendering in Calabresi (1963), p. 17, agrees.

refuge in a convent, where he was converted. In 1945 he entered the Carmelite Order, deliberately, because it had a chapter in Palestine; in 1958 his superiors let him go, and to the Polish authorities he was explicit that he belonged to the Jewish people although he had embraced the Catholic faith. He waived his Polish citizenship to leave. In Israel he asked for the immigrant's certificate under the Law of Return and for registration as a Jew, and was refused on the basis of a Government decision of 20 July 1958 which provided that anyone declaring in good faith that he was a Jew and who did not profess any other religion should be registered as a Jew. He petitioned the High Court, and five judges heard him.²

Four dismissed the petition. The shape of their agreement is the point. Every one of them, the dissenter included, accepted that in Jewish religious law a converted Jew remains a Jew for almost all purposes. Justice Silberg spent nine pages of the report establishing it, from Sanhedrin 44a through the Geonim, Maimonides, the Tur and the Shulhan Aruch, and answered the State's argument that the apostate is only partly a Jew with a doctrine that belongs beside Ezra 9:2: Jewishness is a status, and status is indivisible; he had never heard of anyone having the status of half a Jew, or a third or a fourth of a Jew. The mingled seed of Ezra's confession, the graded purity of Boyce's Persia, have no place in that sentence. Had the word "Jew" in the Law of Return borne the meaning it bears in the Rabbinical Courts Jurisdiction Law, Silberg said, he would have granted the order. It did not. The Law of Return is a secular statute, originally enacted in Hebrew and never translated, and in the absence of any definition in the statute or the cases its words carry the meaning the ordinary simple Jew gives them; and in that meaning the answer was sharp and clear: a Jew who has become a Christian is not deemed a Jew. Whether

² *Rufeisen v. Minister of the Interior*, H.C. 72/62, (1962) 16 P.D. 2428, in Asher Felix Landau (ed.), *Selected Judgments of the Supreme Court of Israel*, Special Volume (Ministry of Justice, Jerusalem 1971; Routledge 2019), headnote, p. 1, read at the image ("a Government decision of July 20, 1958, which provides that anyone declaring in good faith that he is a Jew and who does not profess any other religion shall be registered as a Jew"). In copyright; cited at the print pagination. Pp. 1–11 are cited.

religious, non-religious or anti-religious, the Jew living in Israel is bound by an umbilical cord to historical Judaism, and Brother Daniel's love of Israel, which he had proved beyond all doubt, would be love from without, the love of a distant brother. As Calabresi's digest reports him, Silberg also gave the rationale that the ordinary usage rested on, and it is the rationale of Ezra 9 and 10: the apostates are lost to the family stock of the nation because their children marry out.³

Justice Landau, in the digest, read the same meaning out of the founders of Zionism: a Jew who cuts himself off from his people's national past by changing his religion ceases to be a Jew in the national sense the statute expresses, although he remains a Jew by descent. Justice Berinson would have granted the petition if his heart could have decided it, held that the Minister had been wrong to treat the Government's definition as binding, since the Knesset had chosen not to define the word and had left it to the Minister and the courts, and then dismissed on the same ground as his colleagues: the Jewish people has always regarded the apostate as one who has left not only its religion but its stock. The applicant's own description of himself, for twenty years, had been a Jew by race. It was not enough. Calabresi, writing for Italian Jewry in 1963, put the rule the judges had declined to apply in the words the Mishnah would have used, that the child of a Jewish mother is by that alone a Jew, and said why they had declined it: a pure birth rule would have admitted Brother Daniel, and would also have confirmed for the State the charge of racism that its critics wrongly laid against the Jewish idea.⁴

³ Silberg J. at S.J. pp. 2–11: the halakhic authorities pp. 3–6; "Jewishness is a status and status is indivisible. I have never heard of any one having the status of a half Jew, or of a third or a fourth of a Jew", p. 7; "a status which is indivisible and absolute", p. 10; the two senses of "Jew" and "the ordinary simple Jew", p. 10, read at the image; "sharp and clear—a Jew who has become a Christian is *not* deemed a 'Jew'", the umbilical cord and "the love of a distant brother", p. 11, read at the image. The intermarriage rationale is at Calabresi, p. 6 ("i loro figli fanno matrimonio misto"), read at the image; it falls in the part of Silberg's opinion (pp. 12 ff.) not cited here. Ezra 9:2 at Part 4.1; Boyce's purity at Part 5.3.

⁴ Landau and Berinson through Calabresi, pp. 6–8, read at the image ("quantunque egli rimanga ebreo di stirpe", p. 7; "La Knesset ha preferito non definire l'« ebreo »", p. 7; "ebreo per razza", p. 7; the people's view of the apostate, with Sharett's testimony to the United Nations Special Committee on Palestine, p. 8); the reported English of both opinions (S.J. pp. 12–34) is not cited. Calabresi on the traditional rule and on "la qualifica razzista di cui la

What the majority did, and did not do, with the three definitions the history has recovered is this. It did not deny the mother's-birth rule of Ezra 10 as Part 4.6 read it and of Kiddushin 4:7; it treated that rule as the religious law's and as true. It refused to make birth sufficient. Descent by itself, which was the criterion of Ezra 9:2 and is the criterion the Persian thesis attributes to Persia, was the criterion the court declined to apply. What it applied instead was adherence, stated as a bar: a Jew by birth who adheres to another religion is outside the statute's word. That is the first of the book's three definitions, the standing made by joining that Exodus 12:48 and Ruth 1:16 describe and the Mishnah's proselyte embodies, turned to face the other way. Adherence had made members of those not born to Israel; adherence elsewhere now unmade the standing of one who was. The remedy was the reverse of Ezra's. Ezra put away the foreign wife and kept the seed; the court left the marriage law untouched and put out the seed that had gone elsewhere.

The dissent spoke in the idiom of Part 3.3. Justice Cohn held that the tests provided by religious law cannot apply to the Law of Return, and that in the absence of an objective test in the Law itself there was no alternative but to assume that the legislature had contented itself with the subjective one: the right to return belongs to any person who declares that he is a Jew returning to his homeland and wishes to settle there. The further provision, that the right belongs only to those who profess no other than the Jewish religion, exceeded the powers of a Government whose duty was merely to carry out the Law. In the digest he goes further. The founding of the State was a revolution which demanded a revision of the exile's habits of thought; the gates which the Declaration of Independence said should stand open to every Jew were being shut on a man because he wore a monk's habit and a cross, when a man who hid them

parte cattolica, e con essa il moderno laicismo, gratifica a torto l'idea ebraica", p. 15, read at the image. Calabresi's text of the opinions is an Italian translation of *The Jerusalem Post's* digest, as he says at p. 3.

would have walked through, as the marranos once had; a State founded, in the Declaration's words, on freedom, justice and peace as the prophets of Israel foresaw them could not treat its returners as the Catholic kings had treated theirs; and had not the prophets said that the gates would be opened so that the righteous gentile who accepted the truth might enter? The argument of Isaiah 56:3–7, that the stranger who joins himself to the Lord is not to be cut off from the people, was made in a court of the State of Israel in 1962, and it lost four to one.⁵

The legislature answered the court in two statutes. The Population Registry Law of 1965 replaced the 1949 Ordinance under which Rufeisen had been refused, and it wrote Silberg's two senses of the word into the register. Among the thirteen particulars it requires for every resident it lists "ethnic group" and "religion" as separate entries, the fifth and the sixth; it then provides that the register is *prima facie* evidence of the correctness of the first four particulars and the ninth to the thirteenth, and so, by omission, of neither the ethnic group nor the religion; and it declares in terms that registration under the Law shall not affect the laws regarding prohibition and permission in matters of marriage and divorce. A man may be a Jew in the register and not before the rabbinical court, or before the court and not in the register, and the statute says so.⁶

The second statute is Amendment No. 2 to the Law of Return, passed on 10 March 1970, which inserted two sections after the fourth. Section 4B defines: for the purposes of the Law, "Jew" means a person who was born of a Jewish mother or has become converted to Judaism and who is not a member of another religion. Section 4A vests the rights of a Jew under the Law, and

⁵ Cohn J. The headnote extract at S.J. p. 2 ("The tests provided by religious law cannot apply to the Law of Return ... exceeds ... the powers of the Government, whose duty it is merely to carry out the Law"); the fuller argument through Calabresi, pp. 8–9, read at the image ("le porte saranno aperte così che il giusto gentile che accoglierà la verità potrà entrare?", p. 9). Isa. 56:3–7 at Part 3.3.

⁶ Population Registry Law, 5725-1965, *Laws of the State of Israel* XIX, pp. 288–297 (No. 67), read at the image: § 2(a)(5)–(6) "ethnic group; religion", pp. 288–289; § 3 *prima facie* evidence "of the particulars of registration referred to in paragraphs (1) to (4) and (9) to (13) of section 2", p. 289; § 40 "Registration under this Law shall not affect the laws regarding prohibition and permission in matters of marriage and divorce", p. 295; § 43 repeal of the Registration of Inhabitants Ordinance, 5709-1949, p. 296.

of an *oleh* under the Nationality Law, also in a child and a grandchild of a Jew, the spouse of a Jew, the spouse of a child of a Jew and the spouse of a grandchild of a Jew, whether or not the Jew through whom the right is claimed is alive or has immigrated, except for a person who has been a Jew and has voluntarily changed his religion. A third section bound the Registry's "Jew" to the same definition. The three definitions the history recovered are all in these two sections, and they are arranged in two tiers. Membership, the name "Jew", is by the mother's birth or by adherence, the two doors the Mishnah kept open, and it is barred to the born Jew who adheres elsewhere, which is Rufeisen's rule made statute. The right of return without the name runs by descent through either parent to the grandchild and to the spouses, the father's seed of Ezra 9:2 and of Boyce's Persia re-entering as a right and not as an identity, and the same bar runs across it. Nothing in either section is Persian, and the book's history does not need Persia to read them. The birth door is Kiddushin 4:7 and Bikkurim 1:5, and behind them Ezra 10 as Part 4.6 read it. The conversion door is Exodus 12:48, Ruth 1:16 and Isaiah 56. The bar is the court's reading of what the ordinary Jew meant in 1962. The descent tier is Ezra 9:2 with the predicate changed: the seed is no longer holy, but it may come home.⁷

The case that decides how the two tiers meet, *Shalit v. Minister of the Interior* (1969), on the children of a Jewish father and a non-Jewish mother registered as Jews by ethnic group, is the case the 1970 amendment was passed to answer; this draft does not yet read it.

The book records the result without deciding it. A statute of 1950 that gave the right of return to every Jew and defined none; a Government that supplied the definition; a court that

⁷ Law of Return (Amendment No. 2), 5730-1970, passed 2 Adar Bet 5730 (10 March 1970), Sefer Ha-Chukkim No. 586, p. 34, in the Knesset's official English text, pp. 2-4: § 4A(a) "are also vested in a child and a grandchild of a Jew, the spouse of a Jew, the spouse of a child of a Jew and the spouse of a grandchild of a Jew, except for a person who has been a Jew and has voluntarily changed his religion"; § 4B "'Jew' means a person who was born of a Jewish mother or has become converted to Judaism and who is not a member of another religion"; § 3 inserting § 3A in the Registry Law. The texts behind each door: Parts 1.1 (Exod. 12:48), 1.3 (Ruth 1:16), 3.3 (Isa. 56), 4.1 (Ezra 9:2), 4.6 (Ezra 10 and the mother), 5.3 (Boyce's father's seed), 6.4 (Kiddushin 4:7; Bikkurim 1:5).

found the definition in the people's speech and a dissent that found the older one in the prophets; a register that separated ethnic group from religion and gave evidential force to neither; and an amendment that defined the name by the mother and by adherence, gave the right by descent through either parent, and barred both to the apostate. The modern texts are the same argument the history has followed since Ezra 9:2, conducted in the same terms and resolved, as far as these texts show, by neither of the two rules the Persian thesis requires. It is not Ezra's rule of seed, which the court refused and the amendment admitted only as a right without the name. It is not Persia's, which no one in the courtroom or the Knesset named.⁸

⁸ The Government decision of 20 July 1958 as a document, the Hebrew statute texts, the rest of *Rufeisen* and *Shalit* (1969) 23 P.D. (I) 47 are not cited in this draft.

CONCLUSION

The book set out to find where the holy seed came from. It has read the phrase at the oldest complete Hebrew manuscript and at every version through which it reached later readers, read the Israelite law before it and the Jewish law after it, read the Persian court's own words and the Greek observers and the Avesta as the shelf holds it, and read every scholar on the shelf who argued that Persia shaped Judaism, from Kohut in 1866 to Boyce and Grenet in 1991. What it has established fits in a paragraph. Then the Laws are applied to it.

Ezra 9:2 is a coinage from Israelite parts. Its noun is the priest's seed of Leviticus 21, its adjective is the holy people of Deuteronomy 7, its verb is Israel's own vocabulary of separation, and its assembly is the Priestly assembly of Leviticus 24, which had tried the child of an Egyptian father for his deed and kept him in the camp. No text before Ezra puts holy and seed together in this sense, and no version before the seventeenth century read the phrase as a doctrine of blood. The Persian evidence, read at the inscriptions, the Cylinder, the Rescript and the Avesta, supplies authorisation without content, a god who is not named in any Jewish text of the period, a purity code whose own historian dates its barrier against unbelievers to the Seleucid or Parthian age, and a doctrine of seed that runs the other way, since under it a foreign wife cannot touch the father's line. The one author on the shelf who argued for Persian influence on the Jewish purity law argued for its reach and its temper, not for the marriage rule, and her last volume made the two separatisms siblings, each a subject people's answer to Greek settlers. The rule Ezra applied was Israelite, was a departure within Israelite law from the principle that standing is made by adherence, and was carried, hardened, disputed and finally opened again

inside the same law, until the Mishnah admitted the Moabite woman forthwith and a living Ammonite to the assembly, and made the mother's birth the door.

The Laws of Supremacism and Egalitarianism, the companion paper to this book, state two propositions about every social system. The first is that sustained conflict implies a supremacist claim between at least one pair of entities, a claim by one that its position, identity or standing is superior to another's. The second is that where equality is fully maintained among all entities sustained conflict cannot exist. The paper adds a dynamic: a supremacist claim, once asserted, is answered either by a counter-claim, which escalates, or by an egalitarian assertion, which denies the validity of all such claims and makes resolution possible; and a peace, once established, is either maintained or eroded as supremacist claims reassert themselves through institutions, practices and ideologies. The paper's own cases are modern. The book's history is a case from the fifth century before the Common Era, and it is offered as one.

Read under the first Law, Ezra 9:2 is a supremacist claim in the paper's exact sense. It asserts that one entity, the seed of the returned exiles, holds a standing that the peoples of the lands do not and cannot acquire, and it asserts this of standing itself, not of conduct: the foreign wives of Ezra 10 are not charged with idolatry, and their children are put out with them. The history has shown where that claim came from. It did not come from Persia, whose court authorised it without supplying it, and whose priesthood, on the account of the shelf's most sympathetic historian, held a doctrine that would have argued for keeping the wives. It came from inside, from a community that had spent two generations in exile defining itself by genealogy, that had read Ezekiel's denial of inherited guilt and Third Isaiah's welcome of the foreigner and chosen otherwise, and that possessed in the Priestly law a vocabulary of holiness which could be turned from the altar to the marriage bed. The Laws predict this. They say that

supremacism takes economic, political, religious and ethnic forms while the dynamic stays constant, and that the claim is prior to the form. The book's finding that the holy seed needed no foreign source is the finding the Laws lead one to expect: a people under a tolerant empire, in no sustained conflict with it, generated the claim from its own materials, against its own neighbours and its own women.

Read under the second Law and its dynamic, the four centuries of Part 6 are a contest between the two response paths. Jubilees is the counter-supremacist path: it answers the mingled seed with stoning, burning and "no atonement," projects the claim onto Abraham, and rewrites Tamar's ancestry to keep the king's line clean. Ben Sira's honoured seed defined by the fear of God, the book of Ruth as Bertholet read it, Third Isaiah's foreigner who has joined himself to the LORD, and the Mishnah's Judah the Ammonite, admitted to the assembly on the argument that the nations of Deuteronomy no longer exist, are the egalitarian assertion: they deny the validity of the descent claim by appeal to a standing made by adherence, which is the standing the Torah's stranger laws had given. Paul's sentence to the Galatians is the same assertion in a new idiom, and its noun is Ezra's noun. The history does not show the assertion winning. It shows the claim and its denial living together in one tradition for six centuries, the Mishnah keeping a graded honour hardest at the altar while it opened every other door, and the women's court acquiring a gallery. That, too, is what the Laws describe: a peace not maintained is eroded, and the erosion runs through institutions.

What the book cannot do is decide from the fifth century whether the rule of Ezra 9:2 was the cause of sustained conflict, because the fifth century's conflicts, the Samaritan schism above all, were fought over title, priesthood and temple before they were fought over blood, and Josephus alone ties the schism to a marriage. The Laws would say that title, priesthood and

temple are supremacist claims in their own right, and the history does not contradict that. What the book can do is name the claim, date it, locate its source in Israel and not in Persia, and show that the same law which produced it also produced, before and after, the principle that answers it. Whether the claim's modern descendants, read in Part 7.3 at the statute and the judgments, follow the counter-supremacist path of Jubilees or the egalitarian path of the Mishnah's two doors is the question the paper's Laws put to them. On the texts read there, the court refused descent alone and the amendment kept both of the Mishnah's doors. The history's answer to the question it was asked is that the holy seed was made in Jerusalem, of Israelite parts, by men who had a better principle in their own scriptures and did not use it; and that their successors, without any foreign help, found it again.

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